TITLE 12 - TRAFFIC

Contents:

Index
12.04 Overland Park Traffic Ordinance
12.05 Special Rules Relating to Micromobility Devices, Shared Small Vehicles and Shared Small Vehicle Companies.
12.08 Vehicle Operator's License - Minors
12.12 Truck Routes
12.16 Parades
12.20 Towing Regulations
12.21 Private Towing Regulations
Repealed Sections of Title 12 Traffic

INDEX

sections

-A-

ABANDONED VEHICLES 93.1
ACCESSIBLE PARKING 87
ACCESSIBLE PARKING IDENTIFICATION DEVICE 87
ACCIDENTS
- Aid to Be Rendered by Driver 25
- Attended Vehicle or Property 23
- Driver Involved, Stop or Return 23
- False Reports, Penalty 28
- Information Given by Driver 25
- Injury 23
- Place of Accident 23
- Unattended Vehicle or Other Property 26

ADVERTISING, Commercial 17
AGE, Legal Age for Consumption 1
AIR CONDITIONING EQUIPMENT 176.1
ALCOHOL CONCENTRATION, Defined 1
ALCOHOLIC LIQUOR
- Consumption While Driving 2;105
- Defined 1
- Driving Under Influence 30
- Transporting 2;106

ALLEYS
- Defined 1
- Emerging From, Stop 80
- Parking in 92

ALL-TERRAIN VEHICLES 1;135.1
ANIMALS, Riders or Drivers Obey Regulations 7
ARTERIAL STREET, Defined 1

AUTHORIZED EMERGENCY VEHICLE, Defined 1

-B-

BACKING, Limitations on 2;117
BARRIERS 122
BICYCLES
Brake Required 133
Carrying Articles Prohibited 132
Clinging to Vehicles 130
Defined 1
Electric-Assisted 1;135
Lamps On 133
Motorized 134
Parental Responsibility 127
Passing 131
Paths, Use of 131
Pedal Reflectors 133
Permanent Seat Required 129
Riders Limited 129
Riders Obey Regulations 128
Riding Abreast Prohibited 131
Right Side of Street, Ride Near 131
BLIND, Right-Of-Way 73
BOND REQUIRED, Removing Dirt 179
BRAKES
Approval by Secretary 189.1
Equipment Required 173;188
Other 188;190
Performance Ability 173
BRAKES SET ON GRADE 107
BREATH TEST, Fail to Take 30.1
BRIDGE, Parking On 85
BRIDGE SIGNAL 75
BRIDGE, Gross Weight Limit 196.2
BUILDING, Emerging From, Stop 80
BUSINESS DISTRICT, Defined 1
BUS, Defined 1
BUS ZONES 99

-C-

CANCELLATION OF DRIVER'S LICENSE, Defined 1
CANS, Throwing On Highway 112
CAR TAG REQUIRED 195
CARAVANS 47
CEREAL MALT BEVERAGES (Legal Age) 1
Consumption While Driving 2;105

Defined 1
Transporting 2;106
CHIEF OF POLICE
Defined 1
Crosswalk Designation 19
Hazardous or Congested Places, Signs 95
Intersections, Turn Determination 50
Narrow Streets, "No Parking" Signs 91
Play Streets, Declaring 20
Regulations by Emergency, Temporary and Experimental 3
School Zone, "No Parking" Sign 94
Traffic Lanes, Designation 21
CHILD RESTRAINTS 119
CHURCH BUS
Overtaking and Passing 82
Lighting and Warning Devices 171
CITATION (See Ticket)
CITY TRAFFIC ENGINEER
Defined 1
Duties 32
Regulations 3;19;33
CLINGING TO MOVING VEHICLE 130;140
COASTER 136
COASTING 109
COMMERCIAL ADVERTISING 17
COMMERCIAL MOTOR VEHICLE SAFETY 196.1.7
COMMISSION, Defined 1
COMPRESSION RELEASE ENGINE BRAKING SYSTEM
Defined 1
Use of 175.1
COMPLAINT, Requirements On Speed 36
CONTRIBUTIONS 69
CONTROLLED-ACCESS HIGHWAY, Defined 1
CROSSWALKS
Defined 1
Designation 19
Standing Vehicle on, Prohibited 85
Stop When Obstructed 113
CURVES, Turns On 52

-D-

DAYLIGHT 33
DAY PROGRAM BUS 171
DEATH 23
DEBRIS ON ROAD 112;179
DEFINITIONS 1
DEPARTMENT, Defined 1

DIRECTOR, Defined 1
DISABLED VEHICLE
Parking 93
Warning lamps 174.2
DIVISION, Defined 1
DIVIDED HIGHWAY 1; 48
DOORS, Opening And Closing 123
DOUBLE PARKING, Defined 1
DRAG RACING, Prohibited 37
DRAWBAR
Defined 1
Connections 180
DRIVE-AWAY/TOW-AWAY OPERATION, Defined 1
DRIVERS
Defined 1
Emergency Vehicle Duties 10
License 1; 191; 192
canceled, suspended or revoked 192
habitual violator 192.1
cancellation of, defined 1
change of name/address 191.3
in possession 191.1
restrictions 191.2
Minors, Unauthorized 194
View Unobstructed 108
DRIVEWAYS
Emerging From, Stop 80
Parking in, Prohibited 85
DRIVING RULES
Buses, Distance Between 47
Caravans 47
Center Lines 43
Coasting 109
Curves, Turns on 52
Divided Highways 48
Emergency Vehicles, Approach of 61
Emerging From Alley or Private Driveway or Building 80
Following Too Closely 47
Funeral Processions 47
Grades, Turns on 52
Headphones 126.6
Intersections, Right-of-Way at 57
Laned Roadways 46
Left Turns 13; 49; 56; 58
Motorcades 47
Meeting vehicle 39
No Passing Zones 44
One-Way Roadways 45

Overtaking on Left 40; 42
Overtaking on Right 41
Overtaking School Bus 81
Parked Vehicle, Starting 53
Passing Emergency, Highway Construction, Maintenance Vehicles 44.1
Right-of-Way at Intersections 57
Right Side of Roadway, Exceptions 38
Right Turns 49; 50; 56
Rotary Traffic Islands 45
Safety Zone, Not to Drive Through 70
Signals for Stopping 54
Signals for Turns 54; 55
Starting Parked Vehicle 53
Stop Intersection, Entering 59
Temporary Turn Sign 49
Texting 126.5
Trucks, Distance Between 47
Turns at Intersections 13; 49; 50; 58
Turns, Signals Required 55; 56
U-Turns, Where Prohibited 50
Vehicles Proceeding in Opposite Directions 39
Yield Intersections, Entering 59
DRIVING WITHOUT LICENSE 191; 192
DRUNKEN DRIVING 30
DRUGS, Driving Under Influence Of 30
DWI; Revocation Of License Or Conditions On Driving 30

-E-

EARTH SCRAPER, rubber tired 196.1.5
ELECTRIC-ASSISTED BICYCLE 1; 135
ELECTRIC PERSONAL ASSISTIVE MOBILITY DEVICE 1
EMERGENCY REGULATIONS WORKING ON HIGHWAYS 8
EMERGENCY VEHICLES
Authorized 160
Duty of Driver 10
Operation of Others on Approach of 61
Passing 44.1
Pedestrians Yield 72
Pursuit of Law Violator 10
Responding to Emergency Call 10
Responding to Fire Alarm 10
Signals Given By 61
Signals, Giving 10
Sirens, Whistles, Bells 174
Speed Limits, Exceeding 10
Stationary 61
Stop Signs, Disregarding 10

Traffic Control Device, Disregarding 10
EMPLOYEES OF GOVERNMENTS TO OBEY 9
ESSENTIAL PARTS, Defined 1
EXCAVATION IN STREET, Parking Near 85
EXHIBITION OF SPEED 37
EXPERIMENTAL REGULATIONS 3
EXPLOSIVES 1; 179.1
EYE PROTECTION 177

-F-

FALSE ID 196.3
FARM TRACTOR 1; 159.1
FARM MACHINERY ON PARKING 93
FIRE ALARM, Responding To 10
FIRE APPARATUS, Following 110
FIRE LANES 85
FIRE HOSE, Crossing 111
FIRE HYDRANT, Parking Near 85
FLAGS ON PROJECTING LOADS 156
FLAMMABLE LIQUID, Defined 1
FLARES OR WARNING DEVICES 174.1
FLASHING SIGNALS 15
FLEEING OR ATTEMPTING TO ELUDE POLICE OFFICER 31
FOG LIGHTS 159
FRONT SEAT, Number In 108
FUNERAL PROCESSIONS, Slow Driving 47

-G-

GLASS
Cleaning Up After Wreck 112
Throwing on Highway 112
One Way Prohibited 181
GLAZING MATERIAL 178.2
GOLF CART, Defined 1
GOVERNING BODY, Defined 1
GRADES, Turns On 52
GRASS 85
GREASING OR REPAIRING 88
GREEN LIGHT 13
GROSS WEIGHT, Defined 1

-H-

HANDICAPPED PARKING 87
HAZARDOUS MATERIALS 179.1
HAZARDS, Removal 126

HEADPHONES WHILE DRIVING 126.6
HEIGHT, Vehicle 196.1
HIGHWAY, STREET OR, Defined 1
HIGHWAY CONSTRUCTION, Right-Of-Way 62
Employees or Persons Working on 8
HOOD, BUMPER, ETC., Riding On 115
HORNS AND WARNING DEVICES 174
HOUSE TRAILER, Defined 1
Riding in, Prohibited 124

-I-

IDENTIFICATION CARD 196.3
IDENTIFYING NUMBER, Defined 1
IGNITION INTERLOCK DEVICES 31.1
IMPLEMENT OF HUSBANDRY, Defined 1
INATTENTIVE DRIVING 103
INFORMATION, Duty to Give 25
INSURANCE 195.1
INTERSECTIONS
Defined 1
Right-of-Way at 57
Stop Entering 59
Stop or Yield 59
Stop When Obstructed 113
Turning Left 13; 58
Yield, Entering 59
INTOXICATING LIQUOR 1; 105; 106

-J-

JAYWALKING 65
JOGGING 68
JUNK VEHICLE 93; 93.1

-K-

"KEEP OUR HIGHWAYS CLEAN" 179

-L-

LAMPS (See also lights)
Animal-Drawn Vehicles 158
Auxiliary 159
Backup 163
Bicycles 133
Color of Clearance Lamps, Identification Lamps, Side Marker Lamps,
Backup Lamps and Reflectors 152

Cowl 163
Farm Tractor 159.1
Fender 163
Fog 151
Head Lamps 146
Heights of Head Lamps 146
Highway Maintenance and Service Equipment 172
Identification on Commercial Vehicles 163
Mounted Height 145
Mounting of Reflectors, Clearance Lamps and Side Marker Lamps 153
Multiple Beam 164; 165
Obstructed Lights Not Required, When 155
Parked Vehicles, Lamps on 157
Passing Lamps 159
Projecting Loads, Lamps or Flags 156
Reflectors 148
Signal 161
Signal Devices 161
Special, Certain Vehicles 161
Special Restrictions 169
Spot Lamps 159
Tail Lamps 147
Visibility Distance 145
Visibility of Reflectors, Clearance Lamps and Marker Lamps 154
Vehicular Hazard Warning Lights 162
LANE DIRECTIONAL CONTROL SIGNALS 16
LANED ROADWAYS
Defined 1
Driving on 46
LANES FOR TRAFFIC 21
LAWNS, Driving Across 125
LEFT TURNS 13; 49; 58
LEGAL AGE for CMB 1
LENGTH, Vehicle 196.1
LICENSE TO OPERATE A MOTOR VEHICLE
Canceled, Suspended or Revoked 192
Habitual Violator 192.1
Defined 1
Name/Address Change 191.3
Possession, in 191.1
Restrictions, Violation 196
Unauthorized Minor 194
Unauthorized Operator 193
Unlawful Use 196
LIGHTS (See also Lamps)
Additional Lighting Equipment 163
Authorized Emergency Vehicles 160
Auxiliary 159

Bicycles 133
Church Bus 171
Fog 159
LIGHTS (See also Lamps)
Head lamps; When Required 144
Motorcycles 182
Motorized Bicycles 134
Motor-Driven Cycle 182
Multiple Beam 164; 165
Parked Vehicles 157
Projecting Loads 156
School Buses 170
Single Beam 166
Signal 161
Signal Devices 161
Special, Certain Vehicles 151
Spot Lights 159
Trash Trucks 162
Visibility of Reflectors, Clearance and Marker Lamps 154
Warning Lights 162
LITTER, Defined 1
LITTERING 104; 179
LOAD COVER REQUIRED 179
LOW-SPEED VEHICLE, Defined 1; 135.2

-M-

MAIL, Defined 1
MANUFACTURER, Defined 1
METAL TIRES PROHIBITED 178
METAL TIRE, Defined 1
MICRO UTILITY TRUCK, Defined 1
MILITARY FORCES, Exemptions 121
MINORS 127; 194
MIRRORS 176
MOBILE HOME 1; 124
MOTORCADES 47
MOTORCYCLES
Application of Traffic Laws 137
Brake Equipment 188-190
Brake Performance 189
Clinging to Vehicles 140
Crash Helmets or Headgear Required 142
Defined 1
Electric Turn Signals 185
Eye-Protective Device 142
Footrests 141
Handlebars 141

Head Lamps 182
Horn 190
Lane, Use of Full Width 139
Lights 182
Mirrors 176
Multiple Beam 164
Number in Single Lane 139
Passenger Seat 138
Passing Restrictions, Special 139
Permanent Seat Required 138
Reflectors 184
Side Saddle Riding Prohibited 138
Stop Lamps 185
Tail Lamps 183
Tires 190
MOTOR-DRIVEN CYCLE, Defined 1
MOTORIZED BICYCLE, Defined 1
Application of Traffic Laws 134
MOTORIZED WHEELCHAIR, Defined 1
MOTOR VEHICLES, Defined 1
MUD ON STREETS 179
MUFFLERS 175; 190

-N-

NIGHTTIME 33
NOISE PREVENTION 175
NONHIGHWAY TIRE, Defined 1
NONRESIDENT, Defined 1
NONRESIDENT'S OPERATING PRIVILEGE, Defined 1
NO PASSING ZONES 44

-O-

OBEDIENCE TO LAW ENFORCEMENT OFFICER 6
OBEDIENCE TO ORDINANCE REQUIRED 5
OBSTRUCTION OF DRIVER'S VIEW 108
OBSTRUCTING TRAFFIC 113
OFFICIAL TIME STANDARD, Defined 1
OFFICIAL TRAFFIC CONTROL DEVICES, Defined 1
ONE-WAY STREETS, Driving On 45
OPEN CONTAINER 106
OPERATOR, Unauthorized 193
ORDINANCE, Scope Of 2
OWNER, Defined 1

-P-

PARADE PROCESSION 120
PARK OR PARKING, Defined 1
PARKING (See also Standing and Stopping)
Accessible for Disabled 87
Alley 92
Angle, When Permitted 86
Blocking Traffic 90
Brakes Set on Grade 107
Citation 100
City Offices 85.1
Commercial Vehicles 98
Congested Places 95
Controlled-access, Highway Right-of-Way 48
Defined 1
Delivery Vehicles, Back to Curb in Parallel Zone, When 98
Disabled Vehicles 93
Displaying for Sale, Prohibited 88
Double, Prohibited 85
Fire Lanes 85
Handicapped Parking Space 87
Hazardous Places 95
Illegally, Citation 100
Key Not To Be Left in Parked Vehicle 107
Lamps on Parked Vehicles 157
Limited Time Parking 97
Loading, Unloading 99
Narrow Streets 91
No Parking, City Offices 85.1
"No Parking" Signs 96
One-way Roadway 86
Open Door; Traffic Interference 123
Outside Business or Residence District 83
Parallel, Where Required 86
Parkway 85
Passengers, Loading or Unloading 99
Posted 85.2; 96
Presumption Owner of Vehicle Parked 102
Removal or Illegally Parked Vehicles 84
Residential 98.1
Roadway 83; 86
Sale, Display For 88
School Zones 94
Special Zones 99
Specified Places, Prohibited 85
Stalls, Required in 89
Time Parking 97
Vehicles on Roadway or Highway 93
Warrant or Arrest for Failure to Comply With Citation 101

Washing, Greasing or Repairing, for 88
PARKED VEHICLE, Starting 53
Illegally Parked 100; 101; 102
PARKWAY, Defined 1
PARTIES TO VIOLATION 198
PASSENGER CAR OR VEHICLE, Defined 1
PASSENGERS OBSTRUCT VIEW 108
PASSENGERS, STOPPING TO UNLOAD 99
PEDESTRIANS
Alcohol, Under Influence 74
Blind, Use of Canes or Dogs 73
Bridge or Railroad Signal 75
Control Signals 14
Crossing at Other Than Crosswalks 65
Crosswalks, Right-of-Way 64
Defined 1
"Don't Walk" 14
Driver's Care For 66
Drugs, Under Influence 74
Emergency Vehicle, Yield to 72
Facing Yellow Light 13
Green or "Go" 13
Jaywalking 65
Obedience to Traffic Regulations 63
Red Light or Stop Sign 14
Right Half of Crosswalks, Use 67
Right-of-Way on Sidewalks 71
Sidewalks, When Provided 68
Soliciting Rides or Business 69
Subject to Traffic-Control Signals 63
Under Influence of Alcohol or Drugs 74
"Wait" 14
"Walk" 14
PENALTIES, Generally 197
PERMITTING OTHERS TO DRIVE UNLAWFULLY 199
PERSONS, Defined 1
PERSON WITH A DISABILITY, Defined 1
PLAY STREETS 20
PLAY VEHICLES 136
PNEUMATIC TIRE, Defined 1
POLE TRAILER, Defined 1
POLICE CHIEF (See Chief of Police)
POLICE (See also Chief of Police)
Authority of 4; 12
Directing Traffic Where Control Device 4; 13
Directions 4
Fleeing or Attempting to Elude 31
Illegally Standing Vehicle, May Remove 84

Officer, Defined 1
Pursuit of Violator 10
To Be Obeyed 6
PRIVATE DRIVEWAY, Emerging From 80
PRIVATE PROPERTY 2
PRIVATE PROPERTY, Driving Over To Avoid Stop Sign 118
PRIVATE ROAD OR ROADWAY, Defined 1
PRIVATE ROAD, Entering From 80
PROCESSIONS 120
PUBLIC OFFICERS TO OBEY 9

-Q-

-R-

RACING ON HIGHWAY 37
RAILROAD CROSSINGS
Certain Vehicles Stop at All 78
Certain Vehicles Not to Change Gears 78
Flagman at, Obedience to 76
Heavy Equipment Crossing at 79
Signals, Obedience to 76
Stop at Certain 77; 113
Where Police Officer or Control Signal 78
RAILROAD, Defined 1
RAILROAD SIGN OR SIGNAL, Defined 1
RAILROAD SIGNS, Interference With 18
RAILROAD TRAIN, Defined 1
RAIN WIPER 177
REARVIEW MIRROR 176
REAR WINDOW UNOBSTRUCTED 177
RECKLESS DRIVING 29
RECREATIONAL VEHICLE, Defined 1
RED, FLASHING LIGHT 15
RED LIGHT 13
RED SIGNAL, EMERGENCY VEHICLE
DISREGARD, When 10
REFLECTORS 148
REGISTRATION, Defined 1
REGULATIONS, Emergency, Temporary And Experimental 3
REMOVAL OF VEHICLES 84
REMOVAL OF TRAFFIC HAZARDS 126
REPAIR OF VEHICLE, When Parking Prohibited 88
RESIDENCE DISTRICT, Defined 1
RESIDENTIAL PARKING 98.1
RESTRAINTS, Child 119
REVOCATION OF DRIVER'S LICENSE, Defined 1
RIDING, Unlawful 115

RIGHT OF WAY INTERSECTIONS 57
RIGHT-OF-WAY, Defined 1
RIGHT TURNS 13; 49; 50
RIGHT TURN ON RED LIGHT 13
ROAD CONSTRUCTION ZONE, Defined 1
ROADWAY, Defined 1
ROLLER SKATING, ETC., Prohibited In Roadway 136
ROTARY ISLANDS, Drive To Right 45
RUNNING 68

-S-

SAFETY BELTS 119.1; 176.3
SAFETY GLAZING 178.2
SAFETY HITCH
- Defined 1
- Towed Vehicles 180

SAFETY ZONE
- Defined 1
- Designation 19
- Not to Drive Through 70
- Parking Near 85

SCHOOL BUS, Defined 1
SCHOOL BUS, Overtaking & Passing 81
SCHOOL BUS STOP AT RAILROAD CROSSING 78
SCHOOL CROSSING GUARD
- Compliance with 82.1
- Defined 1

SCHOOL ZONES, Parking 94
SEATBELTS 119; 176.3
SECRETARY, Defined 1
SEMITRAILER, Defined 1
SHORT CUT 118
SHOULDER HARNESS 176.3
SIDEWALK, Defined 1
SIDEWALK, Parking On 85
SIDEWALKS NOT TO BE DRIVEN ON 116
SIDE WINGS UNOBSTRUCTED 177
SIGHT DISTANCE (See also OPMC 18.420) 126
SIGNAL DEVICES 161
SIGNAL LAMPS 161
SIGNALS
- Bridge 75
- Emergency Vehicles Must Give 10
- Flashing 15
- For Turns 54; 56
- Improper Use 54
- Methods of Giving 55; 56

Train 76
SIGNS
Informational, Outside Highways 17
Interference With 18
Removal of Prohibited 17
Traffic, Must Be Up 12
State Highway Commission Manual and Specifications 11
Unauthorized 17
SIGNS AND SIGNALS (See Traffic-Control Devices) 34
SKATEBOARD 136
SLOW DRIVING 34
SNOWMOBILE OPERATION 114
SNOW REMOVAL EQUIPMENT 172
SNOW TIRES 178
SOLICITING RIDES OR BUSINESS 69
SOLID RUBBER TIRE, Defined 1
SPEEDS
Basic Rule 33
Business District, Speed in 33
Complaint, Summons, Warrants, Notice, Requirements 36
Decrease, Sudden 54
Emergency Vehicle, Exempt From, When 10
Exhibition 37
Low-Speed Vehicles 135.2
Maximum Speed 33
Minimum Speed 34
Motor-Driven Cycles 35
Parks, Speed in 33
Racing on Highway 37
Reasonable and Prudent 33
Reduced Speed at Intersections, Crossing, Railroads, Curves, Hills,
Narrow or Winding Roadways 33
Residence District, Speed in 33
Slow Drivers 34
SPECIALLY CONSTRUCTED VEHICLES, Defined 1
SPECIAL MOBILE EQUIPMENT, Defined 1
SPILLING MATERIAL ON ROADWAY OR HIGHWAY 179
SPOTLIGHTS OR SPOT LAMPS 159
STALL PARKING 89
STAND OR STANDING (See also Parking and Stopping)
Angle, When Permitted 86
Blocking Traffic 90
Business, Outside of 83
Defined 1
Illegal Standing Vehicles, Removal by Officers 84
Narrow Streets 90; 91
Outside Business or Residence District 83
Parallel, Where Required 86

Residential, Outside of 83
Specified Places, Prohibited 85
STATE, Defined 1
STATIONARY EMERGENCY VEHICLE 61
STOP OR STOPPING, Defined 1
STOPPING (See also Parking and Standing)
Alley, Emerging From 80
Blocking Traffic 90
Building, Emerging From, Stop 80
Congested Places 95
Defined 1
Driveway, Emerging From, Stop 80
Outside Business or Residence District 83
Passengers, Stopping to Load or Unload 99
Signal Required 54
Specified Places, Prohibited 85
Stop Lamps 149
Stop Signs 59
Stop Signs, Obedience to 59
Two-Way Roadway 86
Yield Signs, Obedience to 59
STOP INTERSECTIONS, Entering 59
STOP LIGHTS OR LAMPS REQUIRED 149
STOP SIGN 59
STOP SIGNS, Obedience To 59
STREET BARRIERS 122
STREET OR HIGHWAY, Defined 1
STUDDED SNOW TIRES 178
SUN SCREENING 181
SUSPENSION OF A DRIVER'S LICENSE, Defined 1

-T-

TAG, Illegal 195
TAXICAB ZONES 99
TELEVISION RECEIVERS 176.2
TEMPORARY REGULATIONS 3
TEMPORARY TRAFFIC DIRECTION 4
TEXTING WHILE DRIVING 126.5
THROUGH HIGHWAY, Defined 1
TICKET 100; 199.1
TIME PARKING 97
TINTING 181
TIRE CHAINS, When May Be Used 178
TIRE, Defined 1
TIRES 178
TIRE SALE 178.1
TOWBAR, Defined 1

TOWED VEHICLES 180
TOY VEHICLE 136
TRAFFIC, Defined 1
TRAFFIC CONTROL DEVICES (SIGNAL)
Defined 1
Flashing 15
Interference With 18
Obedience to, Required 12
Presumptions of Legality 12
Signal Legends 13
Signs Must Be Displayed 12
State Highway Commission Manual Specifications 11
Unauthorized Signs, Signals or Markings 17
TRAFFIC CONTROL SIGNAL, Defined 1
TRAFFIC CONTROL SIGNAL PREEMPTION DEVICE
Defined 1
Possession of 22
TRAFFIC HAZARDS, Removal 126
TRAFFIC LANES 21
TRAILERS, Defined 1
TRAILERS, Drawbar Connections 180
TRAILERS, WHITE FLAG REQUIRED, When 180
TRAIN, Obedience To Signal 76
TRANSPORTING OPEN CONTAINER 106
TRANSPORTING HAZARDOUS MATERIAL 179.1
TRUCK-CAMPER 1; 178.2
TRUCK, Defined 1
TRUCK TRACTOR, Defined 1
TURNS 13; 49; 50; 58
TURNS AT INTERSECTIONS 48; 49; 56
TURN ON RED LIGHT 13
TURN SIGNALS 149
TURNS, Signals Required 149; 161

-U-

UNATTENDED MOTOR VEHICLES 93
UNLAWFUL RIDING 115
URBAN DISTRICT, Defined 1
U-TURNS 48; 50; 51

-V-

VEHICLES
Abandoned 93.1
All-Terrain 135.1
Animal-Drawn 7
Clinging to 130

Defined 1
Disabled 83; 93
Doors Opening 123
For Sale, When Parking Prohibited 88
Golf Carts 1; 135.4
Height, Weight, Length, Width 196.1
Junk 93
License Tag Required 195
Low-Speed ....1; 135.
Micro Utility Trucks 1; 135.5
Passenger, Defined 1
Recreational, Defined 1
Removal by Officer 84; 96
Specially Constructed, Defined 1
Stationary Emergency 61
Storing or Parking 93
Toy 136
Unattended 26; 107
Weight Limit on Bridges 196.2
Work-site Utility 135.3
VIEW OBSTRUCTED 108

-W-

WALKING 68; 74
WEIGHT of Vehicle 196.2
WEIGHT on Bridges 196.2
WINDOWS, One-Way Screening 181
WINDSHIELDS 177
WINDSHIELD WIPER 177
WRECKS, Debris Cleaned From Highway 112

-Y-

YARDS, Driving Across 125
YELLOW LIGHT 13
YELLOW FLASHING LIGHT 15
YIELD SIGNS, Obedience To 59

-Z-

12.04 OVERLAND PARK TRAFFIC ORDINANCE

Contents:

Article I. Definitions
12.04.001 Definitions.
Alcohol Concentration
Alcoholic Liquor

Alley or Alleyway
All-terrain Vehicle
Arterial Street
Authorized Emergency Vehicle
Autocycle
Bicycle
Bus
Business District
Cancellation of a Driver's License
Cereal Malt Beverage
Chief of Police
City or this City
City Traffic Engineer
Commission
Compression Release Engine Braking System
Controlled-Access Highway
Crosswalk
Department
Director
Division
Divided Highway
Drawbar
Driveaway-Towaway Operations
Driver
Driver's License
Electric-assisted Bicycle
Electric-assisted Scooter
Electric Personal Assistive Mobility Device
Essential Parts
Explosives
Farm Tractor
Flammable Liquid
Golf Cart
Governing Body
Gross Weight
Highway
House Trailer.
Identifying Numbers
Implement of Husbandry
Intersection
Intoxicating Liquor
Laned Roadway
Legal age for consumption of cereal malt beverage
License or License to Operate a Motor Vehicle
Litter
Low-speed Vehicle
Mail
Manufacturer
Metal Tire

Micro Utility Truck
Motorcycle
Motor-Driven Cycle
Motorized Bicycle
Motorized Wheelchair
Motor Home
Motor Vehicle
Nonhighway Tire
Nonresident
Nonresident's Operating Privilege
Official Time Standard
Official Traffic-Control Devices
Owner
Park or Parking
Parkway
Passenger Car
Passenger Vehicle
Pedestrian
Person
Person with a Disability
Pneumatic Tire
Pole Trailer
Police Officer
Private Road or Driveway
Queue Jump Lane
Railroad
Railroad Sign or Signal
Railroad Train
Recreational Vehicle
Recreational Off-Highway Vehicle
Registration
Residence District
Residential District
Revocation of Driver's License
Right-of-Way
Road Construction Zone
Roadway
Safety Hitch
Safety Zone
School Bus
School Crossing Guard
Secretary
Semi-trailer
Sidewalk
Solid Rubber Tire
Specially Constructed Vehicle
Special Mobile Equipment
Stand or Standing
State

Stop
Stop or Stopping
Street or Highway
Suspension of a Driver's License
Through Highway
Tow Bar
Traffic
Traffic-Control Signal
Traffic-Control Signal Preemption Device
Trailer
Transportation Network Company
Transportation Network Company Driver
Truck
Truck-Camper
Truck Tractor
Urban District
Vehicle
Waste Collection Vehicle
Work-site Utility Vehicle
Article II. Scope of Ordinance
12.04.002 Provisions of Chapter Refer to Vehicles Upon the Streets and Highways; Exceptions.
12.04.003 Emergency, Temporary and Experimental Regulations.
12.04.004 Authority of Police.
Article III. Obedience to and Effect of Traffic Laws
12.04.005 Required Obedience to Traffic Laws.
12.04.006 Obedience to Law Enforcement Officers.
12.04.007 Persons Riding Animals or Driving Animal-Drawn Vehicles.
12.04.008 Persons Working On Highways; Exceptions.
12.04.009 Public Officers and Employees to Obey Ordinance; Exceptions.
12.04.010 Authorized Emergency Vehicles.
Article IV. Traffic Signs, Signals & Markings
12.04.011 Manuals and Specifications for Traffic Control Devices.
12.04.012 Obedience to and Required Traffic-Control Devices; Presumption of Legality.
12.04.013 Traffic-Control Signal Legend.
12.04.014 Pedestrian-Control Signals.
12.04.015 Flashing Signals.
12.04.016 Lane-Direction Control Signals.
12.04.017 Display of Unauthorized Signs, Signals or Markings.
12.04.018 Interference With Official Traffic-Control Devices or Railroad Signs or Signals.
12.04.019 Designation of Crosswalks and Safety Zones.
12.04.020 Play Streets.
12.04.021 Traffic Lanes.
12.04.022 Possession of a Traffic-Control Signal Preemption Device.
Article V. Accidents and Accident Reports; Duties
12.04.023 Accident Involving Injury or Attended Vehicle or Property Damage; Penalty.
12.04.025 Duty of Driver to Give Certain Information after Accident; Failure to Provide Proof of Liability Insurance or Financial Security; Duty to Render Aid; Proof of Liability Insurance or Financial Security by Electronic Means, Restrictions.
12.04.026 Duty Upon Striking Unattended Vehicle or Other Property.

12.04.028 False Reports.
Article VI. Serious Traffic Offenses
12.04.029 Reckless Driving; Penalties.
12.04.030 Driving Under the Influence of Alcohol or Drugs; Penalties
12.04.030.05 Driving Commercial Motor Vehicle with .04 Alcohol Concentration or Under the Influence of Drugs; Penalties.
12.04.030.1 Preliminary Screening Test of Breath for Alcohol Concentration; Request by Officer.
12.04.031 Fleeing or Attempting to Elude a Police Officer.
12.04.031.1 Ignition Interlock Devices; Tampering.
Article VII. Speed Regulations
12.04.032 Duties of City Traffic Engineer.
12.04.033 Speed Limitations; Restrictions.
12.04.034 Minimum Speed Regulation.
12.04.035 Special Speed Limitation on Motor-Driven Cycle.
12.04.036 Charging Speed Violations.
12.04.037 Racing on Highways; "Drag Race" and "Racing" Defined.
Article VIII. Driving on Right Side of Roadway; Overtaking and Passing; Use of Roadway
12.04.038 Driving on Right Side of Roadway; Exceptions.
12.04.039 Passing Vehicles Proceeding in Opposite Directions.
12.04.040 Overtaking a Vehicle on the Left.
12.04.041 When Passing on the Right is Permitted.
12.04.042 Limitations on Overtaking on the Left.
12.04.043 Further Limitations on Driving on Left of Center of Roadway.
12.04.044 No-passing Zones.
12.04.044.1 Passing Emergency, Highway Construction and Maintenance Vehicles.
12.04.044.2 Passing a Waste Collection Vehicle.
12.04.044.3 Passing a Stationary Authorized Utility or Telecommunications Vehicle.
12.04.045 One-Way Roadways and Rotary Traffic Islands.
12.04.046 Driving on Roadways Laned for Traffic.
12.04.046.1 US 69 Express Toll Lanes
12.04.047 Following Too Closely.
12.04.048 Driving on Divided Highways; Left and U turns; Controlled-Access Highways.
Article IX. Turning and Starting and Signals on Stopping and Turning
12.04.049 Turning.
12.04.050 Right, Left and U-turns at Intersections: Obedience to.
12.04.051 U Turns, When No Signs; Where Prohibited.
12.04.052 Turning on Curve or Crest of Grade Prohibited.
12.04.053 Starting Parked Vehicle.
12.04.054 Turning Movements and Required Signals.
12.04.055 Signals by Hand and Arm or Signal Lamps.
12.04.056 Methods of Giving Signals.
Article X. Right-of-Way
12.04.057 Vehicles Approaching or Entering Intersection.
12.04.058 Vehicle Turning Left.
12.04.059 Stop Signs and Yield Signs.
12.04.060 Vehicle Entering Roadway.
12.04.061 Operation of Vehicles on Approach of Authorized Emergency Vehicles or When Approaching Stationary Emergency Vehicles.
12.04.062 Highway Construction and Maintenance.

Article XI. Pedestrians
12.04.063 Pedestrians; Obedience to Traffic-Control Devices and Traffic Regulations.
12.04.064 Pedestrians' Right-of-Way in Crosswalks; Control Signals.
12.04.065 Crossing at Other Than Crosswalks; Jaywalking.
12.04.066 Drivers to Exercise Due Care.
12.04.067 Pedestrians to Use Right Half of Crosswalks.
12.04.068 Pedestrians on Highways.
12.04.069 Standing Upon a Street or Highway.
12.04.070 Driving Through Safety Zone Prohibited.
12.04.071 Pedestrians Right-of-Way on Sidewalks.
12.04.072 Pedestrians Yield to Authorized Emergency Vehicles.
12.04.073 Blind Pedestrian Right-of-Way.
12.04.074 Pedestrian Under Influence of Alcohol or Drugs.
12.04.075 Bridge or Railroad Signals.
Article XII. Special Stops Required
12.04.076 Obedience to Signal Indicating Approach of Train.
12.04.077 All Vehicles Must Stop at Certain Railroad Grade Crossings.
12.04.078 Certain Vehicles Must Stop at All Railroad Grade Crossings.
12.04.079 Moving Heavy Equipment at Railroad Grade Crossing.
12.04.080 Emerging from Alley or Private Driveway or Building.
12.04.081 Overtaking and Passing School Bus.
12.04.082 Overtaking and Passing Church Bus or Day Care Program Bus.
12.04.082.1 Compliance with Lawful Order or Direction of Uniformed School Crossing Guards.
Article XIII. Stopping, Standing and Parking
12.04.083 Stopping, Standing or Parking Outside Business or Residence Districts.
12.04.084 Officers Authorized to Remove Vehicles.
12.04.085 Stopping, Standing or Parking Prohibited in Specified Places.
12.04.085.1 Parking Prohibited.
12.04.085.2 Parking in Certain Designated Areas Prohibited.
12.04.085.3 Parking in Designated Electric Vehicle Charging Area
12.04.086 Stopping or Parking on Roadways.
12.04.087 Accessible Parking For Persons With A Disability.
12.04.088 Parking for Certain Purposes Prohibited.
12.04.089 Parking Where Stalls.
12.04.090 Blocking Traffic; Narrow Streets; Stopping; When.
12.04.091 Parking on Narrow Streets; Signs.
12.04.092 Parking in Alley.
12.04.093 Parking Disabled and Other Vehicles.
12.04.093.1 Abandonment of Motor Vehicles.
12.04.094 Parking Adjacent to Schools; Signs.
12.04.095 Stopping or Parking in Hazardous or Congested Places; Signs.
12.04.096 Parking Prohibited at All Times in Designated Places.
12.04.097 Limited Time Parking Zones.
12.04.098 Commercial and Delivery Vehicles: Loading and Unloading; Blocking Traffic; Removal of Vehicle; Duty of Police Department.
12.04.098.1 Prohibitions Against Parking in Residential Districts.
12.04.099 Loading, Unloading or Special Zones.
12.04.100 Citation on Illegally Parked Vehicles.
12.04.101 Failure to Comply With Traffic Citation Attached to Parked Vehicle.

12.04.102 Presumption in Reference to Illegal Parking.
12.04.103 Inattentive Driving.
Article XIV. Miscellaneous Rules
12.04.104 Littering from Motor Vehicle.
12.04.105 Consumption of Intoxicating Liquor.
12.04.106 Transportation of Intoxicating Liquor.
12.04.107 Unattended Motor Vehicle; Ignition; Key and Brakes.
12.04.108 Obstruction of Driver's View or Driving Mechanism.
12.04.109 Coasting.
12.04.110 Following Fire Apparatus Prohibited.
12.04.111 Crossing Fire Hose.
12.04.112 Putting Glass, Etc., on Highway Prohibited.
12.04.113 Obstructing Traffic.
12.04.114 Snowmobile Operation Limited.
12.04.115 Unlawful Riding.
12.04.116 Driving Upon Sidewalk.
12.04.117 Limitations on Backing.
12.04.118 Driving Through or On Private Property to Avoid Traffic Control Devices.
12.04.119 Child Restraints.
12.04.119.1 Safety Belts.
12.04.120 Driving through Procession.
12.04.121 Military Forces.
12.04.122 Street Barriers.
12.04.123 Opening and Closing Vehicle Doors.
12.04.124 Riding in House Trailer Prohibited.
12.04.125 Driving Across Lawns, Sidewalks, Yards, Crops, Etc.
12.04.126 Removal of Traffic Hazards.
12.04.126.5 Texting While Driving.
12.04.126.6 Using Headphones in Vehicles.
Article XV. Operation of Bicycles, Motorized Bicycles, and Play Vehicles.
12.04.127 Effect of Regulations.
12.04.128 Traffic Laws Apply to Persons Riding Bicycles.
12.04.129 Riding on Bicycles; Seats; Riders Limited.
12.04.130 Clinging to Vehicles.
12.04.131 Riding on Roadways and Bicycle Paths.
12.04.132 Carrying Articles.
12.04.133 Lamps and Other Equipment on Bicycles.
12.04.134 Application of 12.04.127 to 12.04.133 to Motorized Bicycles.
12.04.135 Electric-Assisted Bicycles and Electric-Assisted Scooters, Traffic Law Application.
12.04.135.1 All-terrain Vehicles, Prohibited.
12.04.135.2 Low-Speed Vehicles.
12.04.135.3 Work-site Utility Vehicle.
12.04.135.4 Golf Carts Prohibited.
12.04.135.5 Micro Utility Trucks Prohibited.
12.04.136 Use of Roller Skates, Coasters, Roller Blades, Skateboards, Toy Vehicles and Similar Devices Restricted.
Article XVI. Special Rules for Motorcycles
12.04.137 Traffic Laws Apply to Persons Operating Motorcycles.
12.04.138 Riding on Motorcycles.

12.04.139 Operating Motorcycles on Roadways Laned for Traffic.
12.04.140 Clinging to Other Vehicles.
12.04.141 Motorcycle Footrests and Handlebars.
12.04.142 Equipment for Motorcycle Operator or Rider.
Article XVII. Lights, Brakes, Horns and Other Equipment
12.04.143 Scope and Effect of Regulations.
12.04.144 When Lighted Lamps Required; Visibility Distance and Mounted Height of Lamps.
12.04.145 Visibility Distance and Mounted Height of Lamps.
12.04.146 Head Lamps on Motor Vehicles.
12.04.147 Tail Lamps.
12.04.148 Reflectors.
12.04.149 Stop Lamps and Turn Signals.
12.04.150 Application of Succeeding Sections.
12.04.151 Additional Equipment Required on Certain Vehicles.
12.04.152 Color of Clearance Lamps, Identification Lamps, Side Marker Lamps, Backup Lamps and Reflectors.
12.04.153 Mounting of Reflectors, Clearance Lamps and Side Marker Lamps.
12.04.154 Visibility of Reflectors, Clearance Lamps, and Marker Lamps.
12.04.155 Obstructed Lights Not Required.
12.04.156 Lamps or Flags on Projecting Loads.
12.04.157 Lamps on Parked Vehicles.
12.04.158 Lamps on Other Vehicles and Equipment.
12.04.159 Spot Lamps and Auxiliary Lamps.
12.04.159.1 Lamps, Farm Tractor.
12.04.160 Authorized Emergency Vehicles.
12.04.161 Signal Lamps and Signal Devices.
12.04.162 Vehicular Hazard Warning Lights.
12.04.163 Additional Lighting Equipment.
12.04.164 Multiple-Beam Road-Lighting Equipment.
12.04.165 Use of Multiple-Beam Road-Lighting Equipment.
12.04.166 Single-beam Road-lighting Equipment Permitted on Certain Vehicles.
12.04.167 Alternate Road-lighting Equipment on Certain Vehicles; Limitations on Speed.
12.04.168 Number of Driving Lamps Required or Permitted.
12.04.169 Special Restrictions on Lamps.
12.04.170 School Buses.
12.04.171 Lighting Equipment and Warning Devices on Church Buses and Day Program Buses.
12.04.172 Highway Construction and Maintenance Vehicles.
12.04.173 Brakes; Performance Requirements.
12.04.174 Horns and Warning Devices.
12.04.174.1 Flares or Warning Devices; Vehicles Subject to Requirements; Use, When Required; Unlawful Acts; Compliance with Federal Requirements.
12.04.174.2 Display of Vehicular Hazard Warning Signal Lamps and Warning Devices by Certain Stopped or Disabled Vehicles.
12.04.175 Noise Prevention; Mufflers.
12.04.175.1 Compression Release Engine Braking System.
12.04.176 Mirrors.
12.04.176.1 Air Conditioning Equipment.
12.04.176.3 Safety Belts and Shoulder Harnesses.
12.04.177 Windshields Must Be Unobstructed and Equipped With Wipers; Eye Protection.

12.04.178 Restrictions as to Tire Equipment.
12.04.178.05 Wide-base Single Tires.
12.04.178.1 Unlawful Sale of Tires.
12.04.178.2 Safety Glazing Material Required.
12.04.179 Spilling Loads on Highways Prohibited; Bond, When Required.
12.04.179.1 Vehicles Transporting Hazardous Materials.
12.04.180 Trailers and Towed Vehicles; Drawbar Connections and Safety Hitch.
12.04.181 Sun Screening Devices and Other Applications Prohibited on Windshields, Certain Windows and Head lamps.
Article XVIII. Equipment on Motorcycles and Motor-Driven Cycles
12.04.182 Head Lamps.
12.04.183 Tail Lamps.
12.04.184 Reflectors.
12.04.185 Stop Lamps.
12.04.186 Multiple-Beam Road-Lighting Equipment.
12.04.187 Lighting Equipment for Motor-Driven Cycles.
12.04.188 Brake Equipment Required.
12.04.189 Performance Ability of Brakes.
12.04.189.1 Approval of Braking System by Secretary of Transportation.
12.04.190 Other Equipment.
Article XIX. Driver's License and Vehicle Tags
12.04.191 Driver's License.
12.04.191.1 Driver's License in Possession.
12.04.191.2 Driving in Violation of Restrictions
12.04.191.3 Driver's License - Change of Name/Address.
12.04.192 Driving While License is Canceled, Suspended or Revoked; Penalty.
12.04.192.1 Operation of a Motor Vehicle When a Habitual Violator.
12.04.192.2 Permitting Driving in Violation of K.S.A. 8-1014; Penalties.
12.04.193 Unauthorized Operator.
12.04.194 Unauthorized Minors.
12.04.195 Vehicle License; Illegal Tag.
12.04.195.1 Motor Vehicle Liability Insurance.
12.04.195.2 Display of License Plate.
12.04.196 Unlawful Use of License.
12.04.196.1 Vehicle Height, Weight, Length and Width.
12.04.196.1.7 Commercial Motor Vehicle Safety.
12.04.196.1.8 Unlawful Acts by Interstate Motor Fuel Users; Penalties.
12.04.196.2 Gross Weight Limits on Bridges.
12.04.196.3 Unlawful Use of Identification Card.
Article XX. Penalties Generally
12.04.197 Penalties.
12.04.198 Parties to a Violation.
12.04.199 Offenses by Persons Owning or Controlling Vehicles.
12.04.199.1 Citation Deemed Lawful Complaint.
Article XXI. Separability
12.04.200 Separability
12.04.200.1 Savings Clause

Article I. Definitions

12.04.001 Definitions.

The following words and phrases when used in this ordinance shall, for the purpose of this ordinance and other traffic ordinances, have the meanings respectively ascribed to them in this Section unless otherwise defined in the text of the Section.

Electric-assisted Scooter. Every self-propelled vehicle that has at least two wheels in contact with the ground, an electric motor, handlebars, a brake, and a deck that is designed to be stood upon when riding.

Residence District. The territory contiguous to and including a highway not comprising a business district when the property on such highway for a distance of 300 feet or more is improved, in the main, with residences or residences and buildings in use for business. *(See K.S.A. 8-1456)*

Transportation Network Company. A corporation, partnership, sole proprietorship or other entity operating in the City that uses a digital network to connect transportation network company riders to transportation network company drivers who provide prearranged rides. A transportation network company shall not be deemed to control, direct or manage the personal vehicles or transportation network company drivers that connect to its digital network, except where agreed to by written contract. *(See K.S.A. 8-2702(e))*

Transportation Network Company Driver. An individual who:

a. Receives connections to potential passengers and related services from a transportation network company in exchange for payment of a fee to the transportation network company; and

b. Uses a personal vehicle to provide services for riders matched through a digital network controlled by a transportation network company and receives, in exchange for providing the passenger a ride, compensation that exceeds the individual's cost to provide the ride. *(See K.S.A. 8-2702(f))*

Article II. Scope of Ordinance

12.04.002 Provisions of Chapter Refer to Vehicles Upon the Streets and Highways; Exceptions.

The provisions of this Chapter relating to the operation of vehicles refer exclusively to the operation of vehicles upon streets, highways, public property, and any location specifically designated in a particular Section contained in this Chapter except the provisions of Sections 12.04.023, 12.04.025, 12.04.026, 12.04.028, 12.04.029, 12.04.030; 12.04.030.05, 12.04.031, 12.04.033(a), 12.04.037, 12.04.060, 12.04.066, 12.04.080, 12.04.085(a)(12), 12.04.085(e), 12.04.087, 12.04.105, 12.04.106, 12.04.107, 12.04.111, 12.04.117, 12.04.118, 12.04.125, 12.04.138, 12.04.191, 12.04.192, and 12.04.196 shall also apply on privately-owned property and elsewhere throughout the City.

(History: Ord. TC-3444 §1, 2023; Ord. TC-1260,FFFF §2, 2022; Ord. TC-1260, BBBB §1, 2019; Ord. TC-1260,ZZZ §1, 2017; TC-1260,WWW §2, 2015; TTC-1260,TTT §2, 2012; TC-1260,III §1, 2007; TC-1260,XX §1, 2002; TC-1260 §2, 84)

12.04.003 Emergency, Temporary and Experimental Regulations.

The Chief of Police or City Traffic Engineer is hereby empowered to make regulations necessary to make effective the provisions of this and other traffic ordinances of the City, to establish no parking zones on special occasions to expedite traffic or for safety purposes, signs being properly posted, to make and enforce temporary or experimental regulations to cover emergencies or special conditions or to determine the advisability of permanent regulations for recommendation to the governing body, and test traffic-control devices under actual conditions of traffic. No temporary or experimental regulation shall remain in force for more than 90 days.

(History: Ord. TC-1260 §3, 84) (State Law: K.S.A. 8-2002)

12.04.004 Authority of Police.

Police officers of the City shall at all times be empowered to enforce the provisions of this and other traffic ordinances of this City and temporary and emergency rules and regulations of the Chief of Police, and may at any time direct and control traffic in person or by visible or audible signals: Provided, that in the event of fire, temporary

traffic congestion or other emergency, or to expedite the flow of traffic or to safeguard pedestrians, officers may direct traffic as conditions require notwithstanding the provisions of this ordinance and other traffic ordinances.
(History: Ord. TC-1260 §4, 84) (State Law: K.S.A. 8-2001 and K.S.A. 8-2002)

Article III. Obedience to and Effect of Traffic Laws

12.04.005 Required Obedience to Traffic Laws.

It is unlawful for any person to do any act forbidden or fail to perform any act required in this ordinance.
(History: Ord. TC-1260 §5, 84)

12.04.006 Obedience to Law Enforcement Officers.

No person shall willfully fail or refuse to comply with any lawful order or direction of any police officer invested by law with authority to direct, control or regulate traffic.
(History: Ord. TC-1260-FFFF §3, 2022; Ord. TC-1260 §6, 84) (State Law: K.S.A. 8-1503)

12.04.007 Persons Riding Animals or Driving Animal-Drawn Vehicles.

Every person riding an animal or driving any animal-drawn vehicle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this ordinance, except those provisions of this ordinance which by their very nature can have no application.
(History: Ord. TC-1260 §7, 84) (State Law: K.S.A. 8-1503)

12.04.008 Persons Working On Highways; Exceptions.

Unless specifically made applicable, the provisions of this ordinance, except those contained in 12.04.029 to 12.04.031, inclusive, shall not apply to persons, motor vehicles and equipment while actually engaged in work upon a highway, but shall apply to such persons and vehicles when traveling to or from such work.
(History: TC-1260 §8, 84) (State Law: K.S.A. 8-1505)

12.04.009 Public Officers and Employees to Obey Ordinance; Exceptions.

The provisions of this ordinance applicable to the drivers of vehicles upon the highways shall apply to the drivers of all vehicles owned or operated by the United States, this state or any county, city or any other political subdivision of the state, subject to such specific exceptions as are set forth in this ordinance.
(History: Ord. TC-1260 §9,84) (State Law: K.S.A. 8-2103)

12.04.010 Authorized Emergency Vehicles.

a. The driver of any authorized emergency vehicle when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law, or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.
b. The driver of an authorized emergency vehicle may:
    1. Park or stand, irrespective of the provisions of this ordinance.
    2. Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation.
    3. Exceed the maximum speed limits so long as he does not endanger life or property.
    4. Disregard regulations governing direction of movement or turning in specified directions.
    5. Proceed through toll booths on roads or bridges without stopping for payment of tolls, but only after slowing down as may be necessary for safe operation and the picking up or returning of toll cards.
c. The exemptions herein granted to an authorized emergency vehicle shall apply only when such vehicle is making use of an audible signal meeting the requirements of 12.04.174 and visual signals meeting the requirements of 12.04.160, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

d. The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect the driver from the consequences of his reckless disregard for the safety of others.

(History: Ord. TC-1260 §10, 84) (State Law: K.S.A. 8-1506)

Article IV. Traffic Signs, Signals & Markings

12.04.011 Manuals and Specifications for Traffic Control Devices.

All traffic control devices shall conform to the manual and specifications as adopted by the state department of transportation.

(History: Ord. TC-1260,FFFF §4, 2022; Ord. TC-1260 §11, 84) (State Law: K.S.A. 8-2003)

12.04.012 Obedience to and Required Traffic-Control Devices; Presumption of Legality.

a. The driver of any vehicle shall obey the instructions of any official traffic-control device applicable thereto placed in accordance with the provisions of this ordinance, unless otherwise directed by a police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this ordinance.

b. No provision of this ordinance for which official traffic-control devices are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official device is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that official traffic-control devices are required, such section shall be effective even though no devices are erected or in place.

c. Whenever official traffic-control devices are placed in position approximately conforming to the requirements of this ordinance, such devices shall be presumed to have been so placed by the official act or direction of lawful authority, unless the contrary shall be established by competent evidence.

d. Any official traffic-control device placed pursuant to the provisions of this ordinance and purporting to conform to the lawful requirements pertaining to such devices shall be presumed to comply with the requirements of this ordinance, unless the contrary shall be established by competent evidence.

(History: Ord. TC-1260 §12, 84) (State Law: K.S.A. 8-1507)

12.04.013 Traffic-Control Signal Legend.

Whenever traffic is controlled by traffic-control signals exhibiting different colored lights, or colored lighted arrows, successively one at a time or in combination, only the colors green, red and yellow shall be used, except for special pedestrian signals carrying a word, numeric or symbolic legend, and said lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

a. **Green Indication.**

1. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left, unless a sign at such place prohibits either such turn; but vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.
2. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may enter the intersection cautiously only to make the movement indicated by such arrow, or such other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.
3. Unless otherwise provided by a pedestrian-control signal, as provided in Section 12.04.014, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

b. **Steady Yellow Indication.**

1. Vehicular traffic facing a steady circular yellow or yellow arrow signal is thereby warned that the related green movement is being terminated or that a red indication will be exhibited immediately thereafter when vehicular traffic shall not enter the intersection.
2. Pedestrians facing a steady circular yellow or yellow arrow signal, unless otherwise directed by a pedestrian-control signal as provided in Section 12.04.014, are thereby advised that there is insufficient time to cross the roadway before a red indication is shown and no pedestrian shall then start to cross the roadway.

c. **Flashing Yellow Arrow Indication.**

1. Vehicular traffic facing a flashing yellow arrow signal is thereby warned that opposing traffic has the right-of-way and that left turns may be made past such signal only with caution.

d. **Steady Red Indication**.

1. Vehicular traffic facing a steady circular red or red arrow signal alone shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection or if none, then before entering the intersection, and shall remain standing until an indication to proceed is shown, except as provided in paragraphs (2), (3) and (4) of this subsection. Any turn provided for in said paragraphs (2), (3) and (4) shall be governed by the applicable provisions of Section 12.04.049.
2. Unless a sign is in place prohibiting a turn, vehicular traffic facing a steady circular red or red arrow signal may cautiously enter the intersection to make a right turn after stopping as required by paragraph (1) of this subsection. After stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection or junction of two roadways. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.
3. Unless a sign is in place prohibiting a turn, vehicular traffic upon a roadway restricted to one-way traffic facing a steady red signal at the intersection of such roadway with another roadway restricted to one-way traffic which is proceeding to the left of such vehicular traffic, may cautiously enter the intersection to make a left turn after stopping as required by paragraph (1) of this subsection. After stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time such driver is moving across or within the intersection or junction of roadways. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.
4. The driver of a motorcycle or a person riding a bicycle facing any steady red signal, which fails to change to a green light within a reasonable period of time because of a signal malfunction or because the signal has failed to detect the arrival of the motorcycle or bicycle because of its size or weight, shall have the right to proceed subject to the rules stated herein. After stopping, the driver or rider shall yield the right-of-way to any vehicle in or near the intersection or approaching on a roadway so closely as to constitute an immediate hazard during the time such driver or rider is moving across or within the intersection or junction of roadways. Such motorcycle or bicycle traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.
5. Unless otherwise directed by a pedestrian-control signal as provided in Section 12.04.014, pedestrians facing a steady circular red or red arrow signal alone shall not enter the roadway.

e. **Steady White Horizontal Bar.** Transit buses utilizing a queue jump lane and facing a steady white horizontal bar indication shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection or if none, then before entering the intersection, and shall remain standing until an indication to proceed is shown.

f. **Steady White Vertical Bar.** Transit buses utilizing a queue jump lane and facing a steady white vertical bar indication may proceed forward past such signal and move into the adjacent through lane only with caution.

g. In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this Section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

(History: Ord. TC-1260,SSS §2, 2012; TC-1260,RRR §1, 2011; TC-1260,KK §1, 95; TC-1260JJ §2, 94; TC-1260 §13, 84) (State Law: K.S.A. 8-1508)

12.04.014 Pedestrian-Control Signals.

Whenever special pedestrian-control signals exhibiting the words "walk" or "don't walk" or symbols of "walking person" or "upraised palm" are in place, such signals shall indicate as follows:

a. **Flashing or steady walk or walking person**. Pedestrians facing such signal may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

b. **Flashing or steady don't walk or upraised palm**. No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed crossing on the "walk" or "walking person" signal shall proceed to a sidewalk or safety island while the "don't walk" or unpraised palm signal is showing.

(History: Ord. TC-1260,FFFF §5, 2022; Ord. TC-1260,KK §2, 95; TC-1260,C §1, 86; TC-1260 §14, 84) (State Law: K.S.A. 8-1509)

12.04.015 Flashing Signals.

Whenever an illuminated flashing red or yellow light is used in a traffic signal or with a traffic sign, it shall require obedience by vehicular traffic as follows:

a. **Flashing Red (Stop Signal).** When a circular red lens or red arrow is illuminated with rapid intermittent flashes, drivers of vehicles shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

b. **Flashing Yellow (Caution Signal).** When a circular yellow lens or yellow arrow is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

This Section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossing shall be governed by the rules as set forth in Section 12.04.076.

(History: Ord. TC-1260,SSS §3, 2012; TC-1260 §15, 84) (State Law: K.S.A. 8-1510)

12.04.016 Lane-Direction Control Signals.

When lane-direction control signals are placed over the individual lanes of a street or highway, such signals shall indicate and apply to drivers of vehicles as follows:

a. **Green indication**. Vehicular traffic may travel in any lane over which a green signal is shown.

b. **Steady yellow indication**. Vehicular traffic is thereby warned that a lane control change is being made.

c. **Steady red indication**. Vehicular traffic shall not enter or travel in any lane over which a red signal is shown.

d. **Flashing yellow indication**. Vehicular traffic may use the lane only for the purpose of approaching and making a left turn.

(History: Ord. TC-1260, KK §3, 95; TC-1260 §16, 84) (State Law: K.S.A. 8-1511)

12.04.017 Display of Unauthorized Signs, Signals or Markings.

a. No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic-control device or railroad sign or signal, or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal.

b. No person shall place or maintain nor shall any public authority permit upon any highway any official traffic-control device bearing thereon any commercial advertising, except for business signs included as part of official motorist service panels or roadside area information panels approved by the secretary of transportation.

c. This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

d. Every such prohibited sign, signal or marking is hereby declared to be a public nuisance and the governing body is hereby empowered to remove the same or cause it to be removed without notice.

(History: Ord. TC-1260,KK §4, 95; TC-1260 §17, 84) (State Law: K.S.A. 8-1512)

12.04.018 Interference With Official Traffic-Control Devices or Railroad Signs or Signals.

No person, without lawful authority, shall attempt to or in fact alter, deface, injure, knock down, or remove any official traffic-control device or any railroad sign or signal or any inscription, shield, or insignia thereon, or any other part thereof.

(History: Ord. TC-1260 §18, 84) (State Law: K.S.A. 8-1513)

12.04.019 Designation of Crosswalks and Safety Zones.

The City Traffic Engineer may designate and maintain by appropriate devices, marks or lines on the surface of the roadway, crosswalks at intersections where in the City Traffic Engineer's opinion there is particular danger to pedestrians crossing the roadway and at such other places as may be deemed necessary. The City Traffic Engineer may also establish and mark safety zones of such kind and character and at such places as may be deemed necessary for the protection of pedestrians.

(History: Ord. TC-1260,FFFF §6, 2022; Ord. TC-1260,C §1,86; TC-1260 §19, 84) (State Law: K.S.A. 8-2001 and K.S.A. 8-2006)

See: 12.04.070

12.04.020 Play Streets.

a. The Chief of Police shall have authority to declare any street or part thereof a play street and to place appropriate signs or devices in the roadway indicating and helping to protect the same.

b. Whenever authorized signs are erected indicating any street or part thereof as a play street, no person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such closed area, and then any such driver shall exercise the greatest care in driving upon any such street or portion thereof.

(History: Ord. TC-1260 §20, 84) (State Law: K.S.A. 8-2002(a)(17)

12.04.021 Traffic Lanes.

The City Traffic Engineer is hereby authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is deemed necessary.

(History: Ord. TC-1260 § 21, 84)

12.04.022 Possession of a Traffic-Control Signal Preemption Device.

a. No person shall knowingly possess a traffic-control signal preemption device.

b. The provisions of this section shall not apply to the operator, passenger or owner of any of the following authorized emergency vehicles in the course of such person’s emergency duties:

1. Publicly owned fire department vehicles;
2. Publicly owned police vehicles; or
3. Motor vehicles operated by ambulance services permitted by the emergency medical services board under the provisions of K.S.A. 65-6101 et seq., and amendments thereto.

c. Possession of a Traffic-Control Signal Preemption Device is a class B violation.

(History: Ord. TC-1260,FFFF §7, 2022; Ord. TC-1260,BBB §2, 2004) (State Law: K.S.A. 21-6324)

Article V. Accidents and Accident Reports; Duties

12.04.023 Accident Involving Injury or Attended Vehicle or Property Damage; Penalty.

a. The driver of any vehicle involved in an accident resulting in injury to a person, or damage to any attended vehicle or property, shall immediately stop such vehicle at the scene of such accident, or as close thereto as possible, but shall then immediately return to and in every event shall remain at the scene of the accident until the driver has fulfilled the requirements of Section 12.04.025.

b. A person convicted of a violation of this Section involving failure to stop and remain at the scene of an accident resulting in total property damaged of $1,000.00 or over or injury to any person shall be punished by imprisonment for not more than one year or a fine not to exceed $2,500.00 or both such fine and imprisonment. If no injury to a person results or total property damages are less than $1,000.00, the person shall be guilty of a misdemeanor and, upon conviction, shall be punished as provided in K.S.A. 8-2116, and amendments thereto. The Municipal Court does not have jurisdiction to hear cases involving failure to stop and remain at the scene of an accident involving great bodily harm to any person or death of any person or any other felony violation of K.S.A. 8-1602, and amendments thereto. Violations related to such cases must be charged in the Johnson County District Court.

c. The driver shall comply with the provisions of Section 12.04.113(b), and amendments thereto.

(History: Ord. TC-1260,RRR §2, 2011; TC-1260,FFF §2, 2006; TC-1260 §22, 84) (State Law: K.S.A. 8-254 and K.S.A. 8-1602)

See: 12.04.002

12.04.025 Duty of Driver to Give Certain Information after Accident; Failure to Provide Proof of Liability Insurance or Financial Security; Duty to Render Aid; Proof of Liability Insurance or Financial Security by Electronic Means, Restrictions.

a. 1. The driver of any vehicle involved in an accident resulting in injury to or death of any person, or damage to any attended vehicle or property, shall give such driver's name, address, and the registration number of the vehicle such driver is driving and upon request shall exhibit such driver's license or permit to drive, the name of the company with which there is in effect a policy of motor vehicle liability insurance covering the vehicle involved in the accident and the policy number of such policy to any person injured in such accident or to the driver or occupant of or person attending any vehicle or other property damaged in such accident, and shall give such information and upon request exhibit such license or permit and the name of the insurer and policy number to any police officer at the scene of the accident or who is investigating the accident.

2. Such driver, insofar as possible, shall immediately make efforts to determine whether any person involved in such accident was injured or killed, and shall render to any person injured in such accident reasonable assistance, including the carrying, or the making of arrangements for the carrying of such person to a physician, surgeon, or hospital for medical or surgical treatment if it is apparent that such treatment is necessary, or if such carrying is requested by the injured person.

b. If no police officer is present, the driver of any vehicle involved in such accident, or any occupant of such vehicle 18 years of age or older, shall immediately report such accident, by the quickest available means of communication, to the nearest office of a duly authorized police authority if:

1. There is apparently property damage of $1,000.00 or more;

2. Any person involved in the accident is injured or killed; or

3. The persons specified in subsection (a) are not present or in condition to receive such information.

c. Unless the insurance company subsequently submits an insurance verification form indicating that insurance was not in force, no person charged with failing to provide the name of such person's insurance company and policy number as required in subsection (a), shall be convicted if such person produces in court, within 10

days of the date of arrest or of issuance of the citation, evidence of financial security for the motor vehicle operated, which was valid at the time of arrest or of issuance of the citation. For the purpose of this subsection, evidence of financial security shall be provided by a policy of motor vehicle liability insurance, an identification card or certificate of insurance issued to the policyholder by the insurer which provides the name of the insurer, the policy number, make and year of the vehicle and the effective and expiration dates of the policy, or a certificate of self-insurance signed by the Commissioner of Insurance. Such evidence also may be produced by displaying on a cellular phone or other type of portable electronic device evidence of financial security required by this subsection. Any person to whom such evidence of financial security is displayed shall view only such evidence of financial security. Such person shall be prohibited from viewing any other content or information stored on such cellular phone or other portable electronic devices. Upon the production in court of evidence of financial security, the court shall record the information displayed thereon on the insurance verification form prescribed by the Secretary of Revenue, immediately forward such form to the Department of Revenue, and stay any further proceedings on the matter pending a request from the prosecuting attorney that the matter be set for trial. Upon receipt of such form the Department shall mail the form to the named insurance company for verification that insurance was in force on the date indicated on the form. It shall be the duty of insurance companies to notify the Department within 30 calendar days of the receipt of such forms of any insurance that was not in force on the date specified. Upon return of any form to the Department indicating that insurance was not in force on such date, the Department shall immediately forward a copy of such form to the office of the prosecuting attorney. Receipt of any completed form indicating that insurance was not in effect on the date specified shall be prima facie evidence of failure to provide proof of financial security and a violation of this Section. A request that the matter be set for trial shall be made immediately following the receipt by the prosecuting attorney of a copy of the form from the Department of Revenue indicating that insurance was not in force. Any charge hereunder shall be dismissed if no request for a trial setting has been made within 60 days of the date evidence of financial security was produced in court.

d. If the owner of any vehicle that has been involved in a reportable accident while the vehicle was being driven or was under the physical control of any person other than the owner has reason to believe the accident has not already been reported to the Police Department, the owner shall report the accident to police forthwith upon discovery or knowledge of such accident. Notwithstanding this conditional duty to report the accident, the owner shall cooperate with any police investigation and disclose to the Police Department all known information about the driver of the vehicle at the time of the accident, or any other relevant information.

(History: Ord. TC-1260,FFFF §8, 2022; Ord. TC-1260,RRR §3, 2011; TC-1260 §24, 84) (State Law: K.S.A. 8-1604 and K.S.A. 8-254)

See: 12.04.002

12.04.026 Duty Upon Striking Unattended Vehicle or Other Property.

a. The driver of any vehicle which collides with or is involved in an accident with any vehicle or other property which is unattended, resulting in any damage to such other vehicle or property, shall immediately stop and shall then and there either locate and notify the operator or owner of such vehicle or other property of such driver's name, address and the registration number of the vehicle such person was driving, or shall attach securely in a conspicuous place in or on such vehicle or other property a written notice giving such driver's name, address and the registration number of the vehicle such person was driving, and without unnecessary delay shall notify the Police Department.

b. If possible, the driver shall comply with the provisions of Section 12.04.113(b), and amendments thereto.

c. If the owner of any vehicle that has been involved in a reportable accident while the vehicle was being driven or was under the physical control of any person other than the owner has reason to believe the accident has not already been reported to the Police Department, the owner shall report the accident to police forthwith upon discovery or knowledge of such accident. Notwithstanding this conditional duty to report the accident, the owner shall cooperate with any police investigation and disclose to the Police Department all known information about the driver of the vehicle at the time of the accident, or any other relevant information.

(History: Ord. TC-1260,RRR §4, 2011; TC-1260,PPP §3, 2009; TC-1260 §25, 84) (State Law: K.S.A. 8-1604 and K.S.A. 8-254)

See: 12.04.002

12.04.028 False Reports.

A person shall not give information in oral or written reports, as required in these ordinances, knowing or having reason to believe that such information is false.

(History: Ord. TC-1260,FFFF §9, 2022; Ord. TC-1260 §27, 84) (State Law: K.S.A. 8-1608)

See: 12.04.002

Article VI. Serious Traffic Offenses

12.04.029 Reckless Driving; Penalties.

a. Any person who drives any vehicle in willful or wanton disregard for the safety of persons or property is guilty of reckless driving.

b. Upon a first conviction of a violation of this section a person shall be sentenced to not less than five days nor more than 90 days' imprisonment or by a fine of not less than $25 nor more than $500, or by both such fine and imprisonment. On a second or subsequent conviction of a violation of this section, a person shall be sentenced to not less than 10 days nor more than six months' imprisonment, or fined not less than $50 nor more than $500 or both such fine and imprisonment.

(History: Ord. TC-1260 §28, 84) (State Law: K.S.A. 8-1566)

See: 12.04.002

12.04.030 Driving Under the Influence of Alcohol or Drugs; Penalties

a. Driving under the influence is operating or attempting to operate any vehicle within this City while:

1. The alcohol concentration in the person’s blood or breath as shown by any competent evidence, including other competent evidence as defined in paragraph (1) of subsection (f) of K.S.A. 8-1013, and amendments thereto, is .08 or more;
2. The alcohol concentration in the person’s blood or breath, as measured within three hours of the time of operating or attempting to operate a vehicle, is .08 or more;
3. Under the influence of alcohol to a degree that renders the person incapable of safely driving a vehicle;
4. Under the influence of any drug or combination of drugs to a degree that renders the person incapable of safely driving a vehicle;
5. Under the influence of a combination of alcohol and any drug or drugs to a degree that renders the person incapable of safely driving a vehicle.

b.

1. On a first conviction of a violation of this Section, a person shall be sentenced to not less than 48 consecutive hours nor more than six months’ imprisonment, or in the court’s discretion 100 hours of public service, and fined not less than $750.00 nor more than $1,000.00.
2. On a second conviction of a violation of this Section, a person shall be sentenced to not less than 90 days nor more than one year’s imprisonment and fined not less than $1,250.00 nor more than $1,750.00. The following conditions shall apply to such sentence:

A. As a condition of any probation granted under this subsection, the person shall serve at least 120 hours of confinement. The hours of confinement shall include at least 48 hours of imprisonment and otherwise may be served by a combination of: imprisonment; a work release program, if such work release program requires such person to the confinement at the end of each day in the work release program; or a house arrest program pursuant to K.S.A. 21-6609, and amendments thereto;

B.

1. If the person is placed into a work release program or placed under a house arrest program for any portion of the minimum 120 hours of confinement mandated by this subsection, the person shall receive hour-for-hour credit for time served in such program until the minimum sentence is met. If the person is placed into a work release program or placed under a house arrest program for more than the minimum of 120 hours of confinement mandated by this subsection, the person shall receive hour-for-hour credit for time served in such program until the minimum of 120 hours of confinement is completed, and thereafter, the person shall receive day-to-day credit for time served in such program unless otherwise ordered by the court; and
2. When in a work release program, the person shall only be given credit for the time served in confinement at the end of and continuing the beginning of the person's work day. When under a house arrest program, the person shall be monitored by an electronic monitoring device that verifies the person's location and shall only be given credit for the time served within the boundaries of the person's residence;

3. On a third conviction of a violation of this Section, a person shall be sentenced to not less than 90 days nor more than one year's imprisonment and fined not less than $1,750.00 nor more than $2,500.00. The following conditions shall apply to such sentence:

A. As a condition of any probation granted under this subsection, the person shall serve at least 30 days of confinement. After at least 48 consecutive hours of imprisonment, the remainder of the period of confinement may be served by a combination of: imprisonment; a work release program, if such work release program requirements such person to return to the confinement at the end of each day in the work release program; or a house arrest program pursuant to K.S.A. 21-6609, and amendments thereto; and

B.

1. If the person is placed into a work release program or placed under a house arrest program for any portion of the minimum of 30 days of confinement mandated by this subsection, the person shall receive hour-for-hour credit for time served in such program for the first 240 hours of confinement, and thereafter, the person shall receive day-for-day credit for time served in such program unless otherwise ordered by the court; and
2. When in a work release program, the person shall only be given credit for the time served in confinement at the end of and continuing to the beginning of the person's work day. When under a house arrest program, the person shall be monitored by an electronic monitoring device that verifies the person's location and shall only be given credit for the time served within the boundaries of the person's residence;

c. In addition, for a third conviction of a violation of this Section, the person shall be placed on supervision for a mandatory one-year period of supervision in accordance with K.S.A. 8-1567(b)(3), and amendments thereto, which such period of supervision shall not be reduced. An offender for whom a warrant has been issued by the court alleging a violation of such supervision shall be considered a fugitive from justice if it is found that the warrant cannot be served. If it is found the offender has violated provisions of this supervision, the court shall determine whether the time from the issuing of the warrant to the date of the court's determination of an alleged violation, or any part of it, shall be counted as time served on supervision. Any violation of the conditions of such supervision may subject such person to revocation of supervision and imprisonment in jail for the remainder of the period of imprisonment, the remainder of the supervision period, or any combination or portion thereof. The term of supervision may be extended at the court's discretion beyond one year, and any violation of the conditions of such extended term of supervision may subject such person to the revocation of supervision and imprisonment in jail of up to the remainder of the original sentence, not the term of the extended supervision.

d. In addition, prior to sentencing for any conviction, the court shall order the person to participate in an alcohol and drug evaluation conducted by a provider in accordance with K.S.A. 8-1008, and amendments thereto.

The person shall be required to follow any recommendation made by the provider after such evaluation, unless otherwise ordered by the court.

e. In addition, the court is authorized to order that any convicted person pay restitution to any victim who suffered loss due to the violation for which the person was convicted.

f. Any person convicted of violating this Section who had one or more children under the age of 18 years in the vehicle at the time of the offense shall have such person's punishment enhanced by one month of imprisonment. This imprisonment must be served consecutively to any other minimum mandatory penalty imposed for a violation of this Section. Any enhanced penalty imposed shall not exceed the maximum sentence allowable by law. During the service of the enhanced penalty, the judge may order the person on house arrest, work release or other conditional release.

g. If a person is charged with a violation of this Section involving drugs, the fact that the person is or has been entitled to use the drug under the laws of this state shall not constitute a defense against the charge.

h. The court may establish the terms and time for payment of any fines, fees, assessments and costs imposed pursuant to this Section. Any assessment and costs shall be required to be paid not later than 90 days after imposed, and any remainder of the fine shall be paid prior to the final release of the defendant by the court.

i.

1. In lieu of payment of a fine imposed pursuant to this Section, the court may order that the person perform community service specified by the court. The person shall receive a credit on the fine imposed in an amount equal to $5.00 for each full hour spent by the person in the specified community service. The community service ordered by the court shall be required to be performed not later than one year after the fine is imposed or by an earlier date specified by the court. If by the required date the person performs an insufficient amount of community service to reduce to zero the portion of the fine required to be paid by the person, the remaining balance of the fine shall become due on that date.
2. The court may, in its discretion, waive any portion of a fine imposed pursuant to this section, except the $250.00 required to be remitted to the State Treasurer, upon a showing that the person successfully completed court ordered education or treatment.

j. Upon the filing of a complaint, citation or notice to appear alleging a person has violated this Section, and prior to conviction thereof, the City Attorney shall request and shall receive from the (1) Division of Vehicles a record of all prior convictions obtained against such person for any violations of any of the motor vehicle laws of this state, and (2) Kansas Bureau of Investigation Central Repository all criminal history record information concerning such person.

k. If the elements of the violation are the same as a felony violation of K.S.A. 8-1567 (Driving Under the Influence), and amendments thereto, the City Attorney shall refer the violation to the Johnson County District Attorney for prosecution.

l. The court shall electronically report every conviction of a violation of this Section and every diversion agreement entered into in lieu of further criminal proceedings on a complaint alleging a violation of this Section to the Division including any finding regarding the alcohol concentration in the offender's blood or breath. Prior to sentencing under the provisions of this Section, the court shall request and shall receive from the Division a record of all prior convictions obtained against such person for any violations of any of the motor vehicle laws of this state.

m. For the purpose of determining whether a conviction is a first, second, third, fourth or subsequent conviction in sentencing under this Section:

1. Convictions for a violation of this Section, K.S.A. 8-1567, and amendments thereto, or a violation of an ordinance of any city or resolution of any county that prohibits the acts that this Section prohibits, or entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging any such violations, shall be taken into account, but only convictions or diversions occurring on or after July 1, 2001. Nothing in this provision shall be construed as preventing any court from considering any

convictions or diversions occurring during the person's lifetime in determining the sentence to be imposed within the limits provided for a first, second, third, fourth or subsequent offense;

2. Any convictions for a violation of the following Sections occurring during a person's lifetime shall be taken into account:
    A. Driving a commercial motor vehicle under the influence, K.S.A. 8-2,144, and amendments thereto;
    B. Operating a vessel under the influence of alcohol or drugs, K.S.A. 32-1131, and amendments thereto;
    C. Involuntary manslaughter while driving under the influence of alcohol or drugs, K.S.A. 21-3442, prior to its repeal, or K.S.A. 21-5405(a)(3) or (a)(5) and amendments thereto;
    D. Aggravated battery as described in K.S.A. 21-5413(b)(3) or (b)(4), and amendments thereto; and
    E. Aggravated vehicular homicide, K.S.A. 21-3405a, prior to its repeal, or vehicular battery, K.S.A. 21-3405b, prior to its repeal, if the crime was committed while committing a violation of K.S.A. 8-1567 (Driving Under the Influence), and amendments thereto;
3. "Conviction" includes:
    A. Entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging a violation of an offense described in subsection (m) (2); and
    B. Conviction of a violation of an ordinance of a city in this state, a resolution of a county in this state or any law of another jurisdiction that would constitute an offense that is comparable to the offense described in subsection (m) (1) or (m) (2);
4. Multiple convictions of any crime described in subsection (m)(1) or (m)(2) arising from the same arrest shall only be counted as one conviction;
5. It is irrelevant whether an offense occurred before or after convictions for a previous offense; and
6. A person may enter into a diversion agreement in lieu of further criminal proceedings for a violation of K.S.A. 8-1567 (Driving Under the Influence), and any amendments thereto, this Section or any Section which prohibits the acts of this Section, and amendments thereto, only once during the person's lifetime.
7. For the purposes of determining whether an offense is comparable, the following shall be considered: (1) The name of the out-of-jurisdiction offense; (2) the elements of the out-of-jurisdiction offense; and (3) whether the out-of-jurisdiction offense prohibits similar conduct to the conduct prohibited by the closest approximate Kansas offense.

n. No plea bargaining agreement shall be entered into nor shall any judge approve a plea bargaining agreement entered into for the purpose of permitting a person charged with a violation of this Section to avoid the mandatory penalties established by this Section. For the purpose of this subsection, entering into a diversion agreement pursuant to K.S.A. 12-4413 *et seq*., and any amendments thereto, or K.S.A. 22-2906 *et seq*., and amendments thereto, shall not constitute plea bargaining. This subsection shall not be construed to prohibit an amendment or dismissal of any charge where the admissible evidence is not sufficient to support a conviction beyond a reasonable doubt.

o. The alternatives set out in subsection (a) may be pleaded in the alternative, and the City may, but shall not be required to, elect one or more of such alternatives prior to submission of the case to the fact finder.

p. It shall not be a defense to any prosecution under this Section that the person did not understand any written or oral notice required under the laws of this state because of any condition produced by the person's voluntary intoxication or by injury resulting from that intoxication.

q. For the purpose of this ordinance:
    1. "Imprisonment" includes any restrained environment in which the court and law enforcement agency intend to retain custody and control of a defendant and such environment has been approved by the Governing Body of the City; and
    2. "Drug" includes toxic vapors as such term is defined at K.S.A. 21-5712, and amendments thereto.

(History: Ord. No. TC-3428 §1, 2023; Ord. TC-1260,FFFF §10, 2022; Ord. TC-1260, AAAA §2, 2018; TC-1260,VVV §1, 2014; TC-1260,UUU §1, 2013; TC-1260,TTT §3, 2012; TC-1260,RRR, §5, 2011; TC-1260,PPP, §4, 2009; TC-

1260,KKK, §1, 2007; TC-1260,JJJ, §2, 2007; TC-1260YY, §1, 2003; TC-1260WW, §2, 2002; TC-1260VV, §1, 2001; TC-1260QQ, §1, 98; TC-1260PP, §1, 98; TC-1260MM §2, 96; TC-1260LL §1, 96; TC-1260GG §1, 93; TC-1260FF §1, 93; TC-1260Z §1, 91; TC-1260W §1, 90; TC-1260S §1, 89; TC-1260J §1, 88; TC-1260I §1, 87; TC-1260A §2, 85; TC-1260 § 29, 84) (State Law: K.S.A. 8-1567)

12.04.030.05 Driving Commercial Motor Vehicle with .04 Alcohol Concentration or Under the Influence of Drugs; Penalties.

a. Driving a commercial motor vehicle under the influence is operating or attempting to operate any commercial motor vehicle, as defined in K.S.A. 8-2,128, and amendments thereto, within this City while:
   1. The alcohol concentration in the person's blood or breath, as shown by any competent evidence, including other competent evidence, as defined in K.S.A. 8-1013(f)(1), and amendments thereto, is .04 or more;
   2. The alcohol concentration in the person's blood or breath, as measured within three hours of the time of driving a commercial motor vehicle, is .04 or more; or
   3. Committing a violation of Section 12.04.030(a).

b.
   1. Upon a first conviction of a violation of this Section, a person shall be sentenced to not less than 48 consecutive hours nor more than six months' imprisonment, or in the court's discretion, 100 hours of public service, and fined not less than $750.00 nor more than $1,000.00.
   2. On a second conviction of a violation of this Section, a person shall be sentenced to not less than 90 days nor more than one years' imprisonment and fined not less than $1,250.00 nor more than $1,750.00. The following conditions shall apply to such sentence:
      A. As a condition of any probation granted under the subsection, the person shall serve at least 120 hours of confinement. The hours of confinement shall include at least 48 hours of imprisonment and otherwise may be served by a combination of: imprisonment; a work release program, if such work release program requires such person to return to the confinement at the end of each day in the work release program; or a house arrest program pursuant to K.S.A. 21-6609, and amendments thereto; and
      B.
         1. If the person is placed into a work release program or placed under a house arrest program for any portion of the minimum of 120 hours of confinement mandated by this subsection, the person shall receive hour-for-hour credit for time served in such program until the minimum sentence is met. If the person is placed into a work release program or placed under a house arrest program for more than the minimum of 120 hours of confinement mandated by this subsection, the person shall receive hour-for-hour credit for time served in such program until the minimum of 120 hours of confinement is completed, and thereafter, the person shall receive day-for-day credit for time served in such program unless otherwise ordered by the court; and
         2. When in a work release program, the person shall only be given credit for the time served in confinement at the end of and continuing to the beginning of the person's work day. When under a house arrest program, the person shall be monitored by an electronic monitoring device that verifies the person's location and shall only be given credit for the time served within the boundaries of the person's residence.
   3. In addition, prior to sentencing for any conviction, the court shall order the person to participate in an alcohol and drug evaluation conducted by a provider in accordance with K.S.A. 8-1008, and amendments thereto. The person shall be required to follow any recommendations made by the provider after such evaluation, unless otherwise ordered by the court.
   4. In addition, the court is authorized to order that any convicted person pay restitution to any victim who suffered loss due to the violation for which the person was convicted.

c. Any person 18 years of age or older convicted of a violation of this Section who had one or more children under the age of 18 years in the vehicle at the time of the offense shall have such person's punishment

enhanced by one month of imprisonment. This imprisonment shall be served consecutively to any other minimum mandatory penalty imposed for a violation of this Section. Any enhanced penalty imposed shall not exceed the maximum sentence allowable by law. During the service of the enhanced penalty, the judge may order the person on house arrest, work release or other conditional release.

d. If a person is charged with a violation of this Section, the fact that the person is or has been entitled to use the drug under the laws of this state shall not constitute a defense against the charge.

e. The court may establish the terms and time for payment of any fines, fees, assessments and costs imposed pursuant to this Section. Any assessment and costs shall be required to be paid not later than 90 days after imposed, and any remainder of the fine shall be paid prior to the final release of the defendant by the court.

f.

1. In lieu of payment of a fine imposed pursuant to this Section, the court may order that the person perform community service specified by the court. The person shall receive a credit on the fine imposed in an amount equal to $5.00 for each full hour spent by the person in the specified community service. The community service ordered by the court shall be required to be performed not later than one year after the fine is imposed or by an earlier date specified by the court. If by the required date the person performs an insufficient amount of community service to reduce to zero the portion of the fine required to be paid by the person, the remaining balance of the fine shall become due on that date.
2. The court may, in its discretion, waive any portion of a fine imposed pursuant to this Section, except the $250.00 required to be remitted to the State Treasurer pursuant to subsection (q), upon a showing that the person successfully completed court-ordered education or treatment.

g. The Municipal Court shall not have jurisdiction to hear cases involving third or subsequent violations of this Section or any other felony violation.

h.

1. Upon the filing of a complaint, citation or notice to appear alleging a person has violated this Section, and prior to conviction thereof, a City Attorney shall request and shall receive from the:
   A. Division of Vehicles a record of all prior convictions obtained against such person for any violations of any of the motor vehicle laws of this state; and
   B. Kansas Bureau of Investigation Central Repository all criminal history record information concerning such person.
2. If the elements of the violation are the same as the elements of a felony violation of K.S.A. 8-2,144 (Driving a Commercial Motor Vehicle Under the Influence) and amendments thereto, the City Attorney shall refer the violation to the Johnson County District Attorney for prosecution.

i. No plea bargaining agreement shall be entered into nor shall any judge approve a plea bargaining agreement entered into for the purpose of permitting a person charged with a violation of this Section to avoid the mandatory penalties established by this Section. This subsection shall not be construed to prohibit an amendment or dismissal of any charge where the admissible evidence is not sufficient to support a conviction beyond a reasonable doubt on such charge.

j. The alternatives set out in subsection (a) may be pleaded in the alternative, and the City may, but shall not be required to, elect one or two of the three prior to submission of the case to the fact finder.

k. For the purpose of determining whether a conviction is a first, second, third or subsequent conviction in sentencing under this Section:

1. Convictions for a violation of K.S.A. 8-1567 (Driving Under the Influence), and amendments thereto, or a violation of an ordinance of any city or resolution of any county that prohibits the acts that such section prohibits, or entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging any such violations, shall be taken into account, but only convictions or diversions occurring on or after July 1, 2001. Nothing in this provision shall be construed as preventing any court from considering any convictions or diversions occurring during the person's lifetime in determining the sentence to be imposed within the limits provided for a first, second, third, fourth or subsequent offense;

2. Any convictions for a violation of the following Sections occurring during a person's lifetime shall be taken into account:
    A. This Section or K.S.A. 8-2,144, and amendments thereto;
    B. Operating a vessel under the influence of alcohol or drugs, K.S.A. 32-1131, and amendments thereto;
    C. Involuntary manslaughter while driving under the influence of alcohol or drugs, K.S.A. 21-3442, prior to its repeal, or K.S.A. 21-5405(a)(3) or (a)(5), and amendments thereto;
    D. Aggravated battery as described in K.S.A. 21-5413(b)(3) or (b)(4), and amendments thereto; and
    E. Aggravated vehicular homicide, K.S.A. 21-3405a, prior to its repeal, or vehicular battery, K.S.A. 21-3405b, prior to its repeal, if the crime was committed while committing a violation of K.S.A. 8-1567 (Driving Under the Influence), and amendments thereto.
3. "Conviction" includes:
    A. Entering into a diversion agreement in lieu of further criminal proceedings on a complaint alleging a violation of a crime described in subsection (k)(2);
    B. Conviction of a violation of an ordinance of a city in this state, a resolution of a county in this state or any law of another jurisdiction that would constitute an offense that is comparable to the offense described in subsection (k) (1) or (k) (2);
4. It is irrelevant whether an offense occurred before or after conviction for a previous offense; and
5. Multiple convictions of any crime described in subsection (k)(1) or (k)(2) arising from the same arrest shall only be counted as one conviction.

l. The court shall electronically report every conviction, to include diversion agreements, of a violation of this Section to the Division. Prior to sentencing under the provisions of this Section, the court shall request and shall receive from the (1) Division a record of all prior convictions obtained against such person for any violation of any of the motor vehicle laws of this state and (2) Kansas Bureau of Investigation Central Repository all criminal history record information concerning such person.

m. For the purpose of this Section, "drive" means to drive, operate or be in physical control of a motor vehicle in any place open to the general public for purposes of vehicular traffic and includes operation or physical control of a motor vehicle anywhere in the City. In addition, the terms "imprisonment" and "drug" have the meanings set out in Section 12.04.030(r), and amendments thereto.

n. For the purpose of this Section, "commercial motor vehicle" shall not include:
1. Farm vehicles, defined as follows:
    A. Registered as a farm truck or truck tractor under K.S.A. 8-143, and amendments thereto;
    B. Used to transport either agricultural products, farm machinery, farm supplies, or both, to or from a farm;
    C. Not used in the operations of a common or contract motor carrier; and used either in:
        1. intrastate commerce; or 2. interstate commerce within 150 air miles of any farm or farms owned or leased by the registered owner of such farm vehicle;
2. Vehicles operated by firefighters and other persons that are necessary to the preservation of life or property or the execution of emergency governmental functions are equipped with audible and visual signals and are not subject to normal traffic regulation. These vehicles include fire trucks, hook and ladder trucks, foam or water transport trucks, police SWAT team vehicles, ambulances or other vehicles that are used in response to emergencies;
3. Military vehicles that are operated by military personnel in pursuit of military purposes and all noncivilian operators of equipment owned or operated by the United States Department of Defense. This applies to any active duty military personnel and members of the Reserves and National Guard on active duty, including personnel on full-time National Guard duty, personnel on part-time training and National Guard military technicians, civilians who are required to wear military uniforms and are subject to the Uniform Code of Military Justice or the Kansas Code of Military Justice;

4. Motor vehicles, that would otherwise be considered commercial motor vehicles, if such vehicles are used solely and exclusively for private noncommercial use and any operator of such vehicles;
5. Farm tractors operated by an implement dealer, or employee thereof, when moved or transported in accordance with K.S.A. 8-1918, and amendments thereto; and
6. Motor grade vehicles operated by an employee of a municipality, as defined in K.S.A. 75-6102 and amendments thereto, if such employee is operating the motor grader vehicle within the boundaries of such municipality.

o. For the purposes of determining whether an offense is comparable, the following shall be considered:
1. The name of the out-of-jurisdiction offense;
2. The elements of the out-of-jurisdiction offense; and
3. Whether the out-of-jurisdiction offense prohibits similar conduct to the conduct prohibited by the closest approximate Kansas offense.

(History: Ord. TC-1260,FFFF §11, 2022; Ord. TC-1260, AAAA §4, 2018; TC-1260,UUU §2, 2013; TC-1260,TTT §4, 2012; TC-1260,RRR §6, 2011; TC-1260,FFF §4, 2006; TC-1260,WW §3, 2002; TC-1260,MM §3, 96; TC-1260,GG §2, 93; TC-1260,Z §2, 91) (State Law: K.S.A. 8-1567; K.S.A. 8-2,127; K.S.A. 8-2,128)

12.04.030.1 Preliminary Screening Test of Breath for Alcohol Concentration; Request by Officer.

a. A law enforcement officer may request a person who is operating or attempting to operate a vehicle within this state to submit to a preliminary screening test of the person's breath or oral fluid, or both, if the officer has reasonable suspicion to believe that the person has been operating or attempting to operate a vehicle while under the influence of alcohol or drugs or both alcohol and drugs.

b. If the person submits to the test, the results shall be used for the purpose of assisting law enforcement officers in determining whether an arrest should be made and whether to request the tests authorized by K.S.A. 8-1001, and amendments thereto. A law enforcement officer may arrest a person based in whole or in part upon the results of a preliminary screening test. Such results shall not be admissible in any civil or criminal action concerning the operation or attempted operation of a vehicle except to aid the court or hearing officer in determining a challenge to the validity of the arrest or the validity of the request to submit to a test pursuant to K.S.A. 8-1001 and amendments thereto. Following the preliminary screening test, additional tests may be requested pursuant to K.S.A. 8-1001 and amendments thereto.

c. Any preliminary screening of a person's breath shall be conducted with a device approved pursuant to K.S.A. 65-1,107, and amendments thereto. Any preliminary screening of a person's oral fluid shall be conducted with rules and regulations, if any, approved pursuant to K.S.A. 75-712h, and amendments thereto.

(History: Ord. TC-1260,FFFF §12, 2022; Ord. TC-1260, AAAA §3, 2018; TC-1260,RRR §7, 2011; TC-1260,HHH §1, 2006; TC-1260, CCC §4, 2005; TC-1260,MM §4, 96; TC-1260,GG §3, 93; TC-1260W §2, 90) (K.S.A. 8-1012)
See: 12.04.002

12.04.031 Fleeing or Attempting to Elude a Police Officer.

a. Any driver of a motor vehicle who knowingly fails or refuses to bring such driver's vehicle to a stop for a pursuing police vehicle or police bicycle, when given visual or audible signal to bring the vehicle to a stop, shall be guilty as provided by subsection (d).

b. Any driver of a motor vehicle who knowingly otherwise flees or attempts to elude a pursuing police vehicle or police bicycle, when given visual or audible signal to bring to vehicle to a stop, shall be guilty as provided by subsection (d).

c. It shall be an affirmative defense to any prosecution under subsection (a) that the driver's conduct in violation of such subsection was caused by such driver's reasonable belief that the vehicle or bicycle pursuing such driver's vehicle is not a police vehicle or police bicycle.

d. Every person convicted of violating subsection (a) or (b) shall upon first conviction be imprisoned for not more than six months or fined not to exceed $1,000.00, or both. Every person convicted of violating

subsection (a) or (b) shall upon a second conviction be punished by imprisonment not to exceed one year or fined not to exceed $2,500.00 or both.

e. The municipal court shall not have jurisdiction to hear cases involving third and subsequent violations of this Section or any other felony violation of K.S.A. 8-1568.

f. The signal given by the police officer may be by hand, voice, emergency light or siren:

1. If the officer giving such signal is within or upon an official police vehicle or police bicycle at the time the signal is given, the vehicle or bicycle shall be appropriately marked showing it to be an official police vehicle or police bicycle; or
2. If the officer giving such signal is not utilizing an official police vehicle or police bicycle at the time the signal is given, the officer shall be in uniform, prominently displaying such officer's badge of office at the time the signal is given.

g. For purposes of this section:

1. **Conviction** means a final conviction without regard to whether the sentence was suspended or probation granted after such conviction. Forfeiture of bail, bond or collateral deposited to secure a defendant's appearance in court, which forfeiture has not been vacated, shall be equivalent to a conviction. For the purpose of determining whether a conviction is a first, second, third or subsequent conviction in sentencing under this section it is irrelevant whether an offense occurred before or after conviction for a previous offense.
2. **Appropriately marked** official police vehicle or police bicycle shall include, but not be limited to, any police vehicle or bicycle equipped with functional emergency lights or siren or both and which the emergency lights or siren or both have been activated for the purpose of signaling a driver to stop a motor vehicle.

(History: Ord. TC-1260,FFFF §13, 2022; Ord. TC-1260,VVV §2, 2014; TC-1260,PPP §5, 2009; TC-1260PP §2, 98; TC-1260MM §5, 96; TC-1260,GG §4, 93; TC-1260,FF §2, 93; TC-1260,C §1, 86; TC-1260 §30, 84) (State Law: K.S.A. 8-1568)

12.04.031.1 Ignition Interlock Devices; Tampering.

a. No person shall:

1. Tamper with an ignition interlock device, circumvent it or render it inaccurate or inoperative; or
2. Request or solicit another to blow into an ignition interlock device, or start a motor vehicle equipped with such device, providing an operable motor vehicle to a person whose driving privileges have been restricted to driving a motor vehicle equipped with such device; or
3. Blow into an ignition interlock device, or start a motor vehicle equipped with such device, providing an operable motor vehicle to a person whose driving privileges have been restricted to driving a motor vehicle equipped with such device; or
4. Operate a vehicle not equipped with an ignition interlock device while such person's driving privileges have been restricted to driving a motor vehicle equipped with such device.

b. Violation of this Section shall be punished by a fine of not more than $2,500.00 or by imprisonment for not more than one year or by both such fine and imprisonment.

(History: Ord. TC-1260,RRR §8, 2011; TC-1260JJ §4, 94) (State Law: K.S.A. 8-254; K.S.A. 8-1017)

See: 12.04.002

Article VII. Speed Regulations

12.04.032 Duties of City Traffic Engineer.

a. The City Traffic Engineer shall determine the installation and proper timing and maintenance of traffic control devices; conduct engineering analysis of traffic accidents and devise remedial measures; conduct

engineering investigations of traffic conditions; plan the operation of traffic on the streets and highways of this City; cooperate with other City officials in the development of ways and means to improve traffic conditions; and carry out the additional powers and duties imposed by ordinances of this City.

b. The City Traffic Engineer, the Assistant City Traffic Engineer, or the Director of Public Works shall place, maintain, change, and remove traffic control signs, signals, and devices, when and as required under the traffic ordinances of this City to make effective and carry out the provisions of said ordinances, and may place, maintain, change and remove such additional traffic control devices as he may deem necessary to regulate traffic or to warn or guide traffic.

(History: Ord. TC-1260,C §1, 86; TC-1260 §31, 84)

12.04.033 Speed Limitations; Restrictions.

a. No person shall drive a vehicle at a speed greater than is reasonable and prudent under the circumstances and having regard to the actual hazards then existing. Consistent with the foregoing, every person shall drive at a safe and appropriate speed when approaching and crossing an intersection or railroad grade crossing, when approaching and going around a curve, when approaching a hillcrest, when traveling upon any narrow or winding roadway, and when special hazards exist with respect to pedestrians or other traffic or by reason of weather or highway conditions.

b. Except when a special hazard exists that requires lower speed for compliance with paragraph (a) of this Section, the limits specified in this Section or established as hereinafter authorized shall be maximum lawful speeds, and no person shall operate a vehicle at a speed in excess of such maximum limits:

   1. All vehicles 20 miles per hour in any business district.
   2. All vehicles 25 miles per hour in any residence district except where posted otherwise.
   3. All vehicles 20 miles per hour in any park under the jurisdiction of this City.
   4. Unless posted otherwise, all vehicles 30 miles per hour on streets or highways on which an engineering and traffic investigation has been conducted in an urban district.
   5. Unless posted otherwise, all vehicles 55 miles per hour on arterial streets on which an engineering and traffic investigation has been conducted.
   6. All vehicles on any separated multilane highway, as designated and posted by the Secretary of Transportation, 75 miles per hour.
   7. All vehicles 65 miles per hour in all other locations unless posted otherwise.

c. The maximum speed limit upon streets or portions of streets abutting school property or adjacent to school crosswalks in those areas designated as school zones shall be the speed limit posted on appropriately erected signs giving notice of the speed limit in said school zones. The maximum speed to be posted within each school zone shall be determined by the City Traffic Engineer provided the speed limit shall not be less than 20 miles per hour. Maximum speed limits within school zones shall be effective and subject to enforcement by law enforcement officers during those time periods set forth on appropriately erected signs giving notice of the effective hours of enforcement or during those times a flashing yellow beacon is in operation with appropriately erected signs indicating the school zone speed limits are enforced during the times the flashing yellow beacon is in operation. The City Traffic Engineer shall determine the times of enforcement for school zones within the City, provided such speed limits shall apply only during the hours in which students are normally en route to or from school.

d. Whenever the City Traffic Engineer shall determine upon the basis of an engineering and traffic investigation that any speed limit hereinbefore set forth is greater or less than is reasonable or safe under the conditions found to exist upon any part of a street which said City Traffic Engineer shall determine and declare a reasonable and safe speed limit thereon which shall be effective at all times or during the daytime or nighttime or at such other times as may be determined when appropriate signs giving notice thereof are erected on such street, pursuant to K.S.A. 8-1560 and K.S.A. 8-2002.

e. As used in subsection (d) "daytime" means from 30 minutes before sunrise to 30 minutes after sunset and "nighttime" means any other hour.

(History: Ord. TC-3444 §2, 2023; Ord. TC-1260,FFFF §14, 2022; Ord. TC-1260, CCCC §1, 2019; Ord. TC-1260,XXX §2, 2016; TC-1260,RRR §9, 2011; TC-1260,ZZ §1, 2003; TC-1260,MM §6, 96; TC-1260,R §1, 89; TC-1260 §32, 84) (State Law: 8-1557)

See: 12.04.002

12.04.034 Minimum Speed Regulation.

a. No person shall drive a motor vehicle at such a slow speed as to impede the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with law.

b. Whenever the governing body determines on the basis of an engineering and traffic investigation that slow speeds on any highway or part of a highway consistently impede the normal and reasonable movement of traffic, the governing body may determine and declare a minimum speed limit below which no person shall drive a vehicle except when necessary for safe operation or in compliance with law, and that limit shall be effective when posted upon appropriate fixed or variable signs.

(History: Ord. TC-1260 §33, 84) (State Law: K.S.A. 8-1561)

12.04.035 Special Speed Limitation on Motor-Driven Cycle.

No person shall operate any motor-driven cycle at any time mentioned in 12.04.144 at a speed greater than 35 miles per hour unless such motor-driven cycle is equipped with a head lamp or lamps which are adequate to reveal a person or vehicle at a distance of 300 feet ahead.

(History: Ord. TC-1260 §34, 84) (State Law: K.S.A. 8-1562)

See: 12.04.182 & 12.04.187

12.04.036 Charging Speed Violations.

In every charge of violation of any speed regulation in this Article, except violation of 12.04.033(a), the complaint, also the summons or notice to appear, shall specify the speed at which the defendant is alleged to have driven, also the speed limit applicable within the district or at the location.

(History: Ord. TC-3444 §3, 2023; Ord. TC-1260,FFFF §15, 2022; Ord. TC-1260,KKK §3, 2007; Ord. TC-1260 §35, 84) (State Law: K.S.A. 8-1564)

12.04.037 Racing on Highways; "Drag Race" and "Racing" Defined.

a. No person shall drive any vehicle in any race, speed competition or contest, drag race or acceleration contest, test of physical endurance, exhibition of speed or acceleration, or for the purpose of making a speed record, and no person shall in any manner participate in any such race, competition, contest, test or exhibition.

b. "Drag race" is defined as the operation of two or more vehicles from a point side by side at accelerating speeds in a competitive attempt to out-distance each other, or the operation of one or more vehicles over a common selected course from the same point to the same point, for the purpose of comparing the relative speeds or power of acceleration of such vehicle or vehicles within a certain distance or time limit.

c. "Racing" is defined as the use of one or more vehicles in an attempt to out-gain, out-distance or prevent another vehicle from passing to arrive at a given destination ahead of another vehicle or vehicles, or to test the physical stamina or endurance of drivers over long distance driving routes.

d. Exhibition of speed or acceleration is defined as the operation of a motor vehicle in such a manner that causes an unnecessary rapid acceleration of the vehicle as evidenced by any or all of the following physical manifestations of acceleration:

1. Unnecessary tire squeal at the time of acceleration;
2. Observation of smoke from tires of the vehicle at the time of acceleration;
3. Observation of the tires of the vehicle losing traction with the road surface;
4. Observation of the front part of the vehicle being elevated at the time of acceleration;

5. Observation of the vehicle moving laterally at the time of acceleration;
6. Loud engine noise at the time of acceleration;
7. Observation of dirt and other road surface materials being thrown by the tires of the vehicle at the time of acceleration.

(History: Ord. TC-1260,FFFF §16, 2022; Ord. TC-1260,M §1, 89; Ord. TC-1260 §36, 84) (State Law: K.S.A. 8-1565)
See: 12.04.002

Article VIII. Driving on Right Side of Roadway; Overtaking and Passing; Use of Roadway

12.04.038 Driving on Right Side of Roadway; Exceptions.

a. Upon all roadways of sufficient width a vehicle shall be driven upon the right half of the roadway, except as follows:
   1. When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movements;
   2. When an obstruction exists making it necessary to drive to the left of center of the highway; except that any person so doing shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the highway within such distance as to constitute an immediate hazard;
   3. Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon; or
   4. Upon a roadway restricted to one-way traffic.
b. Upon all roadways any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic, or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction, or when preparing for a left turn at an intersection or into a private road or driveway.
c. Upon any roadway having four or more lanes for moving traffic and providing for two-way movement of traffic, no vehicle shall be driven to the left of the center line of the roadway, except when authorized by official traffic-control devices, designating certain lanes to the left of the center of the roadway for use by traffic not otherwise permitted to use such lanes, or except as permitted under subsection (a)(2) hereof. However, this subsection shall not be construed as prohibiting the crossing of the center line in making a left turn into or from an alley, private road or driveway.

(History: Ord. TC-1260 §37, 84) (State Law: K.S.A. 8-1514)
See: 12.04.046

12.04.039 Passing Vehicles Proceeding in Opposite Directions.

Drivers of vehicles proceeding in opposite directions shall pass each other to the right, and upon roadways having width for not more than one line of traffic in each direction, each driver shall give to the other at least one-half of the main traveled portion of the roadway as nearly as possible.

(History: Ord. TC-1260 §38, 84) (State Law: K.S.A. 8-1515)

12.04.040 Overtaking a Vehicle on the Left.

The following rules shall govern the overtaking and passing of vehicles and bicycles proceeding in the same direction, subject to those limitations, exceptions and special rules hereinafter stated:

a. The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.
b. Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle on audible signal and shall not increase the speed of his or her vehicle until completely passed by the overtaking vehicle.

c. 1. The driver of a vehicle overtaking a bicycle proceeding in the same direction shall pass to the left thereof at a distance of not less than three (3) feet and shall not again drive to the right side of the roadway until safely clear of the overtaken bicycle.

2. The driver of a vehicle may pass a bicycle proceeding in the same direction in a no-passing zone with the duty to execute the pass only when it is safe to do so.

(History: Ord. TC-1260,RRR §10, 2011; TC-1260 §39, 84) (State Law: K.S.A. 8-1516)

See: 12.04.042 for limitations

12.04.041 When Passing on the Right is Permitted.

. The driver of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

1. When the vehicle overtaken is making or about to make a left turn;
2. Upon a roadway with unobstructed pavement of sufficient width for two or more lines of vehicles moving lawfully in the direction being traveled by the overtaking vehicle.
3. A transit bus authorized under and being operated in accordance with the provisions of K.S.A. 75-5091, and amendments thereto, or when done from a queue jump lane that is controlled by special signal indications designed for the control of exclusive bus movements and when the adjacent lane of traffic is being controlled by a red indication.

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The driver of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting such movement in safety. Such movement shall not be made by driving off the roadway, except as authorized under K.S.A. 75-5091, and amendments thereto.

(History: Ord. TC-1260,FFFF §17, 2022; Ord. TC-1260,SSS §4, 2012; TC-1260 §40, 84) (State Law: K.S.A. 8-1517)

12.04.042 Limitations on Overtaking on the Left.

Except as otherwise provided in this ordinance no vehicle shall be driven to the left of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit such overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to an authorized lane of travel as soon as practicable and, in the event the passing movement involves the use of a lane authorized for vehicles approaching from the opposite direction, before coming within 200 feet of any approaching vehicle.

(History: Ord. TC-1260 §41, 84) (State Law: K.S.A. 8-1518)

See: 12.04.04

12.04.043 Further Limitations on Driving on Left of Center of Roadway.

a. No vehicle shall be driven to the left side of the roadway under the following conditions:

1. When approaching or upon the crest of a grade or curve in the highway where the driver's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;
2. When approaching within 100 feet of or traversing any intersection or railroad grade crossing; or
3. When the view is obstructed upon approaching within 100 feet of any bridge, viaduct or tunnel.

b. The foregoing limitations shall not apply upon a one-way roadway nor under the conditions described in 12.04.038 (a)(2), nor to the driver of a vehicle turning into or from an alley, private road or driveway.

(History: Ord. TC-1260 §42, 84) (State Law: K.S.A. 8-1519)

12.04.044 No-passing Zones.

a. Whenever signs or markings are in place to define a no-passing zone and clearly visible to an ordinarily observant person no driver shall at any time drive on the left side of the roadway within such no-passing zone or on the left side of any pavement striping designed to mark such no-passing zone throughout its length.

b. This section shall not apply under the conditions described in 12.04.038 (a)(2), nor to the driver of a vehicle turning left into or from an alley, private road or driveway.

(History: Ord. TC-1260 §43, 84) (State Law: K.S.A. 8-1520)

12.04.044.1 Passing Emergency, Highway Construction and Maintenance Vehicles.

a. The driver of a vehicle shall not overtake and pass another vehicle when approaching within 100 feet of:

1. A stationary authorized emergency vehicle on a highway that consists of two lanes carrying traffic in opposite directions, when the authorized emergency vehicle is making use of visual signals meeting the requirements of 12.04.160, and amendments thereto, or 12.04.162(d), and amendments thereto; or

2. A stationary authorized vehicle which is obviously and actually engaged in work on a highway that consists of two lanes carrying traffic in opposite directions, when such vehicle displays flashing lights meeting the requirements of K.S.A. 8-1731, and amendments thereto.

(History: Ord. TC-1260,FFFF §18, 2022; Ord. TC-1260, CCCC §2, 2019; Ord. TC-1260,FFF §5, 2006) (State Law: K.S.A. 8-1520a)

12.04.044.2 Passing a Waste Collection Vehicle.

a. The driver of a motor vehicle, upon approaching a stationary waste collection vehicle obviously and actually engaged in waste collection and displaying vehicular hazard warning signal lamps as required by 12.04.162, and amendments thereto, shall do either of the following:

1. If the driver of the motor vehicle is traveling on a highway that consists of at least two lanes that carry traffic in the same direction of travel as that of the driver's motor vehicle, the driver shall proceed with due caution and, if possible and with due regard to the road, weather and traffic conditions, shall change lanes into a lane that is not adjacent to that of the stationary waste collection vehicle; or

2. If the driver is not traveling on a highway of a type described in paragraph (1), or if the driver is traveling on a highway of that type but it is not possible to change lanes or if to do so would be unsafe, the driver shall proceed with due caution, reduce the speed of the motor vehicle and maintain a safe speed for the road, weather and traffic conditions.

b. This section shall not operate to relieve the driver of a waste collection vehicle from the duty to drive with due regard for the safety of all persons using the highway.

(History: Ord. TC-1260,FFFF §19, 2022; Ord. TC-1260, AAAA §5, 2018) (State Law: K.S.A. 8-15,112)

12.04.044.3 Passing a Stationary Authorized Utility or Telecommunications Vehicle.

. The driver of a vehicle shall not overtake and pass another vehicle when approaching within 100 feet of a stationary authorized utility or telecommunications vehicle.

. The driver of a vehicle shall yield the right-of-way to any authorized utility or telecommunications vehicle or pedestrian actually engaged in work on the highway whenever such vehicle displays flashing lights meeting the requirements of K.S.A. 8-1731, and amendments thereto.

. The driver of a motor vehicle, upon approaching a stationary authorized utility or telecommunications vehicle that is obviously and actually engaged in work upon a highway, when such authorized utility or telecommunications vehicle is displaying flashing lights meeting the requirements of K.S.A. 8-1731, and amendments thereto, shall do either of the following:

1. If the driver of the motor vehicle is traveling on a highway that consists of at least two lanes that carry traffic in the same direction of travel as that of the driver's motor vehicle, the driver shall proceed with due caution and, if

possible and with due regard to the road and weather and traffic conditions, shall change lanes into a lane that is not adjacent to that of the stationary authorized public utility or telecommunications vehicle; or

2. If the driver is not traveling on a highway of a type described in paragraph (1), or if the driver is traveling on a highway of that type described in paragraph (1) but it is not possible to change lanes or if to do so would be unsafe, the driver shall proceed with due caution, reduce the speed of the motor vehicle and maintain a safe speed for the road and weather and traffic conditions.

. This section shall not operate to relieve the driver of an authorized utility or telecommunications vehicle from the duty to drive with due regard for the safety of all persons using the highway.

. As used in this section, "authorized utility or telecommunications vehicle" means:

1. A motor vehicle operated by an authorized person as defined in K.S.A. 66-1710, and amendments thereto, for an electric or natural gas public utility as defined in K.S.A. 66-104, and amendments thereto, or municipality-owned, when such motor vehicle is utilized for repairs that are needed on electric utility or natural gas equipment to restore necessary services or ensure public safety and is making use of visual signals meeting the requirements of K.S.A. 8-1731, and amendments thereto; and
2. A motor vehicle operated by a provider, as defined in K.S.A. 17-1902, and amendments thereto, or a wireless infrastructure provider or a wireless services provider, as defined in K.S.A. 66-2019, and amendments thereto, when such vehicle is utilized for repairs and is making use of visual signals meeting the requirements of K.S.A. 8-1731, and amendments thereto.

(History: Ord. TC-1260,FFFF §20, 2022) (State Law: K.S.A 8-15,114)

12.04.045 One-Way Roadways and Rotary Traffic Islands.

a. When official traffic control devices indicate that vehicular traffic shall proceed in one direction upon any highway, roadway, part of a roadway or specific lanes a vehicle shall be driven only in the direction designated at all or such time as shall be indicated by such device.

b. A vehicle passing around a rotary traffic island shall be driven only to the right of such island.

(History: Ord. TC-1260 §44, 84) (State Law: K.S.A. 8-1521)

12.04.046 Driving on Roadways Laned for Traffic.

Whenever any roadway has been divided into two or more clearly marked lanes for traffic the following rules in addition to all others consistent herewith shall apply:

a. A vehicle shall be driven within a single lane and shall not be moved from such lane until the driver has first signaled the movement, either by activating the appropriate turn signal or by hand signals.

b. Upon a roadway which is divided into three lanes and provides for two-way movement of traffic, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle traveling in the same direction when such center lane is clear of traffic within a safe distance, or in preparation for making a left turn or where such center lane is at the time allocated exclusively to traffic moving in the same direction that the vehicle is proceeding and such allocation is designated by official traffic-control devices.

c. Official traffic-control devices may be erected directing specified traffic to use a designated lane or designating those lanes to be used by traffic moving in a particular direction regardless of the center of the roadway and drivers of vehicles shall obey the directions of every such device.

d. Official traffic-control devices may be installed prohibiting the changing of lanes on sections of roadway and drivers of vehicles shall obey the direction of every such device.

(History: Ord. TC-1260BB §1, 92; TC-1260 §45, 84) (State Law: K.S.A. 8-1522)

See: 12.04.038

12.04.046.1 US 69 Express Toll Lanes

1. Definitions

a. As used in this section, Express Toll Lane shall mean a section of U.S. 69 designated by the Kansas Department of Transportation as a tolled express lane of travel.

b. As used in this section, General Purpose Lane shall mean a section of U.S. 69 that is not a tolled express lane of travel.

2. Crossing wide solid double white lane line prohibited

a. Express Toll Lanes are separated from General Purpose Lanes by wide solid double white lane lines.

b. It shall be unlawful to cross the double white lines separating the Express Toll Lane from the General Purpose Lanes except as required by K.S.A. 8-1530 concerning the duty of a driver upon the approach of an authorized emergency vehicle, in which case it shall be permissible to cross the double white lines to exit the Express Toll Lane.

3. Entry and exit of the Express Toll Lane is only permitted at designated access points where pavement is marked with a dashed white line.

(History: Ord. TC-3481)

12.04.047 Following Too Closely.

a. The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having due regard for the speed of such vehicle and the traffic upon and the condition of the highway.

b. The driver of any truck or motor vehicle drawing another vehicle when traveling upon a roadway outside of a business or residence district and which is following another truck or motor vehicle drawing another vehicle shall leave sufficient space, whenever conditions permit, so that an overtaking vehicle may enter and occupy such space without danger, except that this shall not prevent a truck or motor vehicle drawing another vehicle from overtaking and passing any vehicle or combination of vehicles.

c. Motor vehicles being driven upon any roadway outside of a business or residence district in a caravan or motorcade, whether or not towing other vehicles, shall be so operated as to allow sufficient space between each such vehicle or combination of vehicles so as to enable any other vehicle to enter and occupy such space without danger. This provision shall not apply to funeral processions.

(History: Ord. TC-1260 §46, 84) (State Law: K.S.A. 8-1523)

12.04.048 Driving on Divided Highways; Left and U turns; Controlled-Access Highways.

No person shall:

a. drive a vehicle over, upon or across any intervening space, physical barrier or a clearly indicated dividing section so constructed as to impede vehicular traffic between roadways on divided highways;

b. make a left turn or a semicircular or "U" turn on the interstate system;

c. make a left turn or a semicircular or "U" turn over, across or within any intervening space, physical barrier or a clearly indicated dividing section so constructed as to impede vehicular traffic between roadways on a divided highway, except this subsection (c) does not prohibit making a left turn or a semicircular or "U" turn through an opening provided and surfaced for the purpose of public use for such turning movements;

d. make a left turn or a semicircular or "U" turn on a divided highway wherever such turn is specifically prohibited by a sign or signs placed by the authority having jurisdiction over that highway;

e. drive any vehicle on a divided highway except on the proper roadway provided for that purpose and in the proper direction and to the right of the intervening space, physical barrier or a clearly indicated dividing section so constructed as to impede vehicular traffic between roadways unless directed or permitted to use another roadway by official traffic control devices or police officers;

f. drive any vehicle onto or from any controlled-access highway except at such entrances and exists as are established by the authority having jurisdiction over such highway;

g. use controlled-access highway right of way for parking vehicles or mobile equipment, or stacking of materials or equipment, for the purpose of servicing adjacent property; or

h. stop, stand or park vehicles on the right of way of controlled-access highway except for:

1. Stopping of disabled vehicles;
2. Stopping to give aid in an emergency;
3. Stopping in compliance with directions of a police officer or other emergency or safety officials;
4. Stopping due to illness or incapacity of driver; or
5. Parking in designated parking or rest areas.

(History: Ord. TC-1260 §47, 84) (State Law: K.S.A. 8-1522)
See: 12.04.050 & 12.04.051

Article IX. Turning and Starting and Signals on Stopping and Turning

12.04.049 Turning.

a. The driver of a vehicle intending to turn shall do so as follows:

1. *Right Turns.* Both the approach for a right turn and a right turn shall be made from the right-hand curb or edge of the roadway.
2. *Left Turns.* The driver of a vehicle intending to turn left shall approach the turn in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle. A left turn at an intersection shall be made to the left of the center of the intersection, and any left turn shall be made so as to leave the intersection or other location in the extreme left-hand lane lawfully available to traffic moving in the same direction as such vehicle on the roadway being entered.

b. **Two-way left turn lanes**. Where a special lane for making left turns by drivers proceeding in opposite directions has been indicated by official traffic control devices:

1. A left turn shall not be made from any other lane;
2. a vehicle shall not be driven in the lane except when preparing for or making a left turn from or into the roadway or when preparing for or making a U-turn when otherwise permitted by law.

c. The Secretary of Transportation and local authorities in their respective jurisdictions may cause official traffic-control devices to be placed and thereby require and direct that a different course from that specified in this Section be traveled by turning vehicles, and when such devices are so placed no driver shall turn a vehicle other than as directed and required by such devices.

(History: Ord. TC-1260,RRR §11, 2011; TC-1260,KK §5, 95; TC-1260 §48, 84) (State Law: K.S.A. 8-1545)

12.04.050 Right, Left and U-turns at Intersections: Obedience to.

a. The City Traffic Engineer is hereby authorized to determine those intersections at which drivers of vehicles shall not make a right, left or U-turn, and shall place or cause to be placed proper fixed, electronic or temporary signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or the signs may be removed when such turns are permitted.

b. Whenever authorized fixed, electronic or temporary signs are erected or temporarily displayed indicating that no right, left or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such sign.

(History: Ord. TC-1260,RRR §12, 2011; TC-1260 §49, 84) (State Law: K.S.A. 8-1545)

12.04.051 U Turns, When No Signs; Where Prohibited.

The driver of any vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district, nor upon any other street unless such movement can be made in safety without interfering with other traffic.

(History: Ord. TC-1260 §50, 84) (State Law: K.S.A. 8-1546)

12.04.052 Turning on Curve or Crest of Grade Prohibited.

No vehicle shall be turned so as to proceed in the opposite direction upon any curve, or upon the approach to, or near the crest of a grade, where such vehicle cannot be seen by the driver of any other vehicle approaching from either direction within 500 feet.

(History: Ord. TC-1260 §51, 84) (State Law: K.S.A. 8-1546)

12.04.053 Starting Parked Vehicle.

No person shall start a vehicle which is stopped, standing or parked unless and until such movement can be made with reasonable safety.

(History: Ord. TC-1260 §52, 84) (State Law: K.S.A. 8-1547)

12.04.054 Turning Movements and Required Signals.

a. No person shall turn a vehicle or move right or left upon a highway unless and until such movement can be made with reasonable safety, nor without giving an appropriate signal in the manner hereinafter provided.

b. A signal of intention to turn or move right or left when required shall be given continuously during not less than the last 100 feet traveled by vehicle before turning.

c. No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided herein to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.

d. The signals required on vehicles by 12.04.149(b) shall not be flashed on one side only on a disabled vehicle, flashed as a courtesy or "do pass" signal to operators of other vehicles approaching from the rear nor be flashed on one side only of a parked vehicle except as may be necessary for compliance with this section.

(History: Ord. TC-1260 §53, 84) (State Law: K.S.A. 8-1548)

12.04.055 Signals by Hand and Arm or Signal Lamps.

The driver of any motor vehicle or combination of vehicles which is required to be equipped with electric turn signal lamps by 12.04.149 shall give any required notice of intention to turn by means of electric turn signals meeting the requirements of 12.04.161(b). The driver of any other motor vehicle or combination of vehicles shall give such notice by means of hand and arm signals, as provided in 12.04.056, or by such electric turn signals.

(History: Ord. TC-1260 §54, 84) (State Law: K.S.A. 8-1549)

12.04.056 Methods of Giving Signals.

All signals herein required to be given by hand and arm shall be given from the left side of the vehicle in the following manner and such signals shall indicate as follows:

1. Left turn -- hand and arm extended horizontally.
2. Right turn -- hand and arm extended upward.
3. Stop or decrease of speed -- hand and arm extended downward.

(History: Ord. TC-1260 §55, 84) (State Law: K.S.A. 8-1550)

Article X. Right-of-Way

12.04.057 Vehicles Approaching or Entering Intersection.

a. When two vehicles approach or enter an intersection from different highways at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

b. The right-of-way rule declared in subsection (a) is modified at through highways and otherwise as hereinafter stated in this ordinance.

(History: Ord. TC-1260PP §3, 98; TC-1260 §56, 84) (State Law: K.S.A. 8-1526)

12.04.058 Vehicle Turning Left.

The driver of a vehicle intending to turn to the left within an intersection or into any alley, private road or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard.

(History: Ord. TC-1260 §57, 84) (State Law: K.S.A. 8-1527)

12.04.059 Stop Signs and Yield Signs.

a. Preferential right-of-way may be indicated by stop signs or yield signs.

b. Except when directed to proceed by a police officer, every driver of a vehicle approaching a stop sign shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it. After having stopped, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time when such driver is moving across or within the intersection or junction of roadways. Such driver shall yield the right-of-way to pedestrians within an adjacent crosswalk.

c. The driver of a vehicle approaching a yield sign shall in obedience to such sign slow down to a speed reasonable for the existing conditions and if required for safety to stop, shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it. After slowing or stopping, the driver shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time when such driver is moving across or within the intersection or junction of roadways. Such driver shall yield the right-of-way to pedestrians within an adjacent crosswalk. If a driver is involved in a collision with a vehicle in the intersection or junction of roadways or with a pedestrian in an adjacent crosswalk, after driving past a yield sign without stopping, such collision shall be deemed prima facie evidence of the driver's failure to yield right-of-way.

(History: Ord. TC-1260, YYY §1, 2017; TC-1260, KK §6, 95; TC-1260 §58, 84) (State Law: K.S.A. 8-1528)

12.04.060 Vehicle Entering Roadway.

The driver of a vehicle about to enter or cross a roadway from any place other than another roadway shall yield the right-of-way to all vehicles approaching on the roadway to be entered or crossed.

(History: Ord. TC-1260 §59, 84) (State Law: K.S.A. 8-1529)

See: 12.04.002 & 12.04.080

12.04.061 Operation of Vehicles on Approach of Authorized Emergency Vehicles or When Approaching Stationary Emergency Vehicles.

a. Upon the immediate approach of an authorized emergency vehicle making use of an audible signal meeting the requirements of 12.04.174(d) and visual signals meeting the requirements of 12.04.160 or of a police vehicle properly and lawfully making use of an audible signal only, the driver of every other vehicle shall do the following unless otherwise directed by a police officer: (1) yield the right-of-way; (2) immediately drive to a position parallel to and as close as possible to the right-hand edge or curb of the highway clear of any intersection; and (3) stop and remain in such position until the authorized emergency vehicle has passed.

b. The driver of a motor vehicle upon approaching a stationary authorized emergency vehicle, when the authorized emergency vehicle is making use of visual signals meeting the requirements of 12.04.160 or 12.04.162(d), shall do either of the following:

1. If the driver of the motor vehicle is traveling on a highway that consists of at least two lanes that carry traffic in the same direction of travel as that of the driver's motor vehicle, the driver shall proceed with due caution and, if possible and with due regard to the road, weather and traffic conditions, shall change lanes into a lane that is not adjacent to that of the stationary authorized emergency vehicle; or

2. If the driver is not traveling on a highway of a type described in paragraph (1) above, or if the driver is traveling on a highway of that type, but it is not possible to change lanes or if to do so would be unsafe, the driver shall proceed with due caution, reduce the speed of the motor vehicle and maintain a safe speed for the road, weather and traffic conditions.

c. This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.

(History: Ord. TC-1260,FFFF §21, 2022; Ord. TC-1260,UU §2, 2000; TC-1260 §60, 84) (State Law: K.S.A. 8-1530)

See: 12.04.010

12.04.062 Highway Construction and Maintenance.

a. The driver of a vehicle shall yield the right-of-way to any authorized vehicle or pedestrian actually engaged in work upon a highway within any road construction zone, indicated by official traffic-control devices.

b. The driver of a vehicle shall yield the right-of-way to any authorized vehicle which is obviously and actually engaged in work upon a highway whenever such vehicle displays flashing lights meeting the requirements of 12.04.172.

c. The driver of a motor vehicle upon approaching a stationary authorized vehicle which is obviously and actually engaged in work upon a highway, when such authorized vehicle is displaying flashing lights meeting the requirements of 12.04.072, and amendments thereto, shall do either of the following:

1. If the driver of the motor vehicle is traveling on a highway that consists of at least two lanes that carry traffic in the same direction of travel as that of the driver's motor vehicle, the driver shall proceed with due caution and, if possible and with due regard to the road, weather and traffic conditions, shall change lanes into a lane that is not adjacent to that of the stationary authorized vehicle; or

2. If the driver is not traveling on a highway of a type described in paragraph (c)-(1), or if the driver is traveling on a highway of that type but it is not possible to change lanes or if to do so would be unsafe, the driver shall proceed with due caution, reduce the speed of the motor vehicle and maintain a safe speed for the road, weather and traffic conditions.

d. It shall be unlawful for any person to fail, neglect or refuse to comply with restrictions or traffic regulations in road construction zones or fail to comply with traffic orders or traffic directions by a flagman in a road construction zone.

e. This section shall not operate to relieve the driver of an authorized vehicle from the duty to drive with due regard for the safety of all persons using the highway.

(History: Ord. TC-1260,FFFF §22, 2022; Ord. TC-1260,FFF §6, 2006; TC-1260JJ §5, 94; TC-1260 §61, 84) (State Law: K.S.A. 8-1531 and K.S.A. 8-1531a)

Article XI. Pedestrians

12.04.063 Pedestrians; Obedience to Traffic-Control Devices and Traffic Regulations.

a. A pedestrian shall obey the instructions of any official traffic-control device specifically applicable to such pedestrian, unless otherwise directed by a police officer.

b. Pedestrians shall be subject to traffic and pedestrian-control signals as provided in 12.04.013 and 12.04.014.

c. At all other places pedestrians shall be accorded the privileges and shall be subject to the restrictions stated in this ordinance.

(History: Ord. TC-1260,FFFF §23, 2022; Ord. TC-1260 §62, 84) (State Law: K.S.A. 8-1532)

12.04.064 Pedestrians' Right-of-Way in Crosswalks; Control Signals.

a. When traffic-control signals are not in place or not in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian entering or crossing the roadway within a crosswalk.

b. No pedestrian shall suddenly leave a curb or other place of safety and walk, jog, or run into the path of a vehicle which is so close as to constitute an immediate hazard.

c. Subsection (a) of this section shall not apply under the conditions stated in 12.04.065(b).

d. Whenever any vehicle is stopped at a marked crosswalk or at any unmarked crosswalk at an intersection to permit a pedestrian to cross the roadway, the driver of any other vehicle approaching from the rear shall not overtake and pass such stopped vehicle.

(History: Ord. TC-1260 §63, 84) (State Law: K.S.A. 1533)

12.04.065 Crossing at Other Than Crosswalks; Jaywalking.

a. Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

b. Any pedestrian crossing a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided shall yield the right-of-way to all vehicles upon the roadway.

c. Between adjacent intersections at which traffic-control signals are in operation pedestrians shall not cross at any place except in a marked crosswalk.

d. No pedestrian shall cross a roadway intersection diagonally unless authorized by official traffic-control devices; and, when authorized to cross diagonally, pedestrians shall cross only in accordance with the official traffic-control devices pertaining to such crossing movements.

(History: Ord. TC-1260 §64, 84) (State Law: K.S.A.8-1534)

12.04.066 Drivers to Exercise Due Care.

Notwithstanding other provisions of this ordinance every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian, and shall give warning by sounding the horn when necessary, and shall exercise proper precaution upon observing any child or any obviously confused or incapacitated person.

(History: Ord. TC-1260 §65, 84) (State Law: K.S.A.8-1535)

See: 12.04.002

12.04.067 Pedestrians to Use Right Half of Crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.

(History: Ord. TC-1260 §66, 84) (State Law: K.S.A.8-1536)

12.04.068 Pedestrians on Highways.

a. Where a sidewalk is provided and its use is practicable it shall be unlawful for any pedestrian to walk, jog or run along and upon an adjacent roadway.

b. Where a sidewalk is not available, any pedestrian walking, jogging or running along and upon a highway shall walk, jog or run only on a shoulder, as far as practicable from the edge of the roadway.

c. Where neither a sidewalk nor a shoulder is available, any pedestrian walking, jogging or running along and upon a highway shall walk, jog or run as near as practicable to an outside edge of the roadway, and, if on a two-way roadway, shall walk, jog or run only on the left side of the roadway.

d. Except as otherwise provided in this ordinance, any pedestrian upon a roadway shall yield the right-of-way to all vehicles upon the roadway.

(History: Ord. TC-1260 §67, 84) (State Law: K.S.A.8-1537)

12.04.069 Standing Upon a Street or Highway.

No person shall stand upon or along a street or highway except in a designated crosswalk, in the event of an emergency, or as otherwise authorized by the Municipal Code.

(History: Ord. TC-1260,FFFF §24, 2022; Ord. TC-1260 §68, 84) (State Law: K.S.A.8-1538)

12.04.070 Driving Through Safety Zone Prohibited.

No vehicle shall at any time be driven through or within a safety zone.
(History: Ord. TC-1260 §69, 84) (State Law: K.S.A.8-1539)

12.04.071 Pedestrians Right-of-Way on Sidewalks.

The driver of a vehicle shall yield the right-of-way to any pedestrian on a sidewalk.
(History: Ord. TC-1260 §70, 84) (State Law: K.S.A.8-1540)

12.04.072 Pedestrians Yield to Authorized Emergency Vehicles.

a. Upon the immediate approach of an authorized emergency vehicle making use of an audible signal meeting the requirements of 12.04.174(d) and visual signals meeting the requirements of 12.04.160, or of a police vehicle properly and lawfully making use of an audible signal only, every pedestrian shall yield the right-of-way to the authorized emergency vehicle.

b. This section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway nor from the duty to exercise due care to avoid colliding with any pedestrian.

(History: Ord. TC-1260 §71, 84) (State Law: K.S.A.8-1541)

12.04.073 Blind Pedestrian Right-of-Way.

The driver of a vehicle shall yield the right-of-way to any blind pedestrian carrying a clearly visible white cane or accompanied by a guide dog.
(History: Ord. TC-1260 §72, 84) (State Law: K.S.A. 8-1542)

12.04.074 Pedestrian Under Influence of Alcohol or Drugs.

A pedestrian who is under the influence of alcohol or any drug to a degree which renders himself a hazard shall not walk or be upon a highway except on a sidewalk.
(History: Ord. TC-1260 §73, 84) (State Law: K.S.A.8-1543)

12.04.075 Bridge or Railroad Signals.

a. No pedestrian shall enter or remain upon any bridge or approach thereto beyond the bridge signal, gate or barrier after a bridge operation signal indication has been given.

b. No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad grade crossing or bridge while such gate or barrier is closed or is being opened or closed.

(History: Ord. TC-1260 §74, 84) (State Law: K.S.A.8-1544)

Article XII. Special Stops Required

12.04.076 Obedience to Signal Indicating Approach of Train.

a. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within 50 feet but not less than 15 feet from the nearest rail of such railroad, and shall not proceed until such driver can do so safely. The foregoing requirements shall apply when:

   1. a clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train or other on-track equipment;
   2. a crossing gate is lowered or when a human flagman gives or continues to give a signal of the approach or passage of a railroad train or other on-track equipment;
   3. a railroad train or other on-track equipment approaching within approximately 1,500 feet of the highway crossing emits a signal audible from such distance and such railroad train or other on-track equipment, by reason of its speed or nearness to such crossing, is an immediate hazard; or

4. an approaching railroad train or other on-track equipment is plainly visible and is in hazardous proximity to such crossing.

b. No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad crossing while such gate or barrier is closed or is being opened or closed.

(History: Ord. TC-1260, CCCC §3, 2019; Ord. TC-1260 §75, 84) (State Law: K.S.A. 8-1551)

12.04.077 All Vehicles Must Stop at Certain Railroad Grade Crossings.

When the Secretary of Transportation or Governing Body of this City with the approval of the commission, has designated a particularly dangerous highway-grade crossing of a railroad and erected a stop sign there at, the driver of any vehicle shall stop within 50 feet but not less than 15 feet from the nearest rail of such railroad and shall proceed only upon exercising due care.

(History: Ord. TC-1260 §76, 84) (State Law: K.S.A.8-1552)

12.04.078 Certain Vehicles Must Stop at All Railroad Grade Crossings.

a. Except as provided in subsection (b), the driver of any vehicle described in regulations issued by the Secretary of Transportation in conjunction with the State Corporate Commission, before crossing at grade any track or tracks of a railroad, shall stop such vehicle within 50 feet but not less than 15 feet from the nearest rail of such railroad and while so stopped shall listen and look in both directions along such track for any approaching train, and for signals indicating the approach of a train, and shall not proceed until such driver can do so safely. After stopping as required herein and upon proceeding when it is safe to do so, the driver of any said vehicle shall cross only in such gear of the vehicle that there will be no necessity for manually changing gears while traversing such crossings and the driver shall not manually shift gears while crossing the track or tracks.

b. This section shall not apply at:

1. Any railroad grade crossing at which traffic is controlled by a police officer or human flagman;
2. Any railroad grade crossing at which traffic is controlled by a functioning highway traffic signal transmitting a green indication which, under local law, permits a vehicle to proceed across the railroad tracks without slowing or stopping;
3. Any abandoned railroad grade crossing which is marked with a sign indicating that the rail line as abandoned;
4. Any industrial or spur line railroad grade crossing marked with a sign reading "Exempt." Such exempt signs shall be erected only by or with the consent of the appropriate state or City Traffic Engineer.
5. A railroad grade crossing used exclusively for industrial switching purposes within a business district.

(History: Ord. TC-1260,FFFF §25, 2022; Ord. TC-1260,GG §5, 93; TC-1260 §77, 84) (State Law: K.S.A.8-1553)

12.04.079 Moving Heavy Equipment at Railroad Grade Crossing.

a. No person shall operate or move any crawler type tractor, steam shovel, derrick, roller or any equipment or structure having a normal operating speed of 10 or less miles per hour, or a vertical body or load clearance of less than one-half inch per foot of the distance between any two adjacent axles or in any event of less than nine inches, measured above the level surface of a roadway, upon or across any tracks at a railroad grade crossing without first complying with this section.

b. Notice of any such intended crossing shall be given to a station agent of such railroad and a reasonable time be given to such railroad to provide proper protection at such crossing.

c. Before making any such crossing, the person operating or moving any such vehicle or equipment shall first stop the same not less than 15 feet nor more than 50 feet from the nearest rail of such railroad, and while so stopped shall listen and look in both directions along such track for any approaching train and for signals indicating the approach of a train, and shall not proceed until the crossing can be made safely.

d. No such crossing shall be made when warning is given by automatic signal or crossing gates or flagman or otherwise of the immediate approach of a railroad train or car. If a flagman is provided by the railroad,

movement over the crossing shall be under his direction.

(History: Ord. TC-1260 §78, 84) (State Law: K.S.A.8-1554)

12.04.080 Emerging from Alley or Private Driveway or Building.

The driver of a vehicle emerging from an alley, building, private road or driveway within a business or residence district shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across such alley, building entrance, road or driveway, or in the event there is no sidewalk area, shall stop at the point nearest the street to be entered where the driver has a view of approaching traffic thereon.

(History: Ord. TC-1260 §79, 84) (State Law: K.S.A.8-1555)

See: 12.04.002 & 12.04.060

12.04.081 Overtaking and Passing School Bus.

a. The driver of a vehicle meeting or overtaking from either direction any school bus stopped on the highway shall stop before reaching such school bus when there is in operation on the school bus the flashing red lights specified in 12.04.170(a), and the driver shall not proceed until such school bus resumes motion or the flashing red lights and the stop signal arm are no longer actuated. If any vehicle is witnessed by a police officer or the driver of a school bus to have violated the provisions of this section and the identity of the operator is not otherwise apparent, it shall be a rebuttable presumption that the person in whose name such vehicle is registered has committed the violation, provided, that charges shall not be brought against the registered owner until a police officer has contacted the registered owner by telephone or in person concerning the violation. Provided further, where the vehicle is owned by multiple persons, only one of the owners may be convicted of the violation; provided further, this presumption shall not apply to the owners of rental vehicles.

b. Every school bus shall be equipped with red visual signals meeting the requirements of 12.04.170(a), which may be actuated by the driver of the school bus whenever but only whenever such vehicle is stopped on the highway for the purpose of receiving or discharging school children. A school bus driver shall not actuate the special visual signals:

    1. At intersections or other places where traffic is controlled by traffic-control signals or police officers; or
    2. In designated school bus loading areas where the bus is entirely off the roadway.

c. Every school bus shall bear upon the front and rear thereof plainly visible signs containing the words "school bus" in letters not less than eight inches in height.

    When a school bus is being operated upon a highway for purposes other than the actual transportation of children either to or from school or to or from interschool or intraschool functions or activities, or for maintenance, repair or storage purposes, all markings thereon indicating "school bus" shall be covered or concealed.

d. The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a school bus which is on a different roadway or when upon a controlled-access highway and the school bus is stopped in a loading zone which is a part of or adjacent to such highway, and where pedestrians are not permitted to cross the roadway.

e.

    1. On a first conviction, any person violating this section shall be punished by a fine of $315.00.
    2. For a second violation of this Section, K.S.A. 8-1556 and/or its municipal ordinance equivalents, and amendments thereto, within five years after a prior conviction of this Section, K.S.A. 8-1556 and/or its municipal equivalents and amendments thereto, such person, upon conviction, shall be fined $750.00 for the second violation.
    3. For a third and each succeeding violation of this Section, K.S.A. 8-1556 and/or its municipal ordinance equivalents, and amendments thereto, within five years after two prior convictions of this Section, K.S.A. 8-1556 and/or its municipal equivalents, and amendments thereto, such person, upon conviction, shall be fined $1,000.00 for the third and each succeeding violations.

f. The provisions of this section shall be subject to the provisions contained in K.S.A. 8-2009a, and amendments thereto.

(History: Ord. TC-1260,FFFF §26, 2022; Ord. TC-1260, AAAA §6, 2018; TC-1260,WW §4, 2002; TC-1260,NN §1, 97; TC-1260,Y §1, 91; TC-1260 §80, 84) (State Law: K.S.A. 8-1556)

12.04.082 Overtaking and Passing Church Bus or Day Care Program Bus.

a. The driver of a vehicle meeting or overtaking from either direction any church bus or day care program bus stopped on the highway shall stop before reaching such church bus or day care program bus when there is in operation on said church bus or day care program bus the flashing red lights specified in 12.04.170(a), and said driver shall not proceed until such church bus or day care program bus resumes motion or said driver is signaled by the church bus or day care program bus to proceed or the flashing red lights and stop signal arm are no longer actuated.

b. If a church bus or day care program bus is equipped with visual signals permitted by 12.04.171(c), such signals may be actuated by the driver of said church bus or day care program bus only when such vehicle is stopped on the highway for the purpose of receiving or discharging passengers. A church bus or day care program bus shall not actuate said special visual signals:

   1. At intersections or other places where traffic is controlled by traffic-control signals or police officers; or
   2. In designated loading areas where the bus is entirely off the roadway.

c. The driver of a vehicle upon a highway with separate roadways need not stop upon meeting or passing a church bus or day care program bus which is on a separate roadway or when upon a controlled-access highway and the church bus or day care program bus is stopped in a loading zone which is part of or adjacent to such highway and where pedestrians are not permitted to cross the roadway.

(History: Ord. TC-1260,FFFF §27, 2022; Ord. TC-1260 §81, 84) (State Law: K.S.A.8-1556a)

12.04.082.1 Compliance with Lawful Order or Direction of Uniformed School Crossing Guards.

No person shall willfully fail or refuse to comply with any lawful order or direction of any uniformed school crossing guard invested by law with authority to direct, control or regulate traffic.

(History: Ord. TC-1260,FFF §7, 2006) (State Law: 8-15,103)

Article XIII. Stopping, Standing and Parking

12.04.083 Stopping, Standing or Parking Outside Business or Residence Districts.

a. Outside a business or residence district, no person shall stop, park or leave standing any vehicle, whether attended or unattended, upon the roadway when it is practicable to stop, park or so leave such vehicle off the roadway, but in every event an unobstructed width of the highway opposite a standing vehicle shall be left for the free passage of other vehicles and a clear view of such stopped vehicle shall be available from a distance of 200 feet in each direction upon such highway.

b. This section, 12.04.085, and 12.04.086 shall not apply to the driver of any vehicle which is disabled in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving the vehicle in such position.

(History: Ord. TC-1260 §82, 84) (State Law:K.S.A.8-1569)

12.04.084 Officers Authorized to Remove Vehicles.

a. Whenever any police officer finds a vehicle in violation of any of the provisions of 12.04.083, such officer is hereby authorized to move such vehicle, or require the driver or other person in charge of the vehicle to move the same, to a position off the roadway.

b. Any police officer is hereby authorized to remove or cause to be removed to a place of safety any unattended vehicle illegally left standing upon any highway, bridge, causeway or in any tunnel in such position, or under such circumstances as to obstruct the normal movement of traffic.

c. Any police officer is hereby authorized to remove or cause to be removed to the nearest garage or other place of safety any vehicle found upon a highway when:

1. Report has been made that such vehicle has been stolen or taken without the consent of its owners,
2. the person or persons in charge of such vehicle are unable to provide for its custody or removal, or
3. when the person driving or in control of such vehicle is arrested for an alleged offense for which the officer is required by law to take the person arrested before the municipal judge without unnecessary delay.

(History: Ord. TC-1260 §83, 84) (State Law: K.S.A. 8-1570)

12.04.085 Stopping, Standing or Parking Prohibited in Specified Places.

Except when necessary to avoid conflict with other traffic, in compliance with law or the directions of a police officer or official traffic-control device, no person shall:

a. Stop, stand or park a vehicle:

1. On the roadway side of any vehicle stopped or parked at the edge or curb of a street;
2. On a sidewalk;
3. Within an intersection;
4. On a crosswalk;
5. Between a safety zone and the adjacent curb or within 30 feet of points on the curb immediately opposite the ends of a safety zone, unless a different length is indicated by signs or markings;
6. Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;
7. Upon any bridge or other elevated structure upon a highway or within a highway tunnel;
8. On any railroad tracks;
9. On any controlled-access highway;
10. In the area between roadways of a divided highway, including crossovers;
11. At any place where official signs prohibit stopping; or
12. On the parkway of any street.

b. Stand or park a vehicle, whether occupied or not, except momentarily to pick up or discharge a passenger or passengers:

1. In front of a public or private driveway;
2. Within 15 feet of a fire hydrant;
3. Within 20 feet of a crosswalk at an intersection;
4. Within 30 feet upon the approach to any flashing signal, stop sign, yield sign or traffic-control signal located at the side of a roadway;
5. Within 20 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of said entrance, when properly sign posted; or
6. At any place when official signs prohibit standing.

c. Park a vehicle, whether occupied or not, except temporarily for the purpose of and while actually engaged in loading or unloading property or passengers:

1. Within 50 feet of the nearest rail of a railroad crossing; or
2. At any place where official signs prohibit parking.
3. Park a vehicle within 5 feet of a street side mailbox between 8:00 a.m. and 5:00 p.m., except holidays.

d. Move a vehicle not lawfully under the person's control into any such prohibited area or away from a curb such a distance as is unlawful.

e. Stand or park a vehicle in areas designated as fire lanes upon public or private property.

(History: Ord. TC-1260,FFFF §28, 2022; Ord. TC-1260, EEEE §1, 2019; Ord. TC-1260,DDDD §1, 2019; Ord. TC-1260 §84, 84) (State Law: K.S.A.8-1571)

See: 12.04.002

12.04.085.1 Parking Prohibited.

No person shall park a motor vehicle in or upon any land or defined parking area or lot which adjoins, abuts, surrounds, is contiguous to or part of a building which is used strictly for the conducting or operating of official business for the City of Overland Park, Kansas, unless such person is an elected official, officer, employee, guest or invitee of the City or unless the person parking such motor vehicle does so with the intent to attend to or conduct actual business in the governmental building of the City.

(History: Ord. TC-1260 §85, 84)

12.04.085.2 Parking in Certain Designated Areas Prohibited.

a. No person shall park, stop, or operate a motor vehicle in or on any private or public parking area or lot that is posted with notice of prohibited parking signs posted as provided herein.

b. The provisions of this Section shall not be applicable to any parking lot or area unless the following signage, or substantially similar signage, is clearly and properly posted at all entrances to said parking areas or lots, to-wit:

NOTICE

Pursuant to Overland Park Municipal Code 12.04.085.2, no parking, stopping, or operation of a motor vehicle is permitted in this parking area or lot during the hours of_____ to _____. Conviction of a violation of this Section shall result in a minimum fine of $100.00.

c. The provisions of this Section shall not apply to individuals conducting business or working on the premises of buildings served by the posted parking areas or lots.

d. Upon conviction of a first offense of this Section, the defendant shall be fined not less than $100.00 nor more than $1,000.00. Upon conviction for a second offense, within any given twelve month period, the defendant shall be fined not less than $250.00 and not more than $1,000.00. Upon conviction of a third offense of this Section during any twenty-four month period, the defendant shall be fined not less than $500.00 nor more than $1,000.00. No portion of any minimum fine assessed pursuant to this Section shall be suspended nor shall the defendant be placed on parole from any portion of the penalty assessed.

(History: Ord. TC-1260,VVV §3, 2014; TC-1260,N §1, 89)

12.04.085.3 Parking in Designated Electric Vehicle Charging Area

Section 1. Overland Park Municipal Code Section 12.04.085.3 is hereby added to read as follows:

a. No person shall occupy or otherwise block or obstruct a designated electric vehicle charging station or stall unless that vehicle is plugged into a charging station, in any private or public parking area or lot.

b. The provisions of this Section shall not be applicable to any electric vehicle charging station unless the following signage, or substantially similar signage, is clearly and properly posted in front of each electric vehicle charging station or stall to-wit:

NOTICE

Pursuant to Overland Park Municipal Code 12.04.085.3, only vehicles plugged into a charging station may occupy this area. Conviction of a violation of this Section shall result in a minimum fine of $100.00.

or

Pursuant to Overland Park Municipal Code 12.04.085.3, only vehicles plugged into a charging station may park in this area during the hours of _____ to _____, (Days of the week optional). Conviction of a violation of

this Section shall result in a minimum fine of $100.00

c. The provisions of this Section shall not apply to individuals maintaining infrastructure within the private or public parking area or lot or performing emergency services.

d. Upon conviction of a first offense of this Section, the defendant shall be fined not less than $100.00 nor more than $1,000.00. Upon conviction for a second offense, within any given twelve month period, the defendant shall be fined not less than $250.00 and not more than $1,000.00. Upon conviction of a third offense of this Section during any twenty-four month period, the defendant shall be fined not less than $500.00 nor more than $1,000.00. No portion of any minimum fine assessed pursuant to this Section shall be suspended nor shall the defendant be placed on parole from any portion of the penalty assessed.

e. As used in this Section, electric vehicle charging station means any parking stall in any private or public parking area or lot that is designed for vehicles to charge.

f. This Section shall not apply to any City of Overland Park owned or leased vehicle, parked overnight at a City Facility.

(History: Ord. TC-3452 §1, 2024)

12.04.086 Stopping or Parking on Roadways.

a. Except where angle parking is permitted by ordinance every vehicle stopped or parked upon a two-way roadway shall be so stopped or parked with the right-hand wheels parallel to and within 12 inches of the right-hand curb or as close as practicable to the right-hand edge of the right-hand shoulder.

b. Except when otherwise provided by ordinance, every vehicle stopped or parked upon a one-way roadway shall be so stopped or parked parallel to the curb or edge of the roadway, in the direction of authorized traffic movement, with its right-hand wheels within 12 inches of the right-hand curb or as close as practicable to the right edge of the right-hand shoulder or with its left-hand wheels within 12 inches of the left-hand curb or as close as practicable to the left edge of the left-hand shoulder.

c. The Governing Body may by ordinance permit angle parking on any roadway, except that angle parking shall not be permitted on any federal-aid or state highway unless the commission has determined that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic.

(History: Ord. TC-1260 §86, 84) (State Law: K.S.A.8-1572)

12.04.087 Accessible Parking For Persons With A Disability.

a. At no time, except when necessary to avoid conflict with other traffic or in compliance with the law or the directions of a law enforcement officer or official traffic-control device, shall a person:

   1. Stop, stand or park a vehicle in any parking space designated as accessible parking without displaying a special license plate, permanent placard or disabled veteran license plate and an individual identification card, or a valid temporary placard. Placards shall be displayed in accordance with subsection (a) of K.S.A. 8-1,125 and amendments thereto;
   2. Stop, stand or park a vehicle so that it blocks an access entrance;
   3. Stop, stand or park a vehicle so that it blocks a disabled parking stall;
   4. Stop, stand or park a vehicle so that it blocks an access aisle; or
   5. Stop, stand or park a vehicle in an access aisle between or beside a designated accessible parking space.

b. The provisions of subsection (a)(1) shall be enforced by law enforcement officers on public and private property.

c. When a motor vehicle which bears a special license plate, placard or decal issued pursuant to K.S.A. 8-1,125, and amendments thereto, is being operated by or used for the transportation of a person with a disability,

such motor vehicle:

1. May be parked in any parking space, whether on public or private property, which is clearly marked as being reserved for the use of persons with a disability or persons responsible for the transportation of a person with a disability, except a parking space on private property which is clearly marked as being reserved for the use of a specified person with a disability;
2. May be parked for a period of time not to exceed 24 hours in any parking zone which is restricted as to the length of parking time permitted, except where stopping, standing or parking is prohibited to all vehicles, where parking is reserved for special types of vehicles, or where parking would clearly present a traffic hazard; and
3. Shall be exempt from any parking meter fees of the state or any city, county or other political subdivision.

d. Official identification devices issued to persons with a disability by any other state, district, or territory subject to the laws of the United States, or any foreign jurisdiction, shall be recognized as acceptable identification. Motor vehicles bearing a valid device from such a jurisdiction shall be accorded the parking privileges contained in subsection (b), except that if such person becomes a resident of the state of Kansas, such identification devices shall not be recognized as acceptable identification 60 days after such person becomes a resident of this state and such device shall be deemed expired. Possession of an identification device deemed to have expired shall be subject to the provisions of section (g) of this section.

e.
1. Notwithstanding the provisions of K.S.A. 8-2003, and amendments thereto, each designated accessible parking space shall be clearly marked by vertically mounted signs bearing the international symbol of access.
2. All parking shall conform to Title II or Title III, as required by the Americans with Disabilities Act of 1990, 42 USCA 12101 et seq. and 28 CFR Parts 35 and 36.

f. Violation of subsection (a) is punishable by a fine of not less than $50.00 nor more than $100.00.

g.
1. Any person who willfully and falsely represents that such person has the qualifications to obtain a special license plate, a permanent placard and an individual identification card or temporary placard shall be guilty of a violation of this ordinance and shall be punished by a fine of not more than $500.00 or by imprisonment for not more than one month or by both such fine and imprisonment.
2. Any person authorized to certify a person with a disability under K.S.A. 8-1,125(a), and amendments thereto, who willfully and falsely certifies that a person has the qualifications to obtain a special license plate, a permanent placard and an individual identification card or temporary placard shall be guilty of a violation of this ordinance and shall be punished by a fine of not more than $500.00 or by imprisonment for not more than one month or by both such fine and imprisonment. (See K.S.A. 8-1,125:8-1,130, as amended.)

h.
1. Any person who has in such person's possession any accessible parking identification device which has expired or has been revoked or suspended by the secretary of revenue pursuant to subsection (c) of K.S.A. 8-1,125, and amendments thereto, or K.S.A. 8-1,130b, and amendments thereto, shall be guilty of a violation of this ordinance and shall be punished by a fine of not less than $100.00 nor more than $300.00.
2. Any person who utilizes any accessible parking identification device issued to another person, an agency or a business, to park in any parking space specified in subsection (b) which could be utilized by a person with a disability, except when transporting or arriving to transport a person with a disability to whom or for whom the identification device was issued shall be guilty of a violation of this ordinance and shall be punished by a fine of not less than $100.00 nor more than $300.00.

(History: Ord. TC-1260,FFFF §29, 2022; Ord. TC-1260,UU §3, 2000; TC-1260,RR §1, 99; Ord. TC-1260,KK, §7, 95; TC-1260,CC §2, 92; TC-1260H §1, 87; TC-1260,C §1, 86; TC-1260 §87, 84) (State Law: K.S.A. 8-1,126; K.S.A. 8-1,127; K.S.A. 8-1,128; K.S.A. 8-1,129; K.S.A. 8-1,130; K.S.A. 8-1,130a)

See: 12.04.002

12.04.088 Parking for Certain Purposes Prohibited.

A. No person shall park a vehicle to include, but not be limited to, motor vehicles, motor homes, trucks, trailers, boats, and recreational vehicles upon the property of another for the primary purpose of selling or offering the vehicle for sale unless such vehicle displays current registration and such person first obtains the written consent of the owner of such property and displays such consent in a manner so as to be clearly visible from outside the vehicle.

1. A vehicle shall be deemed offered for sale pursuant to this Section if it bears any sign, writing or other form of communication or advertising that indicates the vehicle is for sale.
2. To be valid, written consent under this Section shall be signed by the owner of the property upon which the vehicle is to be displayed for sale and shall include a telephone number where said owner can be reached to verify consent. The written consent shall also describe the date and duration of the consent, the make and model of the vehicle, as well as the location of the property upon which the vehicle will be displayed for sale.
3. No property owner shall give written consent under this Section unless the property upon which the vehicle will be parked for sale is zoned for that type of use.

B. No person shall park a vehicle to include, but not be limited to, motor vehicles, motor homes, trucks, trailers, boats, and recreational vehicles upon any roadway or private or public parking lot with the exception of private residential driveways or commercial vehicle dealerships if not in conflict with any other section of this code, for the principal purpose of greasing or repairing such vehicle except repairs necessitated by an emergency.

C. The Governing Body finds that in order to protect the interest of private property owners from unwanted vehicles being parked on their property and to promote aesthetics by preserving the proper zoned use of property, it is necessary to regulate the manner in which vehicles are parked for sale on the property of another.

(History: Ord. TC-1260,KKK §3, 2007; TC-1260,TT §1, 2000; TC-1260,E §1, 87; TC-1260 §88, 84)

12.04.089 Parking Where Stalls.

Where parking stalls or spaces are marked or designated on the pavement or curb, vehicles shall be parked or stopped within such stalls or spaces in the direction of the flow of traffic or at the angle indicated by the markings; provided in the Overland Park Downtown Business District, as defined by OPMC Section 2.14.010, where signs are posted prohibiting such parking, no person shall back a vehicle into a parking stall.

(History: Ord. TC-1260,AA §1, 91;TC-1260 §89, 84)

12.04.090 Blocking Traffic; Narrow Streets; Stopping; When.

No person shall stop, stand or park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than 10 feet of the width of the roadway for free movement of vehicular traffic, except that a driver may stop temporarily during the actual loading or unloading of passengers or when necessary in obedience to traffic regulations or traffic signs or signals by a police officer.

(History: Ord. TC-1260 §90, 84)

12.04.091 Parking on Narrow Streets; Signs.

When signs prohibiting parking are erected on narrow streets, no person shall park or stand a vehicle in any such designated place. The City Traffic Engineer is authorized to erect signs indicating "no parking" upon both sides of any street when the width of the roadway does not exceed 20 feet, or upon one side of a street when the width of the roadway does not exceed 30 feet.

(History: Ord. TC-1260,C §1, 86; TC-1260 §91, 84)

12.04.092 Parking in Alley.

a. No person shall park any vehicle in any alley except for the purpose of loading or unloading.

b. No person shall park any vehicle in any alley for any time of greater duration than reasonably necessary for the expeditious loading or unloading of materials.

(History: Ord. TC-1260 §92, 84)

12.04.093 Parking Disabled and Other Vehicles.

No person, firm or corporation shall park or store any dead or damaged vehicle or farm machinery, trailer or semitrailer of any kind, or parts of the same, or any disabled vehicles or farm machinery or trailers, or semitrailers, in the roadway of any highway.

(History: Ord. TC-1260PP §4, 98; TC-1260 §93, 84)

12.04.093.1 Abandonment of Motor Vehicles.

No person shall use the public highway to abandon, leave or store a motor vehicle, farm machinery, or trailer or use the highway to leave vehicles unattended either in such a manner as to interfere with public highway operations or for a period of time in excess of 48 hours. Whenever any person leaves a motor vehicle on a public highway or other property open to use by the public, the Chief of Police or his authorized representatives, after 48 hours or when the motor vehicle interferes with public highway operations, may remove, impound and dispose of the motor vehicle, farm machinery, or trailer in the manner prescribed by K.S.A. 8-1102 or any amendments thereto.

(History: Ord. TC-1260 CC §3, 92; TC-1260 §94, 84)

12.04.094 Parking Adjacent to Schools; Signs.

When official signs or markings are placed indicating no parking upon any street adjacent to any school property, no person shall park a vehicle in any such designated place. The City Traffic Engineer is hereby authorized to erect signs indicating "no parking" upon either or both sides of any street adjacent to any school property when such parking would unreasonably interfere with traffic or create a hazard to traffic in such places.

(History: Ord. TC-1260,C §1, 86; TC-1260 §95, 84)

12.04.095 Stopping or Parking in Hazardous or Congested Places; Signs.

When signs are erected upon approach to hazardous or congested places, no person shall stop, stand or park a vehicle in any such designated place. The City Traffic Engineer is authorized to determine and designate by proper signs those places where the stopping or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic.

(History: Ord. TC-1260 §96, 84)

12.04.096 Parking Prohibited at All Times in Designated Places.

When authorized signs are erected giving notice thereof, no person shall park a vehicle at any time upon that portion of any of the streets so posted or signed for "no parking."

(History: Ord. TC-1260 §97, 84)

12.04.097 Limited Time Parking Zones.

Whenever any appropriate sign shall be placed and maintained by lawful authority of the City giving notice that the street, highway, or City-owned parking lot may be used for parking or standing vehicles for a limited time only, it shall be unlawful for any persons to fail or refuse to comply with such sign.

(History: Ord. TC-1260 §98, 84)

12.04.098 Commercial and Delivery Vehicles: Loading and Unloading; Blocking Traffic; Removal of Vehicle; Duty of Police Department.

Subject to any provision prohibiting parking at all times or during specified hours, vehicles used for the transportation of merchandise or materials may stand or be parked at the curb to take on or discharge loads on any street marked for parallel parking: Provided, that such vehicles may be backed into any curb at such times and places when and where the same may not interfere with or become a hazard to vehicular traffic on such street within the block: Provided further, that traffic may be temporarily blocked by any such vehicle backed into any curb to load or unload when the same may be necessary during such times as loading or unloading shall be

undertaken in an expeditious manner without any delay, upon prior notice to and under the direction and supervision of the Police Department: Provided further, that the driver or some person in charge of such vehicle shall constantly be present or available to remove such vehicle in an emergency and the vehicle shall be removed immediately upon the same being loaded or unloaded as the case may be. The Chief of Police may place suitable warning signs to direct or control traffic during the time any street may be blocked or traffic restricted from its normal flow or course.
(History: Ord. TC-1260 §99, 84)

12.04.098.1 Prohibitions Against Parking in Residential Districts.

a. No person shall stop, stand or park a vehicle which dimensions exceed seven feet in height or twenty feet in length or eight feet in width on any street or alley within any residential district or on any property in a private residential parking area or private residential common area for more than two hours except when necessarily loading or unloading property or when in the performance of a service to or upon property in the block where the vehicle is parked.

b. No person shall stop, stand or park any vehicle with an auxiliary engine in any residential district between the hours of 10:00 p.m. and 8:00 a.m. with the auxiliary motor or air conditioning unit in operation.

c. No person shall stop, stand, or park any vehicle or combination of vehicles on any public parking lot continuously for more than 24 hours.

d. No person shall stop, stand, or park any vehicle or combination of vehicles on or in any public parking lot in violation of any restrictions that are posted in a manner reasonably likely to come to the attention of persons entering into or onto the parking lot or where the parking lot is locked, fenced, or otherwise enclosed or shut or secured against passage or entry or where an authorized public officer has ordered such person to leave such premises.

The provisions of this section may not be defeated by a mere location change of any offending vehicle within the residential district or the private residential parking area or private residential common area or public parking lot.
(History: Ord. TC-1260,D §1, 86; TC-1260,C §1, 86;TC-1260 §100, 84)

12.04.099 Loading, Unloading or Special Zones.

Whenever any appropriate sign shall be placed or marked along any street or highway by lawful authority of the City giving notice of any special use of the roadway adjacent thereto for the loading or unloading of merchandise or passengers or the standing of taxicabs, buses or for other authorized purposes, it shall be unlawful for any person to refuse or fail to comply with such sign.
(History: Ord. TC-1260 §101, 84)

12.04.100 Citation on Illegally Parked Vehicles.

Whenever any motor vehicle without driver is found parked, standing or stopped in violation of this ordinance, the officer finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its user, and shall conspicuously affix to such vehicle a traffic citation.
(History: Ord. TC-1260 §102, 84) (State Law: K.S.A.8-2112)

12.04.101 Failure to Comply With Traffic Citation Attached to Parked Vehicle.

If a violator of restrictions on stopping, standing or parking does not appear in response to a traffic citation affixed to such motor vehicle within a period of five days, the clerk of the court, shall send to the owner of the motor vehicle to which the traffic citation was affixed a letter informing him of the violation and warning him that in the event such letter is disregarded for a period of five days, a warrant of arrest will be issued.
(History: Ord. TC-1260 §103, 84) (State Law: K.S.A.8-2113)

12.04.102 Presumption in Reference to Illegal Parking.

a. In any prosecution charging a violation of any law or regulation governing the stopping, standing or parking of a vehicle, proof that the particular vehicle described in the complaint was in violation of any such law or

regulation, together with proof that the defendant named in the complaint was at the time of the violation the registered owner of such vehicle, shall constitute in evidence a prima facie presumption that the registered owner of such vehicle was the person who parked or placed such vehicle at the point where, and for the time during which, such violation occurred.

b. The foregoing stated presumption shall apply only when the procedure as prescribed in 12.04.100 and 12.04.101 has been followed.

(History: Ord. TC-1260 §104, 84) (State Law: K.S.A. 8-2114)

12.04.103 Inattentive Driving.

No person shall operate a vehicle in an inattentive manner. Inattentive operation of a vehicle is defined as operation of a vehicle without due regard for the road, weather and traffic conditions and other attendant circumstances then existing.

(History: TC-1260,EEE §1, 2006)

Article XIV. Miscellaneous Rules

12.04.104 Littering from Motor Vehicle.

No person shall throw, place or drop litter or allow litter to be thrown, placed or dropped from a motor vehicle onto any highway, road or street. The driver of the motor vehicle may be cited for any litter thrown, placed or dropped from the motor vehicle, unless any other person in the motor vehicle admits to or is identified as having committed the act.

(History: Ord. TC-1260,BBB §4, 2004; TC-1260,K §1, 89) (State Law: K.S.A. 8-15,102)

12.04.105 Consumption of Intoxicating Liquor.

a. No person shall drink or consume intoxicating liquor while operating any vehicle upon any street, alley, road or highway.

b. Violation of this section is punishable by a fine of not less than $50.00 nor more than $200.00 or by imprisonment for up to six months, or both. In addition, any person under the age of 21 who is convicted of a violation of this section or diverted in lieu of further criminal proceedings shall be required to submit to and complete an alcohol and drug evaluation by a community-based alcohol and drug safety action program certified pursuant to K.S.A. 8-1008 and amendments thereto and to pay a fee for such evaluation.

(History: Ord. TC-1260,FFFF §30, 2022; Ord. TC-1260,T §1, 90; TC-1260,O §1, 89; TC-1260 §105, 84)

See: 12.04.002

12.04.106 Transportation of Intoxicating Liquor.

a. No person shall transport in any vehicle upon a highway or street any intoxicating liquor unless such intoxicating liquor is:

1. In the original unopened package or container, the seal of which has not been broken and from which the original cap, cork or other means of closure has not been removed;

2. A. In the locked rear trunk or rear compartment, or any locked outside compartment which is not accessible to any person in the vehicle while it is in motion; or

   B. If a motor vehicle is not equipped with a trunk, behind the last upright seat or in an area not normally occupied by the driver or a passenger; or

3. In the exclusive possession of a passenger in a vehicle which is a recreational vehicle, or a bus, who is not in the driving compartment of such vehicle or who is in a portion of such vehicle from which the driver is not directly accessible.

b. Violation of this section is punishable by a fine of not more than $200.00 or by imprisonment for not more than six months, or both.

c. Except as provided in subsection (f) upon conviction or adjudication of a second or subsequent violation of this section, the judge, in addition to any other penalty or disposition ordered pursuant to law, shall suspend the person's driver's license or privilege to operate a motor vehicle on the streets and highways of this state for one year.

d. Upon suspension of a license pursuant to this section, the court shall require the person to surrender the license to the court, which shall transmit the license to the division of motor vehicles of the department of revenue, to be retained until the period of suspension expires. At that time, the licensee may apply to the division for return of the license. If the license has expired, the person may apply for a new license, which shall be issued promptly upon payment of the proper fee and satisfaction of other conditions established by law for obtaining a license unless another suspension or revocation of the person's privilege to operate a motor vehicle is in effect.

e. As used in this section, "highway" and "street" have the meanings provided by K.S.A. 8-4124 and 8-1473, and amendments thereto.

f. In lieu of suspending the driver's license or privilege to operate a motor vehicle on the highways of this state of any person convicted of violating this section, as provided in subsection (d), the judge of the court in which such person was convicted may enter an order which places conditions on such person's privilege of operating a motor vehicle on the highways of this state, a certified copy of which such person shall be required to carry any time such person is operating a motor vehicle on the highways of this state. Any such order shall prescribe the duration of the conditions imposed, which in no event shall be for a period of more than one year for a second violation.

   Upon entering an order restricting a person's license hereunder, the judge shall require such person to surrender such person's driver's license to the judge who shall cause it to be transmitted to the division of vehicles, together with a copy of the order. Upon receipt thereof, the division of vehicles shall issue without charge a driver's license which shall indicate on its face that conditions have been imposed on such person's privilege of operating a motor vehicle and that a certified copy of the order imposing such conditions is required to be carried by the person for whom the license was issued any time such person is operating a motor vehicle on the highways of this state. If the person convicted is a nonresident, the judge shall cause a copy of the order to be transmitted to the division and the division shall forward a copy of it to the motor vehicle administrator of such person's state of residence. Such judge shall furnish to any person whose driver's license has had conditions imposed on it under this section a copy of the order, which shall be recognized as a valid Kansas driver's license until such time as the division shall issue the restricted license provided for in this section.

   Upon expiration of the period of time for which conditions are imposed pursuant to this subsection, the licensee may apply to the division for the return of the license previously surrendered by such licensee. In the event such license has expired, such person may apply to the division for a new license, which shall be issued immediately by the division upon payment of the proper fee and satisfaction of the other conditions established by law, unless such person's privilege to operate a motor vehicle on the highways of this state has been suspended or revoked prior thereto. If any person shall violate any of the conditions imposed under this subsection, such person's driver's license or privilege to operate a motor vehicle on the highways of this state shall be revoked for a period of not less than 60 days nor more than one year by the judge of the court in which such person is convicted of violating such conditions.

g. It shall be an affirmative defense to any prosecution under this section that an occupant of the vehicle other than the defendant was in exclusive possession of the intoxicating liquor.

h. The court shall report to the division every conviction of a violation of this section. Prior to sentencing under the provisions of this section, the court shall request and shall receive from the division a record of all prior convictions obtained against such person for any violations of any of the motor vehicle laws of this state.

i. For the purpose of determining whether a conviction is a first, second or subsequent conviction in sentencing under this section:

1. "Conviction" includes being convicted of a violation of K.S.A. 8-1599, and amendments thereto, an ordinance of any city, or resolution of any county, which prohibits the acts that this section prohibits;
2. Only convictions occurring in the immediately preceding five years, including prior to the effective date of this act, shall be taken into account, but the court may consider other prior convictions in determining the sentence to be imposed within the limits provided for a first, second or subsequent offender, whichever is applicable; and
3. It is irrelevant whether an offense occurred before or after conviction for a previous offense.

(History: Ord. TC-1260,FFFF §31, 2022; Ord. TC-1260,FFF §8, 2006; TC-1260,JJ §6, 94; TC-1260,GG §6, 93; TC-1260,T § 2, 90; TC-1260,O §2, 89; TC-1260 §106, 84) (State Law: K.S.A. 8-1599)
See: 12.04.002

12.04.107 Unattended Motor Vehicle; Ignition; Key and Brakes.

a. No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition, removing the key from the ignition, effectively setting the brake thereon and, when standing upon any grade, turning the front wheels to the curb or side of the highway.
b. For the purpose of this section, unattended shall not be construed to mean a motor vehicle with an engine that has been activated by a remote starter system, when the motor vehicle is locked and when the ignition keys are not in the motor vehicle.
c. This section shall not apply to public or private utility vehicles engaged in the restoration of utility services or to emergency vehicles as defined by K.S.A. 2016 Supp. 8-1404, and amendments thereto, either in use during an emergency or in the performance of law enforcement, firefighting, rescue or medical duties, including those vehicles transporting canines as part of a law enforcement function.

(History: Ord. TC-1260,YYY §2, 2017; TC-1260,YY §2, 2003; TC-1260,TT §2, 2000; TC-1260 §107, 84) (State Law: K.S.A. 8-1573)

12.04.108 Obstruction of Driver's View or Driving Mechanism.

a. No person shall drive a vehicle when it is so loaded, or when there are in the front seat such number of persons, exceeding three, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.
b. No passenger in a vehicle shall ride in such position as to interfere with the driver's view ahead or to the sides, or to interfere with his control over the driving mechanism of the vehicle.

(History: Ord. TC-1260 §108, 84) (State Law: K.S.A. 8-1576)

12.04.109 Coasting.

a. The driver of any motor vehicle when traveling upon a down grade shall not coast with the gears or transmission of such vehicle in neutral.
b. The driver of a truck or bus when traveling upon a down grade shall not coast with the clutch disengaged.

(History: Ord. TC-1260,FFFF §32, 2022; Ord. TC-1260 §109, 84) (State Law: K.S.A. 8-1580)

12.04.110 Following Fire Apparatus Prohibited.

The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than 500 feet or stop such vehicle within 500 feet of any fire apparatus stopped in answer to a fire alarm.
(History: Ord. TC-1260 §110, 84) (State Law: K.S.A.8-1581)

12.04.111 Crossing Fire Hose.

No vehicle shall be driven over any unprotected hose of a Fire Department when laid down on any street, private road or driveway, to be used at any fire or alarm of fire, without the consent of the Fire Department official in command.

(History: Ord. TC-1260,FFFF §33, 2022; Ord. TC-1260 §111, 84) (State Law: K.S.A.8-1582)

12.04.112 Putting Glass, Etc., on Highway Prohibited.

a. No person shall throw or deposit upon any highway any glass bottle, glass, nails, tacks, wire, cans or any other substance likely to injure any person, animal or vehicle upon such highway.

b. Any person who drops, or permits to be dropped or thrown, upon any highway any destructive or injurious material shall immediately remove the same or cause it to be removed.

c. Any person removing a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from such vehicle.

(History: Ord. TC-1260 §112, 84) (State Law: K.S.A. 8-1583)

12.04.113 Obstructing Traffic.

a. No driver shall enter an intersection or a marked crosswalk or drive onto any railroad grade crossing unless there is sufficient space on the other side of the intersection, crosswalk or railroad grade crossing to accommodate the vehicle such driver is operating without obstructing the passage of other vehicles, pedestrians or railroad trains notwithstanding any traffic-control signal indication to proceed.

b. Except in the case of an accident involving death or apparent injury of any person, or the transportation of hazardous material, the owner or driver of a vehicle which obstructs the regular flow of traffic on any interstate highway, U.S. highway, or any multilane or divided roadway, shall make every reasonable effort to move the vehicle from the roadway, if, moving the vehicle may be done safely, does not require towing and may be operated under its own power without further damage to the vehicle or the roadway and without endangering other vehicles or persons upon the roadway.

c. Except in the case of an accident involving death or apparent injury of any person or the transportation of hazardous material, authorized employees or agents of the Kansas Department of Transportation, Kansas Highway Patrol, the Overland Park Police Department or any other law enforcement agency without the consent of the driver or owner of the vehicle or property, may require, assist in or cause the removal from the roadway any vehicle, debris or any other property which is obstructing the regular flow of traffic, creating or aggravating an emergency situation or otherwise endangering public safety.

d. Notwithstanding the provisions of this Section, a driver is required to comply with the applicable provisions of O.P.M.C. 12.04.023 et seq., and amendments thereto.

(History: Ord. TC-1260,FFFF §34, 2022; Ord. TC-1260,PPP §6, 2009; TC-1260 §113, 84) (State Law: K.S.A. 8-1584; K.S.A. 8-15,107)

12.04.114 Snowmobile Operation Limited.

No person shall operate a snowmobile on any controlled-access highway. No person shall operate a snowmobile on any other highway, except when crossing the highway at a right angle, or when use of the highway by other motor vehicles is impossible because of snow, or when such operation is authorized by the Governing Body.

(History: Ord. TC-1260 §114, 84) (State Law: K.S.A. 8-1585)

12.04.115 Unlawful Riding.

a. It shall be unlawful for any person to ride on any vehicle or upon any portion thereof not designed or intended for use of passengers when the vehicle is in motion.

b. It shall be unlawful for the operator of any vehicle to allow any person to ride on any vehicle or upon any portion thereof not designated or intended for the use of passengers when the vehicle is in motion.

c. This section shall not apply to an employee engaged in the necessary discharge of the employee's duty within truck bodies in space intended for merchandise or cargo; or (2) when the vehicle is being operated in parades, caravans or exhibitions which are officially authorized or otherwise permitted by law.

(History: Ord. TC-1260,DD §1, 92; TC-1260 §115, 84) (State Law: K.S.A. 8-1578a)

12.04.116 Driving Upon Sidewalk.

No person shall drive any vehicle upon a sidewalk or sidewalk area except upon a permanent or duly authorized temporary driveway.

(History: Ord. TC-1260 §116, 84) (State Law: K.S.A.8-1575)

12.04.117 Limitations on Backing.

a. The driver of a vehicle shall not back the same unless such movement can be made with safety and without interfering with other traffic.

b. The driver of a vehicle shall not back the same upon any shoulder or roadway of any controlled-access highway.

(History: Ord. TC-1260 §117, 84) (State Law: K.S.A. 8-1574)

See: 12.04.002

12.04.118 Driving Through or On Private Property to Avoid Traffic Control Devices.

No person shall drive through the property of a gasoline service station or the service entrance of any public or private property adjacent to any street intersection to avoid any official traffic control device or short cut from one street to another.

(History: Ord. TC-1260 §118, 84)

12.04.119 Child Restraints.

a. Every driver who transports a child under the age of 14 years in a passenger car as defined by K.S.A. 8-1343a, and amendments thereto, or an autocycle, on a highway and amendments thereto, shall provide for the protection of the child by properly using:

   1. For a child under the age of four years, an appropriate child passenger restraining system that meets or exceeds the standards and specifications contained in Federal Motor Vehicle Safety Standard No. 213.

   2. For a child four years of age, but under the age of eight years and who weighs less than 80 pounds or is less than 4 feet 9 inches in height, an appropriate child passenger safety restraining system that meets or exceeds the standards and specifications contained in Federal Motor Vehicle Safety Standard No. 213.

   3. For a child from eight years of age but under the age of 14 years or who weighs more than 80 pounds or is more than 4 feet 9 inches in height, a safety belt manufactured in compliance with Federal Motor Vehicle Safety Standard No. 208.

b. If the number of children subject to the requirements of subsection (a) exceeds the number of passenger securing locations available for use by children affected by such requirements, and all of these securing locations are in use by children, then there is not a violation of this Section.

c. If a securing location only has a lap safety belt available, the provisions of subsection (a)(2) shall not apply and the child shall be secured in accordance with the provisions of subsection (a)(3).

d. Upon conviction of a violation of this Section, a fine in the amount of $60.00 shall be imposed by the court. The failure to provide a child safety restraining system or safety belt for more than one child in the same passenger car or autocycle at the same time shall be treated as a single violation.

e. The $60.00 fine provided for in subsection (d) shall be waived if the driver convicted of violating subsections (a)(1) or (a)(2) provides proof to the court that such driver has purchased or acquired the appropriate and approved child passenger safety restraining system. At the time of issuing the citation for a violation of subsections (a)(1) and (a)(2), the law enforcement officer shall notify the driver of the waiver provisions of this subsection.

f. No driver charged with violating the provisions of this Section shall be convicted if such driver produces in the office of the arresting officer or in the court proof that the child was 14 years of age or older at the time the violation was alleged to have occurred.

(History: Ord. TC-1260,FFFF §35, 2022; Ord. TC-1260,WWW §3, 2015; TC-1260,FFF §9, 2006; TC-1260,CCC §2, 2005; TC-1260,NN §2, 97; TC-1260,DD §2, 92; TC-1260,P §1, 89; TC-1260 §119, 84) (State Law: K.S.A. 8-1344; K.S.A.

8-1345)

12.04.119.1 Safety Belts.

a. Except as provided in subsection (b):
   1. Each occupant of either a passenger car manufactured with safety belts in compliance with Federal Motor Vehicle Safety Standard No. 208, or an autocycle, who is 18 years of age or older, shall have a safety belt properly fastened about such person's body at all times when the passenger car is in motion; and
   2. Each occupant of either a passenger car manufactured with safety belts in compliance with Federal Motor Vehicle Safety Standard No. 208, or an autocycle, who is at least 14 years of age but less than 18 years of age, shall have a safety belt properly fastened about such person's body at all times when the passenger car is in motion.

b. This Section does not apply to:
   1. An occupant of a passenger car who possesses a written statement from a licensed physician that such person is unable for medical reasons to wear a safety belt system;
   2. Carriers of United States mail while actually engaged in delivery and collection of mail along their specified routes;
   3. Newspaper delivery persons while actually engaged in delivery of newspapers along their specified routes.

c. For purposes of this Section, "passenger car" means a motor vehicle, manufactured or assembled after January 1, 1968, or a motor vehicle manufactured or assembled prior to 1968 which was manufactured or assembled with safety belts, with motive power designed for carrying 10 passengers or fewer, including vans, but excluding motorcycles, or a motor driven cycle.

d. Law enforcement officers shall not stop drivers for violations of subsection (a)(1) by a back seat occupant in the absence of another violation of law. A citation for a violation of subsection (a)(1) by a backseat occupant shall not be issued without citing the violation that initially caused the officer to effect the enforcement stop.

e. Persons violating subsection (a)(1) shall be fined $30.00 and no court costs.

f. Persons violating subsection (a)(2) shall be fined $60.00 and no court costs.

(History: Ord. TC-1260,FFFF §36, 2022; Ord. TC-1260,WWW §4, 2015; TC-1260,RRR §13, 2011; TC-1260,QQQ §2, 2010; TC-1260,JJJ §3, 2007; TC-1260, CCC §3, 2005; TC-1260,C §1, 86) (State Law: K.S.A. 8-2502; K.S.A. 8-2503)

12.04.120 Driving through Procession.

It shall be unlawful for the driver of any vehicle to drive between the vehicles comprising a funeral or other authorized procession while they are in motion provided such vehicles are conspicuously so designated. This section shall not apply at intersections where traffic is controlled by traffic-control devices or police officers.
(History: Ord. TC-1260 §120, 84)

12.04.121 Military Forces.

The military forces of the United States and the State of Kansas, while on any authorized duty involving controlled movement of military convoys, critical supplies or equipment, or during any national or state emergency, shall not be restricted by traffic regulations, and shall have the right-of-way on any street or highway through which they may pass against all except carriers of the United States mail and other emergency vehicles.
(History: Ord. TC-1260 §121, 84) (State Law: K.S.A.48-252a)

12.04.122 Street Barriers.

Whenever any street or alley or part thereof is closed for repair, rebuilding, construction or reconstruction and suitable warning signs and barricades, which so advise the public, are erected at all intersections of the closed street or alley with all other streets and alleys, it shall be unlawful for any person or operator without authority from the proper official to:

1. Destroy or remove any barricade, warning sign, light or torch used to close the street or alley or warn the public of the closing.
2. Drive on that portion of the street or alley that is closed: Provided, however, that nothing in this section shall be constructed as prohibiting the regular authorities of the City, state or federal government from having free access to the work at all times.

(History: Ord. TC-1260 §122, 84)

12.04.123 Opening and Closing Vehicle Doors.

No person shall open the door of a motor vehicle on the side available to moving traffic unless and until it is reasonably safe to do so, and can be done without interfering with the movement of other traffic, nor shall any person leave a door open on the side of a vehicle available to moving traffic for a period of time longer than necessary to load or unload passengers.

(History: Ord. TC-1260 §123, 84) (State Law: K.S.A.8-1577)

12.04.124 Riding in House Trailer Prohibited.

No person or persons shall occupy a house trailer, manufactured home, as defined in subsection (a) of K.S.A. 58-4202, or mobile home, as defined in subsection (b) of K.S.A. 58-4202 while it is being moved upon a public street or highway.

(History: Ord. TC-1260,FFFF §27, 2022; Ord. TC-1260 §124, 84) (State Law: K.S.A. 8-1578)

12.04.125 Driving Across Lawns, Sidewalks, Yards, Crops, Etc.

It shall be unlawful for any person to drive a motor vehicle upon, across or onto the lawn, sidewalk, yard, farmland, crops or fences or other real or personal property of another person, intentionally damaging the same.

(History: Ord. TC-1260 §125, 84) (State Law: K.S.A. 8-1348)

12.04.126 Removal of Traffic Hazards.

a. It shall be the duty of the owner of real property to remove from such property any tree, plant, shrub or other obstruction, or part thereof, which, by obstructing the view of any driver, constitutes a traffic hazard.
b. When the Governing Body determines upon the basis of an engineering and traffic investigation that such a traffic hazard exists, it shall notify the owner and order that the hazard be removed within 10 days.
c. The failure of the owner to remove such traffic hazard within ten days shall constitute an offense punishable by a penalty of $10 and every day said owner shall fail to remove it shall be a separate and distinct offense.

(History: Ord. TC-1260 §126, 84) (State Law: K.S.A. 8-2011)

12.04.126.5 Texting While Driving.

a. As used in this section:
    1. "Wireless communication device" means any wireless electronic communication device that provides for voice or data communication between two or more parties, including, but not limited to, a mobile or cellular telephone, a text messaging device, a personal digital assistant that sends or receives messages, an audio-video player that sends or receives messages or a laptop computer. "Wireless communication device" does not include a device which is voice-operated and which allows the user to send or receive a text based communication without the use of either hand, except to activate or deactivate a feature or function.
    2. "Write, send or read a written communication" means using a wireless communication device to manually type, send or read a written communication, including, but not limited to, a text message, instant message or electronic mail.
b. Except as provided in subsections (c) and (d), no person shall operate a motor vehicle on a public road or highway while using a wireless communications device to write, send or read a written communication.
c. The provisions of subsection (b) shall not apply to:

1. A law enforcement officer or emergency service personnel acting within the course and scope of the law enforcement officer's or emergency service personnel's employment;
2. A motor vehicle stopped off the regular traveled portion of the roadway;
3. A person who reads, selects or enters a telephone number or name in a wireless communications device for the purpose of making or receiving a phone call;
4. A person who receives an emergency, traffic or weather alert message; or
5. A person receiving a message related to the operation or navigation of the motor vehicle.

d. The provisions of subsection (b) shall not prohibit a person from using a wireless communications device while operating a moving motor vehicle to:
1. Report current or ongoing illegal activity to law enforcement;
2. Prevent imminent injury to a person or property; or
3. Relay information between transit or for-hire operator and the operator's dispatcher, in which the device is permanently affixed to the motor vehicle.

(History: Ord. TC-1260,FFFF §38, 2022; Ord. TC-1260,QQQ §3, 2010) (State Law: K.S.A. 8-15,111)

12.04.126.6 Using Headphones in Vehicles.

No person shall operate any motor vehicle on the streets, alleys, or roadways of the City while wearing headphones or other in-ear sound reproduction devices which in any way interfere with hearing of traffic noise, or warning devices or signals.
(History: Ord. TC-1260,RRR §14, 2011)

Article XV. Operation of Bicycles, Motorized Bicycles, and Play Vehicles.

12.04.127 Effect of Regulations.

a. It is unlawful for any person to do any act forbidden or fail to perform any act required in 12.04.128 to 12.04.133, inclusive.
b. The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of 12.04.128 to 12.04.133, inclusive.
c. The provisions of 12.04.128 to 12.04.133, inclusive, which are applicable to bicycles shall apply whenever a bicycle is operated upon any highway or upon any path set aside for the exclusive use of bicycles, subject to those exceptions stated herein.

(History: Ord. TC-1260 §127, 84) (State Law: K.S.A. 8-1586)

12.04.128 Traffic Laws Apply to Persons Riding Bicycles.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle by this ordinance, except as otherwise provided in 12.04.127 to 12.04.133, inclusive, of this ordinance and except as to those provisions of this ordinance which by their nature can have no application.
(History: Ord. TC-1260 §128, 84) (State Law: K.S.A. 8-1587)

12.04.129 Riding on Bicycles; Seats; Riders Limited.

a. A person propelling a bicycle shall not ride other than upon or astride a permanent and regular seat attached thereto.
b. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped.

(History: Ord. TC-1260 §129, 84) (State Law: K.S.A. 8-1588)

12.04.130 Clinging to Vehicles.

No person riding upon any bicycle, coaster, roller skates, sled or toy vehicle shall attach the same or himself to any vehicle upon a roadway.

(History: Ord. TC-1260 §130, 84) (State Law: K.S.A. 8-1589)

12.04.131 Riding on Roadways and Bicycle Paths.

a. Every person operating a bicycle or a moped upon a roadway at less than the normal speed of traffic at the time and place and under the conditions then existing shall ride as near to the right side of the roadway as practicable, except under any of the following situations when:
    1. Overtaking and passing another bicycle or vehicle proceeding in the same direction;
    2. Preparing for a left turn at an intersection or into a private road or driveway; or
    3. Reasonably necessary to avoid conditions including, but not limited to, fixed or moving objects, parked or moving bicycles, bicycles, pedestrians, animals, surface hazards or narrow width lanes that make it unsafe to continue along the right-hand edge of the roadway.
b. Any person operating a bicycle or a moped upon a one-way highway with two or more marked traffic lanes may ride as near to the left side of the roadway as practicable.
c. Persons riding bicycles upon a roadway shall not ride more than two abreast, except on paths or parts of roadways set aside for the exclusive use of bicycles.
d. Wherever a usable path for bicycles has been provided adjacent to a roadway, bicycle riders shall use such path and shall not use the roadway.
e. For purposes of this Section, "narrow width lane" means a lane that is too narrow for a bicycle and a vehicle to travel safely side-by-side within the lane.

(History: Ord. TC-1260,FFFF §39, 2022; Ord. TC-1260,KK §8, 95; TC-1260 §131, 84) (State Law: K.S.A. 8-1590)

12.04.132 Carrying Articles.

No person operating a bicycle shall carry any package, bundle or ordinance which prevents the driver from keeping at least one hand upon the handlebars.

(History: Ord. TC-1260 §132, 84) (State Law: K.S.A. 8-1591)

12.04.133 Lamps and Other Equipment on Bicycles.

a. Every bicycle when in use between sunset and sunrise shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least 500 feet to the front and either: (1) a red reflector on the rear which shall be visible from all distances from 100 feet to 600 feet to the rear when directly in front of lawful lower beams of head lamps on a motor vehicle; (2) a lamp on the rear that shall emit a red light visible from a distance of 500 feet to the rear; or (3) the operator of such bicycle shall be wearing a device that emits a red or amber light that shall be visible from a distance of 500 feet to the rear.
b. Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheels skid on dry, level, clean pavement.
c. No person shall sell a pedal for use on a bicycle, unless such pedal is equipped with a reflector which is visible from the front and rear of the bicycle to which it is attached during darkness from a distance of 200 feet, and no person shall sell a bicycle, unless it is equipped with pedals meeting the requirements of this subsection.

(History: Ord. TC-1260,FFFF §40, 2022; Ord. TC-1260,ZZZ §2, 2017; TC-1260 §133, 84) (State Law: K.S.A. 8-1592)

12.04.134 Application of 12.04.127 to 12.04.133 to Motorized Bicycles.

a. The provisions of 12.04.127, 12.04.128, and 12.04.130 to 12.04.133 inclusive, shall be applicable to motorized bicycles and every person operating a motorized bicycle shall be subject to the provisions thereof.
b. Every owner of a motorized bicycle shall provide insurance coverage on each motorized bicycle such person owns in the amount of not less than $25,000 because of bodily injury to, or death of, one person in any one

accident and, subject to the limit for one person, to a limit of not less than $50,000 because of bodily injury to, or death of, two or more persons in any one accident and to a limit of not less than $10,000 because of harm to or destruction of property of others in one accident.

In addition, the policy shall insure the person named and any other person, as insured, using any such vehicle with the expressed or implied consent of such named insured, against loss from the liability imposed by law for damages arising out of the ownership, maintenance or use of any such vehicle.

c. Any person operating a motorized bicycle upon a highway or upon property open to use by the public shall display, upon demand, evidence of insurance coverage to any law enforcement officer.

d. No person shall operate a motorized bicycle upon a highway without the same being insured as provided in subsection (b).

e. Regardless of the design capability, motorized bicycles shall only be used to transport one person (the operator).

f. Motorized bicycles shall not be operated on any highway having a posted speed limit in excess of 35 miles per hour unless said highway shall consist of four or more lanes. In no event shall a motorized bicycle be operated upon a highway having a speed limit greater than 45 miles per hour.

g. In no event shall any motorized bicycle be operated on the federal interstate highway systems within this City.

(History: Ord. TC-1260,F §1, 87; TC-1260 §134, 84) (State Law: KSA 8-1592a)

12.04.135 Electric-Assisted Bicycles and Electric-Assisted Scooters, Traffic Law Application.

A. Vehicle registration and driver's license shall not be required for operation of an electric-assisted bicycle.

B. Traffic regulations applicable to bicycles shall apply to electric-assisted scooters and electric-assisted bicycles except tricycles with no brake horse power.

C. It shall be unlawful for any person to operate an electric-assisted scooter at a speed in excess of fifteen (15) miles per hour.

D. It shall be unlawful for any person to operate an electric-assisted bicycle at a speed in excess of twenty (20) miles per hour.

E. It shall be unlawful for any person to operate an electric-assisted bicycle or electric-assisted scooter on any interstate highway, federal or state highway within the city; provided that, nothing in this section shall prohibit an electric-assisted bicycle or electric-assisted scooter from crossing a federal or state highway.

F. It shall be unlawful for any person to operate an electric-assisted bicycle or electric-assisted scooter on a street with a posted speed limit greater than thirty-five (35) miles per hour.

(History: Ord. No. TC-3348 § 2, 2021; Ord. No. TC-1260,AAA §2, 2004; Ord. TC-1260,UU §4, 2000; TC-1260 §135, 84) (State Law: K.S.A.8-1592(b))

12.04.135.1 All-terrain Vehicles, Prohibited.

a. All-terrain vehicles may be used within the City on private property for agricultural or any other lawful purpose, but all-terrain vehicles shall not be operated within the City limits upon interstate highways, federal highways, state highways or City streets.

b. Notwithstanding the provisions of subsection (a), all-terrain vehicles owned and operated by a county noxious weed department, or all-terrain vehicles owned and operated by persons contracting with a county noxious weed department or with the Kansas department of transportation may be allowed to operate such all-terrain vehicles upon the right-of-way of any federal highway or state highway for the purpose of eradicating noxious weeds, and such all-terrain vehicles may be operated incidentally upon such federal highway or state highway.

c. Notwithstanding the provisions of subsection (a), all-terrain vehicles may be moved or operated incidentally upon City streets within the portion of the City annexed by Ordinance No. A-2719.

d. Notwithstanding the provisions of subsection (a), all-terrain vehicles may be operated to cross a federal highway or state highway.

e. Notwithstanding the provisions of subsection (a), persons engaged in agricultural purposes may operate an all-terrain vehicle on a federal highway or state highway under the following conditions:
    1. The operator of the all-terrain vehicle must be a licensed driver and be operating within the restrictions of the operator's license;
    2. The federal highway or state highway must have a posted speed limit of 65 miles per hour or less;
    3. The operator of the all-terrain vehicle must operate the all-terrain vehicle as near to the right side of the roadway as practicable, except when making or preparing to make a left turn; and
    4. The purpose of the trip using the all-terrain vehicle must be for the agricultural purposes.
f. No all-terrain vehicle shall be operated on any public highway, street or road between sunset and sunrise unless it is equipped with lights as required by law for motorcycles.

(History: Ord. TC-1260,FFFF §41, 2022; Ord. TC-1260,MMM §1, 2008; TC-1260,KK §9, 95; TC-1260,B §2, 85) (State Law: K.S.A. 8-15,100)

12.04.135.2 Low-Speed Vehicles.

a. It shall be unlawful for any person to operate a low-speed vehicle on any street or highway with a posted speed limit greater than 40 miles per hour.
b. The provisions of section (a) shall not prohibit a low-speed vehicle from crossing a street or highway with a posted speed limit in excess of 40 miles per hour.
c. A low-speed vehicle shall not be required to display a slow-moving vehicle emblem.

(History: Ord. No. TC-1260,UU §7, 2000) (State Law: K.S.A. 8-1717; K.S.A. 8-15,101)

12.04.135.3 Work-site Utility Vehicle.

a. It shall be unlawful for any person to operate a work-site utility vehicle on any interstate highway, federal highway or state highway.
b. Notwithstanding the provisions of subsection (a), work-site utility vehicles may be operated to cross a federal highway or state highway.

    Notwithstanding the provisions of subsection (a), persons engaged in agricultural purposes may operate a work-site utility vehicle on a federal highway or state highway under the following conditions:
    1. The operator of the work-site utility vehicle must be a licensed driver and be operating within the restrictions of the operator's license;
    2. The federal highway or state highway must have a posted speed limit of 6 miles per hour or less;
    3. The operator of the work-site utility vehicle must operate the work-site utility vehicle as near to the right side of the roadway as practicable, except when making or preparing to make a left turn; and
    4. The purpose of the trip using the work-site utility vehicle must be for agricultural purposes.
c. No work-site utility vehicle shall be operated on any public highway, street or road between sunset and sunrise unless equipped with lights as required by law for motorcycles.

(History: Ord. TC-1260,FFFF §42, 2022; Ord. No. TC-1260,JJJ §4, 2007) (State Law: K.S.A. 8-15,109)

12.04.135.4 Golf Carts Prohibited.

a. It shall be unlawful for any person to operate a golf cart:
    1. On any interstate highway, federal highway or state highway; or
    2. on any public highway or street within the corporate limits of the city.
b. The provisions of subsection (a) shall not prohibit a golf cart from crossing a federal or state highway or a street or highway with a speed limit greater than 30 miles per hour.

(History: Ord. No. TC-1260,PPP §7, 2009) (State Law: K.S.A. 8-15,108)

12.04.135.5 Micro Utility Trucks Prohibited.

a. It shall be unlawful for any person to operate a micro utility truck:
   1. On any interstate highway, federal highway or state highway; or
   2. on any public highway or street within the corporate limits of the city.
b. The provisions of subsection (a) shall not prohibit a micro utility truck from crossing a federal or state highway or a street or highway.

(History: Ord. No. TC-1260,PPP §8, 2009) (State Law: K.S.A. 8-15,106)

12.04.136 Use of Roller Skates, Coasters, Roller Blades, Skateboards, Toy Vehicles and Similar Devices Restricted.

a. No person upon roller skates, or riding in or by means of any coaster, roller blades, skateboard, toy vehicle, or similar device shall operate such a device on:
   1. any sidewalk or public or private parking lot in the Downtown Business District of the City of Overland Park as defined by O.P.M.C. 2.14.010; or
   2. any portion of the City within an area bordered by Highway I-435 on the north, Antioch Road on the east, College Boulevard on the south and Highway 69 on the west, excepting the Indian Creek Bike-Hike Trail and public parkland within said area, provided the following signage is clearly and properly posted at all street entrances to this designated area and entrances to the area on the Indian Creek Bike-Hike Trail.

      NOTICE

      Pursuant to Overland Park Municipal Code Section 12.04.136, no roller skates, coaster, roller blades, skateboard, toy vehicle or similar device may be operated in this area, provided these devices may be used in the areas of Indian Creek Bike-Hike Trail and public parkland within this area. Conviction of a violation of this section shall result in a fine of $25.00.
   3. any roadway, except:
      a. where no useable path for their operation or sidewalk has been provided adjacent to such roadway; or
      b. when the roadway is temporarily designated as a play street; or
   4. any public tennis court; or
   5. any public parking area or lot; or
   6. any private parking area or lot where signs giving notice that operation of such devices is prohibited. The provisions of this subsection (6) shall not be applicable to any private parking lot or area unless the following signage is clearly and properly posted at all entrances to said private parking lot or area, to wit:

      NOTICE

      Pursuant to Overland Park Municipal Code Section 12.04.136, no roller skates, coaster, roller blades, skateboard, toy vehicle or similar device may be operated in this parking lot or area. Conviction of a violation of this section shall result in a fine of $25.00.
   7. any private parking area or lot where the building used for conducting business on the premises is not occupied by an ongoing business enterprise, unless with the written permission of the property owner. The provisions of this subsection (7) shall not be applicable unless the following signage is posted on the property in a location clearly observable to the public, to wit:

      NOTICE

      Pursuant to Overland Park Municipal Code Section 12.04.136, no roller skates, coaster, roller blades, skateboard, toy vehicle or similar device may be operated in this parking lot or area without the written permission of the property owner. Conviction of a violation of this section shall result in a fine of $25.00.
b. Whenever any person is operating such a device upon a useable path for their operation or sidewalk, such person shall yield the right of way to any pedestrian and shall give an audible signal before overtaking and passing such pedestrian.

c. Any person found guilty of a violation of this section shall be fined $25.00.

(History: Ord. TC-1260,OO §1, 97; TC-1260, HH §1, 93; TC-1260,V §1, 90; TC-1260 §136, 84)

See: 12.04.020

Article XVI. Special Rules for Motorcycles

12.04.137 Traffic Laws Apply to Persons Operating Motorcycles.

Every person operating a motorcycle shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of any other vehicle under this ordinance, except as provided in 12.04.138 to 12.04.142, inclusive, and except as to those provisions of this ordinance which by their nature can have no application.

(History: Ord. TC-1260 §137, 84) (State Law: K.S.A.8-1593)

12.04.138 Riding on Motorcycles.

a. A person operating a motorcycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry any other person nor shall any other person ride on a motorcycle unless such motorcycle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached to the motorcycle at the rear or side of the operator.

b. A person shall ride upon a motorcycle only while sitting astride the seat, facing forward, with one leg on each side of the motorcycle. This subsection shall not apply to any person riding within an autocycle.

c. No person shall operate a motorcycle while carrying any package, bundle or other ordinance which prevents him from keeping both hands on the handlebars.

d. No operator shall carry any person, nor shall any person ride, in a position that will interfere with the operation or control of the motorcycle or the view of the operator.

e. It shall be unlawful for any person to operate a motorcycle, motor-driven cycle, motor vehicle, or motorized bicycle upon any public or private park property or upon any public or private property without the express consent of the owner or person in charge thereof and except upon and within any dedicated road right-of-way.

(History: Ord. TC-1260,WWW §5, 2015; TC-1260 §138, 84) (State Law: K.S.A. 8-1594)

See: 12.04.002

12.04.139 Operating Motorcycles on Roadways Laned for Traffic.

a. All motorcycles are entitled to full use of a lane and no motor vehicle shall be driven in such a manner as to deprive any motorcycle of the full use of a lane. This subsection shall not apply to motorcycles operated two abreast in a single lane.

b. The operator of a motorcycle shall not overtake and pass in the same lane occupied by the vehicle being overtaken.

c. No person shall operate a motorcycle between lanes of traffic or between adjacent lines or rows of vehicles.

d. Motorcycles shall not be operated more than two abreast in a single lane.

e. Subsections (b) and (c) shall not apply to police officers in the performance of their official duties.

(History: Ord. TC-1260 §139, 84) (State Law: K.S.A.8-1595)

12.04.140 Clinging to Other Vehicles.

No person riding upon a motorcycle shall attach himself or the motorcycle to any other vehicle on a roadway.

(History: Ord. TC-1260 §140, 84) (State Law: K.S.A.8-1596)

12.04.141 Motorcycle Footrests and Handlebars.

Any motorcycle carrying a passenger, other than in a sidecar or enclosed cab, shall be equipped with a seat and footrests for such passenger.

(History: Ord. TC-1260,FFF §10, 2006; TC-1260 §141, 84) (State Law: K.S.A. 8-1597)

12.04.142 Equipment for Motorcycle Operator or Rider.

a. No person under the age of 18 years shall operate or ride upon a motorcycle or a motorized bicycle unless wearing a helmet which complies with minimum guidelines established by the National Highway Traffic Safety Administration pursuant to the National Traffic and Motor Vehicle Safety Act of 1966 for helmets designed for use by motorcyclists and other motor vehicle users.

b. No person shall allow or permit any person under the age of 18 years to:

   1. Operate a motorcycle or motorized bicycle or to ride as a passenger upon a motorcycle or motorized bicycle without being in compliance with the provisions of subsection (a); or

   2. operate a motorcycle or to ride as a passenger upon a motorcycle without being in compliance with the provisions of subsection (c).

c. 1. No person shall operate a motorcycle or motorized bicycle unless he is wearing an eye-protective device which shall consist of protective glasses, goggles or transparent face shields which are shatter proof and impact resistant, except when the motorcycle is equipped with a windscreen which has a minimum height of 10 inches measured from the center of the handlebars.

   2. No person under the age of 18 years shall ride as a passenger on a motorcycle unless such person is wearing an eye-protective device which shall consist of protective glasses, goggles or transparent face shields which are shatter proof and impact resistant.

d. This section shall not apply to persons riding within an enclosed cab, an autocycle or on a golf cart, nor shall it apply to any person operating or riding any industrial or cargo-type vehicle having three wheels and commonly known as a truckster.

(History: Ord. TC-1260,WWW §6, 2015; TC-1260,QQQ §4, 2010; TC-1260,NN §3, 97; TC-1260,F §2, 87; TC-1260 §142, 84) (State Law: K.S.A. 8-1598)

See: Motorcycle Equipment, Article 18

Article XVII. Lights, Brakes, Horns and Other Equipment

12.04.143 Scope and Effect of Regulations.

a. It is unlawful for any person to drive or move, or for the owner to cause or knowingly permit to be driven or moved on any highway, any vehicle or combination of vehicles which does not contain those parts or is not at all times equipped with such lamps and other equipment in proper condition and adjustment as required in this ordinance, or which is equipped in any manner in violation of this ordinance, or for any person to do any act forbidden or fail to perform any act required under this ordinance.

b. Nothing contained in this ordinance shall be construed to prohibit the use of additional parts and accessories on any vehicle not inconsistent with the provisions of this ordinance.

c. The provisions of this ordinance with respect to equipment required on vehicles shall not apply to implements of husbandry, road machinery, road rollers or farm tractors except as specifically made applicable in this ordinance.

d. The provisions of this ordinance with respect to equipment required on vehicles shall not apply to motorcycles or motor driven cycles, except as specifically made applicable by law.

e. A low-speed vehicle which is in compliance with the equipment requirements in 49 C.F.R. § 571.500 shall be deemed to be in compliance with this ordinance.

(History: Ord. TC-1260,FFFF §43, 2022; Ord. TC-1260 §143, 84) (State Law: K.S.A.8-1701)

12.04.144 When Lighted Lamps Required; Visibility Distance and Mounted Height of Lamps.

a. Every vehicle, except as provided in subsection (b), upon a highway within this state, at all times shall display lighted head and other lamps and illuminating devices as required for different classes of vehicles, subject to

exceptions with respect to parked vehicles:

1. From sunset to sunrise;
2. when due to insufficient light or unfavorable atmospheric conditions, including smoke or fog, persons and vehicles on the highway are not clearly discernible at a distance of 1,000 feet ahead; or
3. when windshield wipers are in continuous use as a result of rain, sleet or snow.

Stop lights, turn signals and other signaling devices shall be lighted as prescribed for the use of such devices.

b. Motorcycles, motor-driven cycles and motorized bicycles manufactured after January 1, 1978, shall display lighted head and tail lights at all times that such vehicles are operated on any highway.

Law enforcement officers shall issue a warning citation to anyone violating subsection (a)(3).
(History: Ord. TC-1260,GGG §1, 2006; TC-1260,FFF §11, 2006; TC-1260 §144, 84) (State Law: K.S.A. 8-1703)

12.04.145 Visibility Distance and Mounted Height of Lamps.

a. Whenever any requirement is declared in this ordinance as to the distance from which certain lamps and devices shall render objects visible or within such lamps or devices shall be visible, said provisions shall apply, during the times stated in 12.04.144 in respect to a vehicle without load upon a straight, level, unlighted highway under normal atmospheric conditions unless a different time or condition is expressly stated.

b. Whenever any requirement is declared in this ordinance as to the mounted height of lamps or devices, it shall mean from the center of such lamp or device to the level ground upon which the vehicle stands when such vehicle is without a load.

(History: Ord. TC-1260 §145, 84) (State Law: K.S.A.8-1704)
See: 12.04.157

12.04.146 Head Lamps on Motor Vehicles.

a. Every motor vehicle shall be equipped with at least two head lamps with at least one on each side of the front of the motor vehicle, which head lamps shall comply with the requirements and limitations set forth in this ordinance.

b. Every head lamp upon every motor vehicle manufactured or assembled after July 1, 1959, shall be located at a height of not more than 54 inches nor less than 24 inches to be measured as set forth in 12.04.145(b).

(History: Ord. TC-1260 §146, 84) (State Law: K.S.A. 8-1705)

12.04.147 Tail Lamps.

a. Every motor vehicle, trailer, semitrailer and pole trailer, and any other vehicle which is being drawn at the end of a combination of vehicles, shall be equipped with at least two tail lamps mounted on the rear, which, when lighted as required in 12.04.144, shall emit a red light plainly visible from a distance of 1,000 feet to the rear, except that passenger cars manufactured or assembled prior to July 1, 1959, shall have at least one tail lamp. On a combination of vehicles, only the tail lamps on the rearmost vehicle need actually be seen from the distance specified. On vehicles equipped with more than one tail lamp, the lamps shall be mounted on the same level and as widely spaced laterally as practicable.

b. Every tail lamp upon every vehicle shall be located at a height of not more than 72 inches nor less than 15 inches.

c. Either a tail lamp or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of 50 feet to the rear. Any tail lamp or tail lamps, together with any separate lamp for illuminating the rear registration plate, shall be so wired as to be lighted whenever head lamps or auxiliary driving lamps are lighted.

(History: Ord. TC-1260 §147, 84) (State Law: K.S.A. 8-1706)

12.04.148 Reflectors.

a. Every motor vehicle, trailer, semitrailer and pole trailer shall carry on the rear, either as a part of the tail lamps or separately, two or more red reflectors meeting the requirements of this section; provided, that vehicles of the types mentioned in 12.04.151 shall be equipped with reflectors meeting the requirements of 12.04.153(a) and 12.04.154(a).

b. Every such reflector shall be mounted on the vehicle at a height not less than 15 inches nor more than 60 inches measured as set forth in 12.04.145(b) and shall be of such size and characteristics and so mounted as to be visible at night from all distances within 600 feet to 100 feet from such vehicle when directly in front of lawful lower beams of head lamps, except that reflectors on vehicles manufactured or assembled prior to January 1, 1970, shall be visible at night from all distances within 350 feet to 100 feet when directly in front of lawful upper beams of head lamps.

(History: Ord. TC-1260,FFFF §44, 2022; Ord. TC-1260 §148, 84) (State Law: K.S.A.8-1707)

12.04.149 Stop Lamps and Turn Signals.

a. Every motor vehicle, trailer, semitrailer and pole trailer shall be equipped with two or more stop lamps meeting the requirements of 12.04.161(a), except that passenger cars manufactured or assembled prior to January 1, 1953, shall be equipped with at least one stop lamp. On a combination of vehicles, only the stop lamps on the rearmost vehicle need actually be seen from the distance specified in 12.04.161(a).

b. Every motor vehicle, trailer, semitrailer and pole trailer shall be equipped with electric turn signal lamps meeting the requirements of 12.04.161(b), except that passenger cars and trucks less than 80 inches in width, manufactured or assembled prior to January 1, 1953, and vehicles registered under K.S.A. 8-194, need not be equipped with electric turn signal lamps.

(History: Ord. TC-1260 §149, 84) (State Law: K.S.A. 8-1708)

12.04.150 Application of Succeeding Sections.

Sections 12.04.151 to 12.04.155, inclusive, relating to clearance lamps, marker lamps and reflectors, shall apply as stated in said sections to vehicles of the type therein enumerated, namely buses, trucks, truck-tractors, motor homes, motor vehicles with mounted truck-campers, and trailers, semi-trailers and pole trailers, respectively, when operated upon any highway, and said vehicle shall be equipped as required and all lamp equipment required shall be lighted at the times mentioned in 12.04.144. For purposes of the sections enumerated above, a truck-camper, when mounted upon a motor vehicle, shall be considered part of the permanent structure of that motor vehicle.

(History: Ord. TC-1260 §150, 84) (State Law: K.S.A. 8-1709)

12.04.151 Additional Equipment Required on Certain Vehicles.

In addition to other equipment required by this ordinance, the following vehicles shall be equipped as herein stated.

a. Buses, trucks, motor homes, and motor vehicles with mounted truck-camper, 80 inches or more over-all width:

   1. On the front, two clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (g).
   2. On the rear, two clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (g).
   3. On each side, two side marker lamps, one at or near the front and one at or near the rear.
   4. On each side, two reflectors, one at or near the front and one at or near the rear.

b. Trailers and semitrailers 80 inches or more in over-all width, except boat trailers and house trailers for which special permits are required by K.S.A. 8-1911, and amendment thereto, for movement of such house trailers upon the highways of this state:

   1. On the front, two clearance lamps, one at each side.
   2. On the rear, two clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (g).

3. On each side, two side marker lamps, one at or near the front and one at or near the rear.

c. Trailers and semi-trailers, except boat trailers and house trailers for which permits are required by K.S.A. 8-1911, and amendments thereto, for movement of such house trailers upon the highway:
On each side, two reflectors, one at or near the front and one at or near the rear.

d. Truck-tractors:
On the front, two cab clearance lamps, one at each side, and on vehicles manufactured or assembled after July 1, 1959, three identification lamps meeting the specifications of subsection (g).

e. Trailers, semitrailers and pole trailers 30 feet or more in over-all length: On each side, one amber side marker lamp and one amber reflector, centrally located with respect to the length of the vehicle.

f. Pole trailers:

1. On each side, one amber marker lamp at or near the front of the load.
2. One amber reflector at or near the front of the load.
3. On the rearmost support for the load, one combination marker lamp showing amber to the front and red to the rear and side, mounted to indicate maximum width of the pole trailer.

g. Whenever required or permitted by this ordinance, identification lamps shall be grouped in a horizontal row, with lamp centers spaced not less than 6 nor more than 12 inches apart, and mounted on the permanent structure of the vehicle as close as practicable to the vertical center line: Provided, that where the cab of a vehicle is not more than 42 inches wide at the front roof line, a single identification lamp at the center of the cab shall be deemed to comply with the requirements for front identification lamps.

h. Boat trailers 80 inches or more in over-all width:

1. On each side, at or near the midpoint, one clearance lamp performing the function of both a front and rear clearance lamp.
2. On each side, two side marker lamps, one at or near the front and one at or near the rear.
3. On each side, two reflectors, one at or near the front and one at or near the rear.

(History: Ord. TC-1260,FFFF §45, 2022; Ord. TC-1260JJ §7, 94; TC-1260 §151, 84) (State Law: K.S.A.8-1710)
See: 12.04.153 & 12.04.154

12.04.152 Color of Clearance Lamps, Identification Lamps, Side Marker Lamps, Backup Lamps and Reflectors.

a. Front clearance lamps, identification lamps and those marker lamps and reflectors mounted on the front or on the side near the front of a vehicle shall display or reflect an amber color.

b. Rear clearance lamps, identification lamps and those marker lamps and reflectors mounted on the rear or on the sides near the rear of a vehicle shall display or reflect a red color.

(History: Ord. TC-1260 §152, 84) (State Law: K.S.A. 8-1711)

12.04.153 Mounting of Reflectors, Clearance Lamps and Side Marker Lamps.

a. Reflectors when required by 12.04.151 shall be mounted at a height not less than 24 inches and not more than 60 inches above the ground on which the vehicle stands, except that if the highest part of the permanent structure of the vehicle is less than 24 inches the reflector at such point shall be mounted as high as the part of the permanent structure will permit.
The rear reflectors on a pole trailer may be mounted on each side of the bolster or load.
Any required red reflector on the rear of a vehicle may be incorporated with the tail lamp, but such reflector shall meet all the other reflector requirements of this ordinance.

b. Clearance lamps, so far as is practicable, shall be mounted on the permanent structure of the vehicle in such a manner as to indicate the extreme height and width of the vehicle, except that when rear identification lamps are required and are mounted as high as is practicable, rear clearance lamps may be mounted at optional height and when the mounting of front clearance lamps results in such lamps failing to indicate the extreme width of the trailer, such lamps may be mounted at optional height but must indicate, as near as practicable, the extreme width of the trailer. Clearance lamps on truck-tractors shall be located so as to indicate the

extreme width of the truck-tractor cab. Clearance lamps and side marker lamps may be mounted in combination if illumination is given as required herein with reference to both.

(History: Ord. TC-1260,FFFF §46, 2022; Ord. TC-1260 §153, 84) (State Law: K.S.A. 8-1712)

See: 12.04.151

12.04.154 Visibility of Reflectors, Clearance Lamps, and Marker Lamps.

a. Every reflector upon any vehicle referred to in 12.04.151 shall be of such size and characteristics and so maintained as to be readily visible at nighttime from all distances within 600 feet to 100 feet from the vehicle when directly in front of lawful lower beams of head lamps, except that the visibility of reflectors on vehicles manufactured or assembled prior to January 1, 1970, shall be measured in front of lawful upper beams of head lamps. Reflectors required to be mounted on the sides of the vehicle shall reflect the required color of light to the sides, and those mounted on the rear shall reflect a red color to the rear.

b. Front and rear clearance lamps shall be capable of being seen and distinguished under normal atmospheric conditions at the time lights are required at all distances between 500 feet and 50 feet from the front and rear, respectively, of the vehicle.

c. Side marker lamps shall be capable of being seen and distinguished under normal atmospheric conditions at the times lights are required at all distances between 500 feet and 50 feet from the side of the vehicle on which mounted.

(History: Ord. TC-1260 §154, 84) (State Law: K.S.A. 8-1713)

12.04.155 Obstructed Lights Not Required.

Whenever motor and other vehicles are operated in combination during the time that lights are required, any lamp, except tail lamps, which, by reason of its location on a vehicle of the combination, would be obscured by another vehicle of the combination, need not be lighted, but this shall not affect the requirement that lighted clearance lamps be displayed on the front of the foremost vehicles required to have clearance lamps, nor that all lights required on the rear of the rearmost vehicle of any combination shall be lighted.

(History: Ord. TC-1260,FFFF §47, 2022; Ord. TC-1260 §155, 84) (State Law: K.S.A. 8-1714)

12.04.156 Lamps or Flags on Projecting Loads.

a. Whenever the load upon any vehicle extends to the rear 4 feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load, at the times specified in 12.04.144, two red lamps visible from a distance of at least 500 feet to the rear, two red reflectors visible at night from all distances within 600 feet to 100 feet to the rear when directly in front of lawful lower beams of head lamps and located so as to indicate maximum width, and on each side one red lamp visible from a distance of at least 500 feet to the side and located so as to indicate maximum overhang. There shall be displayed at all other times on any vehicle having a load which extends beyond its sides or more than 4 feet beyond its rear, red flags, not less than 12 inches square, marking the extremities of such load, at each point where a lamp would otherwise be required by this Section.

b. No passenger-type vehicle shall be operated on any highway with any load carried thereon extending beyond the line of the fenders of the left side of such vehicle nor extending more than 6 inches beyond the line of the fenders on the right side thereof.

(History: Ord. TC-1250,FFFF §48, 2022; Ord. TC-1260 §156, 84) (State Law: K.S.A. 8-1715; K.S.A. 8-1903)

12.04.157 Lamps on Parked Vehicles.

a. Every vehicle shall be equipped with one or more lamps which, when lighted, shall display a white or amber light visible from a distance of 1,000 feet to the front of the vehicle, and a red light visible from a distance of 1,000 feet to the rear of the vehicle. The location of said lamp or lamps always shall be such that at least one lamp or combination of lamps meeting the requirements of this section is installed as near as practicable to the side of the vehicle which is closest to passing traffic.

b. Whenever a vehicle is lawfully parked upon a street or highway during the hours between a half hour after sunset and a half hour before sunrise, and in the event there is sufficient light to reveal persons and vehicles within a distance of 1,000 feet upon such street or highway, no lights need be displayed upon such parked vehicle.

c. Whenever a vehicle is parked or stopped upon a roadway or shoulder adjacent thereto, whether attended or unattended, during the hours between a half hour after sunset and a half hour before sunrise and there is insufficient light to reveal any person or object within a distance of 1,000 feet upon such highway, such vehicle so parked or stopped shall be equipped with and shall display lamps meeting the requirements of subsection (a).

d. Any lighted head lamps upon a parked vehicle shall be depressed or dimmed.

(History: Ord. TC-1260 §157, 84) (State Law: K.S.A. 8-1716)

12.04.158 Lamps on Other Vehicles and Equipment.

a. Every vehicle, including animal-drawn vehicles and vehicles referred to 12.04.143(c), not specifically required by the provisions of other sections in this ordinance to be equipped with lamps or other lighting devices, shall be equipped, at all times specified in 12.04.144, with at least one lamp displaying a white light visible from a distance of not less than 1,000 feet to the front of said vehicle, and also shall be equipped with two lamps displaying red lights visible from a distance of not less than 1,000 feet to the rear, or as an alternative, one lamp displaying a red light visible from a distance of not less than 1,000 feet to the rear and two red reflectors visible from all distances of 600 to 100 feet to the rear when illuminated by the lawful lower beams of head lamps.

b. Every animal-drawn vehicle shall be equipped at all times with a slow-moving vehicle emblem complying with 12.04.159.1(g).

(History: Ord. TC-1260 §158, 84) (State Law: K.S.A.8-1718)

12.04.159 Spot Lamps and Auxiliary Lamps.

a. **Spot Lamps**. Any motor vehicle may be equipped with not to exceed two spot lamps. Every lighted spot lamp emitting a white light shall be so aimed and used that no part of the high intensity portion of the beam will strike the windshield or any windows, mirror or occupant of another vehicle in motion. The limitations of this subsection shall not apply to a police vehicle used as an authorized emergency vehicle.

b. **Fog Lamps**. Any motor vehicle may be equipped with not to exceed two fog lamps mounted on the front at a height not less than 12 inches nor more than 30 inches above the level surface upon which the vehicle stands, and so aimed that when the vehicle is not loaded, none of the high-intensity portion of the light to the left of the center of the vehicle shall at a distance of 25 feet ahead project higher than a level of 4 inches below the level of the center of the lamp from which it comes. Lighted fog lamps meeting the above requirements may be used with lower head-lamp beams as specified in 12.04.164(a)(2).

c. **Auxiliary Passing Lamps**. Any motor vehicle may be equipped with not to exceed two auxiliary passing lamps mounted on the front at a height not less than 24 inches nor more than 42 inches above the level surface upon which the vehicle stands. The provisions of 12.04.164 shall apply to any combination of head lamps and auxiliary passing lamps.

d. **Auxiliary Driving Lamps**. Any motor vehicle may be equipped with not to exceed two auxiliary driving lamps mounted on the front at a height not less than 16 inches nor more than 42 inches above the level surface upon which the vehicle stands. The provisions of 12.04.164 shall apply to any combination of head lamps and auxiliary driving lamps.

(History: Ord. TC-1260 §159, 84) (State Law: K.S.A.8-1719)

12.04.159.1 Lamps, Farm Tractor.

a. Every farm tractor manufactured or assembled after January 1, 1975, shall be equipped with vehicular hazard warning lights of a type described in 12.04.162 visible from a distance of not less than 1,000 feet to the front

and rear in normal sunlight, which shall be displayed whenever any such vehicle is operated upon a highway.

b. Every farm tractor manufactured or assembled after January 1, 1975, shall at all times, and every other such motor vehicle shall at all times mentioned in 12.04.144 be equipped with lamps and reflectors as follows:
    1. At least two head lamps meeting the requirements of 12.04.164, 12.04.166 or 12.04.167;
    2. At least one red lamp visible when lighted from a distance of not less than 1,000 feet to the rear mounted as far to the left of the center of the vehicle as practicable;
    3. At least two red reflectors visible from all distances within 600 feet to 100 feet to the rear when directly in front of lawful lower beams of head lamps.

c. On every combination of farm tractor and towed farm equipment or towed implement of husbandry, the farm tractor shall be equipped as required in subsections (a) and (b), and the towed unit shall be equipped at all times mentioned in 12.04.144 with lamps and reflectors as follows:
    1. If the towed unit or its load extends more than four feet to the rear of the tractor or obscures any light thereon, the unit shall be equipped on the rear with at least one red lamp visible when lighted from a distance of not less than 1,000 feet to the rear, mounted as far to the left of the center of the towed unit as practicable, and at least two red reflectors visible from all distances within 600 feet to 100 feet to the rear when directly in front of lawful lower beams of head lamps.
    2. If the towed unit of such combination extends more than four feet to the left of the center line of the tractor, the unit shall be equipped on the front with an amber reflector visible from all distances within 600 feet to 100 feet to the front when directly in front of lawful lower beams of head lamps. This reflector shall be so positioned to indicate, as nearly as practicable, the extreme left projection of the towed unit.
    3. If the towed unit or its load obscures either of the vehicle hazard warning lights on the tractor, the towed unit shall be equipped with vehicle hazard warning lights described in subsection (a).

d. The two red reflectors required in the preceding subsections shall be so positioned as to show from the rear, as nearly as practicable, the extreme width of the vehicle or combination carrying them. If all other requirements are met, reflective tape or paint may be used in lieu of the reflectors required by subsection (c).

e. As used in this section:
    1. "Slow-moving vehicle" means any vehicle, farm tractor, implement of husbandry, equipment or piece of machinery designed for use at speeds of less than 25 miles per hour, or which is normally moved at speeds of less than 25 miles per hour, and includes all road construction or maintenance machinery, except when such machinery is engaged in actual construction or maintenance work and there is either a flagman or clearly visible warning signs to warn of such machinery's presence on the roadways.
    2. "Slow-moving vehicle emblem" means a triangular-shaped emblem of substantial construction having equal sides of 14 inches and an altitude of 12 inches, and such emblem shall be painted a fluorescent yellow-orange color and bordered with reflective red-colored strips having a minimum width of 1 3/4 inches, with the vertices of the overall triangle truncated in such a manner that the remaining altitude shall be at least 14 inches.

f. A slow-moving vehicle emblem shall be mounted or affixed on the rear of the slow-moving vehicle in compliance with standard S276.2 of the American Society of Agricultural Engineers, as such standard was revised in March, 1968.

g. No person shall operate any slow-moving vehicle on any highway unless such vehicle is equipped with a properly mounted slow-moving vehicle emblem, which has been approved by the secretary of transportation, and which is maintained in a clean, fluorescent and reflective condition; or display a slow-moving vehicle emblem on any vehicle other than a slow-moving vehicle or display such emblem on a slow-moving vehicle which is being operated at a speed of 25 miles per hour or more, or to use such emblem in any manner other than authorized by this section.

(History: Ord. TC-1260 §160, 84) (State Law: K.S.A. 8-1717)

12.04.160 Authorized Emergency Vehicles.

a. Except as provided in subsection (b), every authorized emergency vehicle, in addition to any other equipment required by this ordinance, shall be equipped with signal lamps mounted as high and as widely spaced laterally as practicable, which shall be capable of displaying to the front two alternately flashing red lights located at the same level and to the rear two alternately flashing red lights located at the same level, or in lieu thereof, any such authorized emergency vehicle shall be equipped with at least one rotating or oscillating light, which shall be mounted as high as practicable on such vehicle and which shall display to the front and rear of such vehicle a flashing red light or alternate flashes of red and white lights or red and blue lights in combination. All lights required or authorized by the subsection shall have sufficient intensity to be visible at 500 feet in normal sunlight. Every authorized emergency vehicle may, but need not, be equipped with head lamps which alternately flash or simultaneously flash.

b. A police vehicle when used as an authorized emergency vehicle may, but need not, be equipped with

   1. Head lamps which alternately flash or simultaneously flash;
   2. Flashing lights specified in subsection (a), but any flashing lights, used on a police vehicle, other than the flashing lights specified in Section 12.04.162, rotating or oscillating lights or alternately flashing head lamps or simultaneously flashing head lamps, shall be red in color; or
   3. Rotating or oscillating lights, which may display a flashing red light or alternate flashes of red and blue lights in combination.

(History: Ord. TC-1260,FFFF §49, 2022; Ord. TC-1260,CCC §5, 2005; TC-1260,EE §1, 93; TC-1260 §161, 84) (State Law: K.S.A. 8-1720)

12.04.161 Signal Lamps and Signal Devices.

a. Any vehicle may be equipped and when required under this ordinance shall be equipped with a stop lamp or stop lamps on the rear of the vehicle which shall display a red or amber light, or any shade of color between red and amber, visible from a distance of not less than 300 feet to the rear in normal sunlight, and which shall be actuated upon application of the service or foot brake, and which may but need not be incorporated with one or more other rear lamps. If a vehicle is equipped with stop lamps on the rear of the vehicle, at least two lighted lamps shall be displayed while braking, one on each side at the rear of the vehicle.

b. Any vehicle may be equipped and when required under this ordinance shall be equipped with electric turn signals which shall indicate an intention to turn by flashing lights showing to the front and rear of a vehicle or a combination of vehicles on the side of the vehicle or combination toward which the turn is to be made. The lamps showing to the front shall be mounted on the same level and as widely spaced laterally as practicable and, when signaling, shall emit amber light: Provided, that on any vehicle manufactured prior to July 1, 1973, the lamps showing to the front may emit white or amber light, or any shade of light between white and amber. The lamps showing to the rear shall be mounted on the same level and as widely spaced laterally as practicable and, when signaling, shall emit a red or amber light or any shade of color between red and amber. Turn signal lamps shall be visible from a distance of not less than 500 feet to the front and rear in normal sunlight. Turn signal lamps may but need not be incorporated in other lamps on the vehicle.

(History: Ord. TC-1260,RRR §15, 2011; TC-1260 §162, 84) (State Law: K.S.A. 8-1721)

12.04.162 Vehicular Hazard Warning Lights.

a. Any vehicle may be equipped with lamps for the purpose of warning the operators of other vehicles of the presence of a vehicular traffic hazard requiring the exercise of unusual care in approaching, overtaking or passing.

b. Every bus, truck, truck-tractor, trailer, semitrailer or pole trailer 80 inches or more in overall width or 30 feet or more in overall length shall be equipped with lamps meeting the requirements of this section.

c. Vehicular hazard warning signal lamps used to display such warning to the front shall be mounted at the same level and as widely spaced laterally as practicable, and shall display simultaneously flashing amber light. On any vehicle manufactured prior to January 1, 1969, the lamps showing to the front may display

simultaneously flashing white or amber lights, or any shade of color between white and amber. The lamps used to display such warning to the rear shall be mounted at the same level and as widely spaced laterally as practicable, and shall show simultaneously flashing amber or red lights, or any shade of color between amber and red. Such warning lights shall be visible from a distance of not less than 500 feet in normal sunlight.

d. Any police vehicle, when used as an authorized emergency vehicle, may be equipped with warning lamps mounted as widely spaced laterally as practicable either inside such vehicle in front of the rear window or on the roof of such vehicle and capable of displaying two alternately flashing amber lights to the rear of such vehicle. Such warning lamps may be used in lieu of or in combination with any other vehicular hazard warning signal lamps used to display such warning to the rear, and shall be visible from a distance of not less than 500 feet in normal sunlight.

e. Every truck designed and used for collection and disposal of domestic or commercial waste or trash shall be equipped as provided in subsection (c) and shall operate such lamps when collecting or transporting waste or trash and traveling 15 miles per hour or less.

(History: Ord. TC-1260 §163, 84) (State Law: K.S.A. 8-1722)

12.04.163 Additional Lighting Equipment.

a. Any motor vehicle may be equipped with not more than two side cowl or fender lamps which shall emit an amber or white light without glare.

b. Any motor vehicle may be equipped with not more than one running board courtesy lamp on each side, which shall emit a white or amber light without glare.

c. Any motor vehicle may be equipped with one or more back-up lamps, either separately or in combination with other lamps, but any such back-up lamp or lamps shall not be lighted when the motor vehicle is in forward motion.

d. Any vehicle 80 inches or more in overall width, if not otherwise required by 12.04.151, and amendments thereto, may be equipped with not more than three identification lamps showing to the front which shall emit an amber light without glare, and not more than three identification lamps showing to the rear, which shall emit a red light without glare. Such lamps shall be mounted as specified in 12.04.151(g), and amendments thereto.

e. Any vehicle may be equipped with one or more side marker lamps and any such lamp may be flashing in conjunction with turn or vehicular hazard warning signals. Side marker lamps located toward the front of a vehicle shall be amber and side marker lamps located toward the rear shall be red.

f. Any motor vehicle may be equipped with ground effect lighting, except that such lighting shall not flash, be any shade of red nor shall any portion of the bulb or lighting fixture be visible. “Ground effect lighting” means lights placed underneath the motor vehicle for the purpose of illuminating the ground below the motor vehicle creating a halo light effect.

g. Any motor vehicle may be equipped with head lamps which alternately flash or simultaneously flash when such motor vehicle is being used as the lead motor vehicle of a funeral procession. A funeral hearse may serve as a funeral lead vehicle.

(History: Ord. TC-1260,HHHH §1, 2023; Ord. TC-1260,CCC §6, 2005; TC-1260,YY §3, 2003; Ord. TC-1260 §164, 84) (State Law: K.S.A. 8-1723)

12.04.164 Multiple-Beam Road-Lighting Equipment.

a. Except as hereinafter provided, the head lamps, or the auxiliary driving lamps or the auxiliary passing lamp or combination thereof, on motor vehicles other than motorcycles shall be so arranged that the driver may select at will between distribution of light projected to different elevations, and such lamps may, in addition, be so arranged that such selection can be made automatically, subject to the following limitations:

   1. There shall be an uppermost distribution of light or composition beam, so aimed and of such intensity as to reveal persons and vehicles at a distance of at least 450 feet ahead for all conditions of loading.

2. There shall be a lowermost distribution of light, or composition beam, so aimed and of sufficient intensity to reveal persons and vehicles at a distance of at least 150 feet ahead; and on a straight level road under any condition of loading none of the high-intensity portion of the beam shall be directed to strike the eyes of an approaching driver.

b. Every new motor vehicle registered in this state which has multiple-beam road lighting equipment shall be equipped with a beam indicator, which shall be lighted whenever the uppermost distribution of light from the head lamps is in use, and shall not otherwise be lighted. Said indicator shall be so designed and located that when lighted, it will be readily visible without glare to the driver of the vehicle so equipped.

(History: Ord. TC-1260 §165, 84) (State Law: K.S.A. 8-1724)

12.04.165 Use of Multiple-Beam Road-Lighting Equipment.

Whenever a motor vehicle is being operated on a roadway or shoulder adjacent thereto during the times specified in 12.04.144 the driver shall use a distribution of light, or composite beam, directed high enough and of sufficient intensity to reveal persons and vehicles at a safe distance in advance of the vehicle, subject to the following requirements and limitations.

a. Whenever a driver of a vehicle approaches an oncoming vehicle within 500 feet, such driver shall use a distribution of light, or composite beam, so aimed that the glaring rays are not projected into the eyes of the oncoming driver. The lowermost distribution of light, or composite beam, specified in 12.04.164(a)(2) or 12.04.186(b), shall be dimmed to avoid glare at all times, regardless of road contour and loading.

b. Whenever the driver of a vehicle approaches another vehicle from the rear, within 300 feet, except when engaged in the act of overtaking and passing, such driver shall use a distribution of light permissible under this ordinance other than the uppermost distribution of light specified in 12.04.164(a)(1) or 12.04.186(a).

c. The requirements in subsection (a) and (b) shall not apply to:

1. Authorized emergency vehicles displaying alternately flashing or simultaneously flashing head lamps as provided in 12.04.160; or

2. School buses displaying alternately flashing or simultaneously flashing head lamps as provided in 12.04.170.

(History: Ord. TC-1260,FFFF §51, 2022; Ord. TC-1260 §166, 84) (State Law: K.S.A. 8-1725)

12.04.166 Single-beam Road-lighting Equipment Permitted on Certain Vehicles.

Head lamp systems which provide only a single distribution of light shall be permitted on all farm tractors, regardless of date of manufacture, and on other motor vehicles manufactured and sold prior to July 1, 1938, in lieu of multiple-beam road-lighting equipment herein specified, if the single distribution of light complies with the following requirements and limitations:

1. The head lamps shall be so aimed that when the vehicle is not loaded, none of the high intensity portion of the light at a distance of 25 feet ahead shall project higher than a level of 5 inches below the level of the center of the lamp from which it comes, and in no case higher than 42 inches above the level on which the vehicle stands at a distance of 75 feet ahead.

2. The intensity shall be sufficient to reveal persons and vehicles at a distance of at least 200 feet.

(History: Ord. TC-1260 §167, 84) (State Law: K.S.A. 8-1726)

12.04.167 Alternate Road-lighting Equipment on Certain Vehicles; Limitations on Speed.

Any motor vehicle may be operated under the conditions specified in 12.04.144 when equipped with two lighted lamps upon the front thereof capable of revealing persons and vehicles 100 feet ahead in lieu of lamps required in 12.04.164 or 12.04.166: Provided, that at no time shall it be operated at a speed in excess of 25 miles per hour.

(History Ord. TC-1260 §168, 84) (State Law: : K.S.A. 8-1727)

12.04.168 Number of Driving Lamps Required or Permitted.

a. At all times specified in 12.04.144, at least two lighted head lamps shall be displayed, one on each side at the front of every motor vehicle except when such vehicle is parked subject to the regulations governing lights on parked vehicles.

b. Whenever a motor vehicle equipped with head lamps as herein required is also equipped with any auxiliary lamps or a spot lamp or any other lamp on the front thereof projecting a beam of an intensity greater than 300 candlepower, not more than a total of four of any such lamps on the front of a vehicle shall be lighted at any one time when upon a highway.

(History: Ord. TC-1260 §169, 84) (State Law: K.S.A. 8-1728)

12.04.169 Special Restrictions on Lamps.

a. During the times specified in 12.04.144, any lighted lamp or illuminating device upon a motor vehicle other than head lamps, spot lamps, auxiliary lamps, flashing turn signals, vehicular hazard warning lamps and school bus warning lamps that projects a beam of light of an intensity greater than 300 candlepower shall be so directed that no part of the high intensity portion of the beam will strike the level of the roadway on which the vehicle stands at a distance of more than 75 feet from the vehicle.

b. Except as required or permitted in subsection (f), 12.04.160 and 12.04.170, no person shall drive or move any vehicle or equipment upon any highway with any lamp or device capable of displaying a red light visible from directly in front of the center thereof, nor shall any vehicle or equipment upon any highway have any lamp or device displaying any color of light visible from directly in front of the center thereof except white or amber or any shade of color between white and amber.

c. Flashing lights are prohibited except as authorized or required in 12.04.159.1, 12.04.160, 12.04.161, 12.04.162, 12.04.163, 12.04.170, 12.04.171 and 12.04.172.

d. The flashing lights described in 12.04.160, 12.04.170 and 12.04.171 and amendments thereto, shall not be used on any vehicle other than a school bus, church bus or day care program bus as defined in 12.04.171, and amendments thereto, or an authorized emergency vehicle.

e. All lighting devices and reflectors mounted on the rear of any vehicle shall display or reflect a red color, except the stop light or other signal device, which may be red, amber or yellow, and except that the light illuminating the license plate shall be white and the light emitted by a back-up lamp shall be white or amber.

f. Any driver for a transportation network company, who is logged on to the transportation network company's digital network, may operate a vehicle equipped with a lighted device capable of displaying light visible from directly in front of the center of the vehicle. Such device must display a steady light of any color, except red.

(History: Ord. TC-1260,FFFF §52, 2022; Ord. TC-1260, CCCC §4, 2019; Ord. TC-1260,CCC §7, 2005; TC-1260 §170, 84) (State Law: K.S.A. 8-1729; K.S.A. 8-1762)

12.04.170 School Buses.

a. Every school bus, in addition to any other equipment and distinctive markings required by this ordinance:

1. Shall be equipped with signal lamps mounted as high and as widely spaced laterally as practicable, which shall display to the front two alternately flashing red lights located at the same level and to the rear two alternately flashing red lights located at the same level, and these lights shall be visible at 500 feet in normal sunlight; and

2. Every new school bus put into initial service after July 1, 2007, shall be equipped with a white flashing strobe light mounted on the roof of such bus to afford optimum visibility.

b. Any school bus, in addition to the lights required by subsection (a), may be equipped with:

1. Yellow signal lamps mounted near each of the four red lamps and at the same level but closer to the vertical centerline of the bus, which shall display two alternately flashing yellow lights to the front and two alternately flashing yellow lights to the rear, and these lights shall be visible at 500 feet in normal sunlight. These lights shall be displayed by the school bus driver at least 200 feet, but not more than 1,000 feet,

before every stop at which the alternately flashing red lights required by subsection (a) will be actuated; or

2. Head lamps which alternately flash on low beam or simultaneously flash on low beam, except such head lamps shall only be activated during daylight hours.

c. The provisions of this section shall be subject to the provisions contained in K.S.A. 8-2009a (1982) and any amendments thereto.

(History: Ord. TC-1260,FFFF §53, 2022; Ord. TC-1260,UU §5, 2000; TC-1260 §171, 84) (State Law: K.S.A. 8-1730)

12.04.171 Lighting Equipment and Warning Devices on Church Buses and Day Program Buses.

a. As used in this ordinance, "church bus" means every bus owned by a religious organization, and operated for the transportation of persons to or from services or activities of such religious organization. "Religious organization" means any organization, church, body of communicants or group, gathered in common membership for mutual edification in piety, worship and religious observances, or a society of individuals united for religious purposes at a definite place.

b. As used in this ordinance, "day care program" means the same as is described thereto in K.S.A. 39-1006, and amendments thereto, and "day care program bus" means every bus used primarily to carry out functions of a day care program or used by a child care facility licensed by the Kansas Department of Health and Environment who provides transportation for children six through 18 years of age.

c. Any church bus or day care program bus, in addition to any other equipment and distinctive markings required by law, may be equipped with:

1. Signal lamps which conform to the requirements of 12.04.170, and rules and regulations adopted pursuant thereto; and

2. A stop signal arm which conforms to requirements applicable to school buses which have been adopted by rules and regulations of the state board of education.

(History: Ord. TC-1260,FFFF §54, 2022; Ord. TC-1260 §172, 84) (State Law: K.S.A. 8-1730a)

12.04.172 Highway Construction and Maintenance Vehicles.

It shall be unlawful to operate any snow removal and other highway maintenance and service equipment on any highway unless the lamps thereon comply with and are lighted when and as required by the standards and specifications adopted by the secretary.

(History: Ord. TC-1260 §173, 84) (State Law: K.S.A. 8-1731)

12.04.173 Brakes; Performance Requirements.

a. Every motor vehicle and every combination of vehicles shall have a service braking system which will stop such vehicle or combination within 40 feet from an initial speed of 20 miles per hour on a level, dry, smooth, hard surface.

b. Every motor vehicle and combination of vehicles shall have a parking brake system adequate to hold such vehicle or combination on any grade on which it is operated under all conditions of loading, on a surface free from snow, ice or loose material.

c. The provisions of this section shall not apply to vehicles registered pursuant to K.S.A. 8-166 (1982) through K.S.A. 8-170 (1982) and any amendments thereto.

(History: Ord. TC-1260 §174, 84) (State Law: K.S.A. 8-1734)

12.04.174 Horns and Warning Devices.

a. Every motor vehicle when operated upon a highway shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than 200 feet, but no horn or other warning device shall emit an unreasonably loud or harsh sound or a whistle. The driver of a motor vehicle shall, when reasonably necessary to insure safe operation, give audible warning with their horn, but shall not otherwise use such horn when upon a highway.

b. No vehicle shall be equipped with nor shall any person use upon a vehicle any siren, whistle or bell, except as otherwise permitted in this section.

c. Any vehicle may be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning signal. Such a theft alarm signal may use a whistle, bell, horn or other audible signal but shall not use a siren.

d. Every authorized emergency vehicle shall be equipped with a siren, whistle, or bell capable of emitting sound audible under normal conditions from a distance of not less than 500 feet and of a type approved by the commission, but such siren shall not be used except when such vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, in which said latter events the driver of such vehicle shall sound said siren when reasonably necessary to warn pedestrians and other drivers of the approach thereof.

e. Every truck specifically designed and equipped and used exclusively for garbage, refuse or solid waste disposal operations shall be equipped with a whistle, bell or other audible signal. Such whistle, bell or other audible signal shall be used only when the driver of the truck is backing such truck.

(History: Ord. TC-1260,FFFF §55, 2022; Ord. TC-1260,BBB §5, 2004; TC-1260 §175, 84) (State Law: K.S.A. 8-1738)

12.04.174.1 Flares or Warning Devices; Vehicles Subject to Requirements; Use, When Required; Unlawful Acts; Compliance with Federal Requirements.

a. No person shall operate any truck, bus or truck-tractor, or any motor vehicle towing a trailer, semi-trailer or pole trailer 80 inches or more in width or 30 feet or more in length, upon any highway outside an urban district or upon any divided highway at any time from a half hour after sunset to a half hour before sunrise unless there shall be carried in such vehicles the following equipment, except as provided in subsection (b):

   1. At least three flares or three red electric lanterns or three portable red emergency reflectors, each of which shall be capable of being seen and distinguished at a distance of not less than 600 feet under normal atmospheric conditions at nighttime.

      No flare, fusee, electric lantern or warning flag shall be used for the purpose of compliance with the requirements of this section, unless such equipment is of a type which has been submitted to the secretary of transportation and approved by the secretary. No portable reflector unit shall be used for the purpose of compliance with the requirements of this section, unless it is so designed and constructed as to be capable of reflecting red light clearly visible from all distances within 600 feet to 100 feet under normal atmospheric conditions at night when directly in front of lawful lower beams of head lamps, and unless it is of a type which has been submitted to and approved by the secretary of transportation.

   2. At least three red-burning fusees, unless red electric lanterns or red portable emergency reflectors are carried.

b. No person shall operate at the time and under conditions stated in subsection (a) any motor vehicle used for the transportation of explosives or any cargo tank truck used for the transportation of flammable liquids or compressed gasses, unless there shall be carried in such vehicle three red electric lanterns or three portable red emergency reflectors meeting the requirements of subsection (a), and there shall not be carried in any such vehicle, or in any vehicle using compressed gas as a fuel, any flares, fusees or signal produced by flame.

c. No person shall operate any vehicle described in subsection (a) or (b) upon any highway outside of an urban district or upon a divided highway at any time when lighted lamps are not required by 12.04.144, unless there shall be carried in such vehicle at least two red flags, not less than 12 inches square, with standards to support such flags.

d. Any person who is subject to requirements of any federal agency with respect to flares, fusees, electric lanterns or warning flags and who is in compliance with such federal regulations shall be deemed to be in compliance with the provisions of this section and 12.04.174.2.

(History: Ord. TC-1260 §176, 84) (State Law: K.S.A.8-1744)

12.04.174.2 Display of Vehicular Hazard Warning Signal Lamps and Warning Devices by Certain Stopped or Disabled Vehicles.

a. Whenever any truck, bus, truck tractor, trailer, semitrailer or pole trailer 80 inches or more in overall width or 30 feet or more in overall length is stopped upon a roadway or adjacent shoulder, the driver immediately shall actuate vehicular hazard warning signal lamps meeting the requirements of 12.04.162. Such lights need not be displayed by a vehicle parked lawfully in an urban district, or stopped lawfully to receive or discharge passengers, or stopped to avoid conflict with other traffic or to comply with the directions of a police officer or an official traffic-control device, or while the devices specified in subsections (b) to (h) are in place.

b. Whenever any vehicle of a type referred to in subsection (a) is disabled, or stopped for more than ten minutes, upon a roadway outside of an urban district at any time when lighted lamps are required, the driver of such vehicle shall display the following warning devices, except as provided in subsection (c):

    1. A lighted fusee, a lighted red electric lantern or a portable red emergency reflector shall immediately be placed at the traffic side of the vehicle in the direction of the nearest approaching traffic.

    2. As soon thereafter as possible but in any event within the burning period of the fusee, the driver shall place three liquid burning flares, or three lighted red electric lanterns, or three portable red emergency reflectors on the roadway in the following order:

        i. One approximately 100 feet from the disabled vehicle in the center of the lane occupied by such vehicle and toward traffic approaching in that lane.

        ii. One approximately 100 feet in the opposite direction from the disabled vehicle and in the center of the traffic lane occupied by such vehicle.

        iii. One at the traffic side of the disabled vehicle not less than ten feet rearward or forward thereof in the direction of the nearest approaching traffic. If a lighted red electric lantern or a red portable emergency reflector has been placed at the traffic side of the vehicle in accordance with paragraph (1) of this subsection, it may be used for this purpose.

c. Whenever any vehicle referred to in this section is disabled, or stopped for more than ten minutes, within 500 feet of a curve, hillcrest or other obstruction to view, the warning device in that direction shall be so placed as to afford ample warning to other users of the highway, but in no case less than 100 feet nor more than 500 feet from the disabled vehicle.

d. Whenever any vehicle of a type referred to in this section is disabled, or stopped for more than ten minutes, upon any roadway of a divided highway during the time lighted lamps are required, the appropriate warning devices prescribed in subsections (b) and (e) shall be placed as follows: One at a distance of approximately 200 feet from the vehicle in the center of the lane occupied by the stopped vehicle and in the direction of traffic approaching in that lane; one at a distance of approximately 100 feet from the vehicle, in the center of the lane occupied by the vehicle and in the direction of traffic approaching in that lane; one at the traffic side of the vehicle and approximately ten feet from the vehicle in the direction of the nearest approaching traffic.

e. Whenever any motor vehicle used in the transportation of explosives or any cargo tank truck used for the transportation of any flammable liquid or compressed gas is disabled, or stopped for more than ten minutes, at any time and place mentioned in subsection (b),(c) or (d), the driver of such vehicle shall immediately display red electric lanterns or portable red emergency reflectors in the same number and manner specified therein. Flares, fusees or signals produced by flame shall not be used as warning devices for vehicles of the type mentioned in this subsection nor for vehicles using compressed gas as a fuel.

f. The warning devices described in subsections (b) to (e) need not be displayed where there is sufficient light to reveal persons and vehicles within a distance of 1,000 feet.

g. Whenever any vehicle described in this section is disabled, or stopped for more than ten minutes, upon a roadway outside of an urban district or upon the roadway of a divided highway at any time when lighted lamps are not required by 12.04.144, the driver of the vehicle shall display two red flags as follows:

1. If traffic on the roadway moves in two directions, one flag shall be placed approximately 100 feet to the rear and one flag approximately 100 feet in advance of the vehicle in the center of the lane occupied by such vehicle.
2. Upon a one-way roadway, one flag shall be placed approximately 100 feet and one flag approximately 200 feet to the rear of the vehicle in the center of the lane occupied by such vehicle.

h. When any vehicle described in this section is stopped entirely off the roadway and on an adjacent shoulder at any time and place hereinbefore mentioned, the warning devices shall be placed, as nearly as practicable, on the shoulder near the edge of the roadway.

i. The flares, fusees, red electric lanterns, portable red emergency reflectors and flags to be displayed as required in this section shall conform with the requirements of 12.04.174.1.

(History: Ord. TC-1260 §177, 84) (State Law: K.S.A.8-1745)

12.04.175 Noise Prevention; Mufflers.

a. Every vehicle shall be equipped, maintained and operated so as to prevent excessive or unusual noise. Every motor vehicle at all times shall be equipped with a muffler or other effective noise suppressing system in good working order and in constant operation, and no person shall use a muffler cutout, bypass or similar device.

b. The engine and power mechanism of every motor vehicle shall be so equipped and adjusted as to prevent the escape of excessive fumes or smoke.

(History: Ord. TC-1260 §178, 84) (State Law: K.S.A. 8-1739)

12.04.175.1 Compression Release Engine Braking System.

It shall be unlawful for the driver of any motor vehicle to use or cause to be used or operated any compression release engine braking system without such motor vehicle being equipped with a muffler in accordance with O.P.M.C. 12.04.175, and amendments thereto.

(History: Ord. TC-1260,BBB §6, 2004)

12.04.176 Mirrors.

a. After January 1, 1975, every motor vehicle shall be equipped with a mirror mounted on the left side of the vehicle and so located as to reflect to the driver a view of the highway to the rear of the vehicle.

b. Every motor vehicle, except a motorcycle, shall be equipped with an additional mirror mounted either inside the vehicle approximately in the center or outside the vehicle on the right side and so located as to reflect to the driver a view of the highway to the rear of the vehicle.

c. All mirrors required by regulations of the United States department of transportation shall be maintained in good condition.

(History: Ord. TC-1260 §179, 84) (State Law: K.S.A.8-1740)

12.04.176.1 Air Conditioning Equipment.

a. No person shall have for sale, offer for sale, sell or equip any motor vehicle with any air-conditioning equipment unless it complies with the requirements of K.S.A. 8-1747 (1982) and any amendments thereto.

b. No person shall operate on any highway any motor vehicle equipped with any air-conditioning equipment unless said equipment complies with the requirements of K.S.A. 8-1747 (1982) and any amendments thereto.

(History: Ord. TC-1260 §180, 84) (State Law: K.S.A. 8-1747)

12.04.176.3 Safety Belts and Shoulder Harnesses.

a. Every passenger car manufactured or assembled after January 1, 1965, shall be equipped with at least two lap-type safety belt assemblies for use in the front seating positions.

b. Every passenger car manufactured or assembled after January 1, 1968, shall be equipped with a lap-style safety belt assembly for each permanent passenger seating position. This requirement shall not apply to

police vehicles.

c. Every passenger car manufactured or assembled after January 1, 1968, shall be equipped with at least two shoulder harness-type safety belt assemblies for use in the front seating positions.

d. The secretary shall except specified types of motor vehicles or seating positions within any motor vehicle from the requirements imposed by subsections (a) to (c) when compliance would be impractical.

e. No person shall distribute, have for sale, offer for sale or sell any safety belt or shoulder harness for use in motor vehicles unless it meets current minimum standards and specifications approved by the secretary.

(History: Ord. TC-1260 §182, 84) (State Law: K.S.A. 8-1749)

12.04.177 Windshields Must Be Unobstructed and Equipped With Wipers; Eye Protection.

a. No person shall drive any motor vehicle with any sign, poster or other nontransparent material upon the front windshield, side wings, side or rear windows of such vehicle which substantially obstructs, obscures or impairs the driver's clear view of the highway or any intersecting highway.

b. No person shall drive any motor vehicle with a damaged front windshield or side or rear windows which substantially obstructs the driver's clear view of the highway or any intersecting highway.

c. The windshield on every motor vehicle shall be equipped with a device for cleaning rain, snow or other moisture from the windshield, which device shall be so constructed as to be controlled or operated by the driver of the vehicle.

d. Every windshield wiper upon a motor vehicle shall be maintained in good working order.

e. The driver of a motor vehicle which is not equipped with a windshield shall wear an eye-protective device.

(History: Ord. TC-1260,GG §7, 93; TC-1260 §183, 84) (State Law: K.S.A. 8-1598; K.S.A. 8-1741)

12.04.178 Restrictions as to Tire Equipment.

a. Every solid rubber tire on a vehicle shall have rubber on its entire traction surface at least one inch thick above the edge of the flange of the entire periphery.

b. No person shall operate or move on any highway any motor vehicle, trailer, or semitrailer having any metal tire in contact with the roadway.

c. No tire on a vehicle moved on a highway shall have on its periphery any protuberance of any material other than rubber which projects beyond the tread of the traction surface of the tire, except that it shall be permissible to use:

1. Farm machinery with tires having protuberances which will not injure the highway;
2. Tire chains of reasonable proportions upon any vehicle when required for safety because of snow, ice or other conditions tending to cause a vehicle to skid;
3. Studded traction equipment upon any vehicle when required for safety because of snow, ice or other conditions tending to cause a vehicle to skid; or
4. Pneumatic tires having metallic or nonmetallic studs designed to improve traction without materially injuring the surface of the highway. Any such tires provided in subsection (3) or (4) must be approved by the secretary pursuant to duly adopted rules and regulations, and their use may be limited to certain months or types of vehicles by such rules and regulations.

d. The Governing Body may, in its discretion, issue special permits authorizing the operation upon a highway of traction engines or tractors having movable tracks with transverse corrugations upon the periphery of such movable tracks or farm tractors or other farm machinery, the operation of which upon a highway would otherwise be prohibited under this ordinance.

e. It is unlawful for any person to operate a motor vehicle or combination of vehicles having one or more tires in an unsafe condition. A solid rubber tire is in an unsafe condition if it does not comply with the provisions of subsection (a). A pneumatic tire is in an unsafe condition if it has:

1. Any part of the ply or cord exposed;

2. Any bump, bulge or separation;
3. A tread design depth of less than 1/16 of an inch measured in any two or more adjacent tread grooves, exclusive of tie bars, or for those tires with tread wear indicators worn to the level of the tread wear indicators in any two tread grooves;
4. A marking "not for highway use" or "for racing purposes only" or "unsafe for highway use";
5. Tread or sidewall cracks, cuts or snags deep enough to expose the body cord;
6. Been regrooved or recut below the original tread design depth, excepting special taxi tires which have extra under tread rubber and are identified as such; or
7. Such other conditions as may be reasonably demonstrated to render it unsafe.

f. The provisions of subsection (e) shall not apply to a vehicle or combination of vehicles being transported by a wrecker or tow truck, as defined in K.S.A. 66-1329, and amendments thereto.

g. It shall be unlawful for any person to operate a vehicle with a single tire on any hubs configured for a dual tire assembly. The provisions of this subsection shall not apply:
1. To any truck registered for a gross weight of 20,000 pounds or less;
2. To any vehicle or combination of vehicles operating with wide-base single tires, as defined in 12.04.178.05, on any hubs configured for a dual tire assembly in cases of emergency;
3. To any single axle with hubs configured for a dual tire assembly when such single axle does not exceed 9000 pounds and is part of a triple-axle combination; or
4. In case of emergency.

(History: Ord. TC-1260,FFFF §56, 2022; Ord. TC-1260,JJ §9, 94; TC-1260,GG §8, 93; TC-1260,C §1, 86; TC-1260 §184, 84) (State Law: KSA 8-1742)

12.04.178.05 Wide-base Single Tires.

a. As used in this section, "wide-base single tires" means all tires having a section width, as specified by the manufacturer, of 14 inches or more.

b. The following shall apply where wide-base single tires are used in the operation of any vehicle or combination of vehicles:
1. The maximum load for a wide-base single tire on a steering axle shall not exceed 600 pounds per inch of tire section width. The maximum load for a wide-base single tire on any other axle shall not exceed 575 pounds per inch of tire section width.
2. No wide-base single tire shall exceed the load designated by the manufacturer; and
3. the maximum tire inflation pressures shall be as designated by the manufacturer.

c. The provisions of paragraph (1) of subsection (b) shall apply to all wide-based single tires purchased after July 1, 1993.

d. Any conviction or forfeiture of bail or bond for any violation of this section shall not be construed as a moving traffic violation for the purpose of K.S.A. 8-255, and amendments thereto.

(History: Ord. TC-1260,GG §9, 93) (State Law: K.S.A. 8-1742b)

12.04.178.1 Unlawful Sale of Tires.

No person in the business of selling tires shall sell or offer for sale for highway use any tire which is in unsafe condition or which has tread depth of less than 1/16th inch measured as provided in 12.04.178 and amendments thereto.

(History: Ord. TC-1260 §185, 84) (State Law: K.S.A.8-1742a)

12.04.178.2 Safety Glazing Material Required.

a. No person shall sell any new motor vehicle as specified in this section, nor shall any such new motor vehicle be registered, unless such vehicle is equipped with safety glazing material when glazing materials are used in

doors, windows and windshields. This subsection (a) shall apply to all passenger-type motor vehicles, including passenger buses and school buses. This subsection (a) shall not apply to glazing material in compartments of trucks and truck tractors not designed and equipped for persons to ride therein.

b. No person shall sell or affix to a motor vehicle any truck-camper manufactured or assembled after July 1, 1968, unless such truck-camper is equipped with safety glazing material where glazing material is used in doors and windows.

c. No person shall replace any glass or glazing materials used in partitions, doors, windows or windshields in any motor vehicle with any material other than safety glazing material.

d. This section is subject to K.S.A. 8-2009a.

e. As used in this section, "safety glazing material" means glazing material which conforms to the American National Standard "Safety Code for Safety Glazing Materials for Glazing Motor Vehicles Operating on Land Highways," Z26.1-1966, July 15, 1966, as supplemented by Z26.1a-1969, March 7, 1969.

(History: Ord. TC-1270,FFFF §57, 2022; Ord. TC-1260 §186, 84) (State Law: K.S.A. 8-1743)

12.04.179 Spilling Loads on Highways Prohibited; Bond, When Required.

a. No vehicle shall be driven or moved upon any street or highway of the City, unless such vehicle is so constructed or loaded as to prevent any of its load from spilling, dropping, leaking, sifting or otherwise escaping therefrom, and no vehicle shall be driven or moved upon any street or highway in the City, if such vehicle places mud, dirt, or debris upon any said street or highway by reason of mud, debris, or dirt dropping from the tires of said vehicle.

    1. This section shall not prohibit the necessary spreading of any substance in highway maintenance or construction operations; and

    2. Subsections (1) and (c) shall not apply to:

        A. Trailers or semi-trailers when hauling livestock if such trailers or semi-trailers are properly equipped with a cleanout trap and such trap is operated in a closed position; or

        B. Trucks, trailers or semi-trailers when hauling agricultural forage commodities instrastate from the place of production to a market or place of storage or from a place of storage to a place of use. The provisions of this clause shall not apply to trucks, trailers or semi-trailers hauling:

            i. Hay bales; or

            ii. Other packaged or bundled forage commodities.

b. Any person, firm, or corporation engaged in the act of moving dirt and other substances upon any street or highway of the City shall, within the discretion of the Governing Body, be required to deposit with said Governing Body, a bond in the penal sum of $500.00 in a form approved by said Governing Body, conditioned that the principal under said bond shall save harmless and indemnify said City.

c. No person shall operate on any highway, any vehicle with any load unless said load and any covering thereon is securely fastened so as to prevent said covering or load from becoming loose, detached, or in any manner a hazard to other users on the highway.

d. All trailers or semi-trailers used for hauling livestock shall be cleaned out periodically.

e. Subsection (a)(2)(A) shall not apply to trailers or semi-trailers used for hauling livestock when livestock are not being hauled in such trailers and semi-trailers.

(History: Ord. TC-1260,FFFF §58, 2022; Ord. TC-1260 §187, 84) (State Law: K.S.A. 8-1906)

12.04.179.1 Vehicles Transporting Hazardous Materials.

a. Any person operating a vehicle transporting any hazardous material as a cargo or part of a cargo upon a highway shall at all times comply with rules and regulations of the secretary of transportation adopted pursuant to K.S.A. 8-1746.

b. Every such vehicle shall be marked or placarded at such places as prescribed by such rules and regulations.

c. Every such vehicle shall be equipped with fire extinguishers of a type, size and number approved by the secretary, filled and ready for immediate use, and placed at a convenient point on the vehicle.

d. Subject to the provisions of K.S.A. 65-3455, any person responsible for the abandonment, disposal, discharge, leakage, seepage or other release of hazardous material as defined in K.S.A. 65-3471, onto the public roadways and/or adjacent rights-of-way shall be responsible for the payment of the cost incurred by the City in the cleanup and disposal of the hazardous material and any damage caused to the infrastructure thereby. The person responsible shall be notified of such costs and expenditures by certified mail/return receipt requested and shall make repayment of all costs incurred. If the responsible person fails to pay for such costs, such payment shall be recoverable in an action brought by the City Attorney in the District Court of Johnson County, Kansas, or in a court of appropriate jurisdiction. Any money recovered under this section shall be deposited with the City Clerk.

(History: Ord. TC-1260,FFFF §59, 2022; Ord. TC-1260,G §1, 87; TC-1260 §188, 84) (State Law: K.S.A. 8-1746)

12.04.180 Trailers and Towed Vehicles; Drawbar Connections and Safety Hitch.

a. When one vehicle is towing another, the drawbar, towbar or other connections shall be of sufficient strength to pull, stop and hold all weight towed thereby, and so designed, constructed and installed as to insure that any vehicle or motor vehicle towed on a level, smooth, paved surface will follow in the path of the towing vehicle when it is moving in a straight line. In addition to the drawbar connections between any two such vehicles, there shall be provided an adequate safety hitch.

b. When one vehicle is towing another and the connection consists of a chain, rope or cable, there shall be displayed upon such connection a white flag or cloth not less than 12 inches square.

c. Motor vehicles in transit may be transported in combination by means of tow bar, saddlemount or fullmount mechanisms, utilizing the motive power of one of the motor vehicles in such combination, except that not more than two vehicles in any such combination of motor vehicles in transit may be connected by means of a tow bar mechanism. Whenever motor vehicles are transported as authorized in this subsection, such motor vehicles shall be connected securely in combination in accordance with rules and regulations adopted by the secretary of transportation, and any combination of such motor vehicles shall comply with the limitations prescribed by K.S.A. 8-1904, and amendments thereto.

d. Except as otherwise provided in subsection (c), not more than three vehicles, including the towing vehicle, in any combination of vehicles may be connected by means of a tow bar mechanism, and if the three such vehicles are connected by tow bar mechanisms, the tow bar mechanism between the towing vehicle and the first towed vehicle shall be equipped with an anti-sway mechanism. In addition, the second towed vehicle of every combination of vehicles so connected shall be equipped with service brakes acting on the wheels of at least one axle, and which are of a type approved by the secretary of transportation and of such character as to be applied automatically and promptly, except that this sentence shall not apply to combinations of vehicles which include a slow-moving vehicle which is an implement of husbandry when moving from field to field.

(History: Ord. TC-1260,FFFF §60, 2022; Ord. TC-1260 §189, 84) (State Law: K.S.A. 8-1907)

12.04.181 Sun Screening Devices and Other Applications Prohibited on Windshields, Certain Windows and Head lamps.

a. For the purpose of this section:

1. "Sun screening devices" means a film material or device that is designed to be used in conjunction with motor vehicle safety glazing materials for reducing the effects of the sun;
2. "Light transmission" means the ratio of the amount of total light to pass through a product or material including any safety glazing material to the amount of the total light falling on the product or material and the glazing;
3. "Luminous reflectants" means the ratio of the amount of total light that is reflected outward by the product or material to the amount of the total light falling on the product or material;

4. "Nonreflective" means a product or material designed to absorb light rather than to reflect it.

b. Any convicted of violating the provisions of this section shall be guilty of a public offense and shall be punished as provided in section 1.12.010.

c. No motor vehicle required to be registered in this state and which is operated on the highways of this City shall be equipped with one-way glass or any sun screening device, as defined in subsection (a), and used in conjunction with windshields, side wings, side windows or rear windows that do not meet the following requirements:

1. A sun screening device when used in conjunction with the windshield shall be nonreflective and shall not be red, yellow or amber in color. A sun screening device shall be used only along the top of the windshield and shall not extend downward beyond the ASI line which is clearly defined and marked;
2. A sun screening device when used in conjunction with the side wings or side windows located at the immediate right and left of the driver, the side windows behind the driver and the rear most window shall be nonreflective; and
3. The total light transmission shall not be less than 35% when a sun screening device is used in conjunction with other existing sun screening devices.

d. Subsection (c)(3) shall not apply to a window of a law enforcement motor vehicle.

e. This section shall not prohibit labels, stickers or other informational signs that are required or permitted by state law.

f. No motor vehicle required to be registered in this state which is operated on the highways of this City shall be equipped with head lamps which are covered with any sun screening device, adhesive film or other glaze or application which, when such lamps are not in operation, is highly reflective or otherwise nontransparent.

g. The provisions of subsection (c) shall not apply to the installation, affixation or application of a clear, colorless and transparent material that may be installed, affixed or applied to the windshields, side wings, side windows or rear windows of a motor vehicle if the following conditions are met:

1. The material has a minimum visible light transmittance of 78%;
2. The window glazing with the material applied meets all requirements of federal motor vehicle safety standard no. 205, including the specified minimum light transmittance of 70% and the abrasion resistance of AS-14 glazing, as specified in that federal standard;
3. The material is designed and manufactured to enhance the ability of the existing window glass to block the sun's harmful ultraviolet A or B rays;
4. The driver or occupant of the vehicle possesses a signed statement from a licensed physician or licensed optometrist that:
    a. Identifies with reasonable specificity the driver or occupant of the vehicle; and
    b. States that, in the physician's or optometrist's professional opinion, the equipping of the vehicle with the material is necessary to safeguard the health of the driver or occupant of the vehicle; and
5. If the material described in this subsection tears or bubbles, or is otherwise worn to prohibit clear vision, it shall be removed or replaced.

h. Any driver who is issued a citation for failure to possess a signed statement pursuant to subsection (g) (4) shall have 60 days to either produce in court a signed statement or remove the material described in subsection (g). If such driver produces the signed statement or submits proof to the satisfaction of the court that the material described in subsection (g) has been removed, then the court shall dismiss the citation.

(History: Ord. TC-1260,FFFF §61, 2022; Ord. TC-1260, CCCC §5, 2019; Ord TC-1260,QQQ §5, 2010; TC-1260,H §2, 87 Ord. TC-1260 §190, 84; (State Law: K.S.A. 8-1749(a); K.S.A. 8-1749(b))

Article XVIII. Equipment on Motorcycles and Motor-Driven Cycles

12.04.182 Head Lamps.

a. Every motorcycle and every motor-driven cycle shall be equipped with at least one head lamp which shall comply with the requirements and limitations of this ordinance.

b. Every head lamp upon every motorcycle and motor-driven cycle shall be located at a height of not more than 54 inches nor less than 24 inches to be measured as set forth in Section 12.04.145(b).

c. Any headlamp, required by this Section, may be wired with a headlamp modulation system provided the headlamp modulation system complies with federal standards established by 49 C.F.R. § 571.108.

(History: Ord. TC-1260,UUU §4, 2013; TC-1260 §191, 84) (State Law: K.S.A. 8-1801)

See: 12.04.035

12.04.183 Tail Lamps.

a. Every motorcycle and motor-driven cycle shall have at least one tail lamp which shall be located at a height of not more than 72 nor less than 15 inches.

b. Either a tail lamp or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of 50 feet to the rear. Any tail lamp or tail lamps, together with any separate lamp or lamps for illuminating the rear registration plate, shall be so wired as to be lighted whenever the head lamps or auxiliary driving lamps are lighted.

(History: Ord. TC-1260 §192, 84) (State Law: K.S.A. 8-1802)

12.04.184 Reflectors.

Every motorcycle and motor-driven cycle shall carry on the rear, either as part of the tail lamp or separately, at least one red reflector meeting the requirements of 12.04.148(b).

(History: Ord. TC-1260,FFF §12, 2006; TC-1260 §193, 84) (State Law: K.S.A. 8-1803)

12.04.185 Stop Lamps.

a. Every motorcycle, motorized bicycle, and motor-driven cycle shall be equipped with at least one stop lamp meeting the requirements of Section 12.04.161(a).

b. Every motorcycle manufactured after January 1, 1973, shall be equipped with electric turn signals meeting the requirements of Section 12.04.161(b). Motor-driven cycles may, but need not, be equipped with electric turn signals.

c. In addition to the lamps otherwise permitted by this Article, a motorcycle may be equipped with lamps on the sides thereof, visible from the side of the motorcycle but not from the front or rear thereof, which lamps, together with mountings or receptacles, shall be set into depressions or recesses in the body or wheel of the motorcycle and shall not protrude beyond or outside the body or wheel of the motorcycle. The light source may emit only white, amber or red light without glare.

(History: Ord. TC-1260,UUU §5, 2013; TC-1260,F §3, 87; TC-1260 §194, 84) (State Law: K.S.A.8-1804)

12.04.186 Multiple-Beam Road-Lighting Equipment.

Every motorcycle, other than a motor-driven cycle, shall be equipped with multiple beam road-lighting equipment. Such equipment shall:

a. Reveal persons and vehicles at a distance of at least 300 feet ahead when the uppermost distribution of light is selected; and

b. reveal persons and vehicles at a distance of at least 150 feet ahead when the lowermost distribution of light is selected, and on a straight, level road under any condition of loading, none of the high intensity portions of the beam shall be directed to strike the eyes of an approaching driver.

(History: Ord. TC-1260 §195, 84) (State Law: K.S.A. 8-1805)

12.04.187 Lighting Equipment for Motor-Driven Cycles.

The head lamp or head lamps upon every motor-driven cycle may be of the single-beam or multiple-beam type, but in either event shall comply with the requirements and limitations as follows:

a. Every such head lamp or head lamps on a motor-driven cycle shall be of sufficient intensity to reveal persons and vehicles at a distance of not less than 100 feet when the motor-driven cycle is operated at any speed less than 25 miles per hour, and at a distance of not less than 200 feet when the motor-driven cycle is operated at a speed of 25 or more miles per hour, and at a distance of not less than 300 feet when the motor-driven cycle is operated at a speed of 35 or more miles per hour.

b. In the event the motor-driven cycle is equipped with a multiple-beam head lamp or head lamps, such equipment shall comply with the requirements of 12.04.186.

c. In the event the motor driven cycle is equipped with a single beam lamp or lamps, such lamp or lamps shall be so aimed that when the vehicle is loaded, none of the high-intensity portion of light, at a distance of 25 feet ahead, shall project higher than the level of the center of the lamp from which it comes.

(History: Ord. TC-1260 §196, 84) (State Law: K.S.A. 8-1806)

See: 12.04.035

12.04.188 Brake Equipment Required.

Every motorcycle and motor-driven cycle shall comply with the provisions of 12.04.173(a), except that the wheel of a sidecar attached to a motorcycle or to a motor-driven cycle, and the front wheel of a motor-driven cycle need not be equipped with brakes: Provided, that such motorcycle or motor-driven cycle is capable of complying with the performance requirement of this ordinance.

(History: Ord. TC-1260 §197, 84) (State Law: K.S.A. 8-1807)

12.04.189 Performance Ability of Brakes.

Upon application of the service brake, every motorcycle and motor-driven cycle, at all times and under all conditions of loading, shall be capable of stopping from a speed of 20 miles per hour in not more than 30 feet, such distance to be measured from the point at which movement of the service brake pedal or control begins.

Tests for stopping distance shall be made on a dry smooth, hard and substantially level surface, not to exceed one percent (1%) grade, that is free from loose material.

(History: Ord. TC-1260 §198, 84) (State Law: K.S.A. 8-1808)

12.04.189.1 Approval of Braking System by Secretary of Transportation.

No person shall operate on any highway any motorcycle or motor driven cycle if the secretary has disapproved the braking system upon such vehicle.

(History: Ord. TC-1260 §199, 84) (State Law: K.S.A. 8-1809)

12.04.190 Other Equipment.

a. Every motorcycle and every motor-driven cycle shall comply with the requirements and limitations of 12.04.174 on horns and warning devices, 12.04.175 on noise prevention and mufflers, 12.04.176 on mirrors and 12.04.178 on tires.

b. Every motorcycle and every motor-driven cycle shall comply with the requirements and limitations contained in this ordinance, and unless otherwise specifically made applicable, motorcycles and motor-driven cycles shall not be subject to the requirements and limitations imposed elsewhere in this ordinance with respect to equipment on vehicles.

(History: Ord. TC-1260 §200, 84) (State Law: K.S.A. 8-1810)

Article XIX. Driver's License and Vehicle Tags

12.04.191 Driver's License.

. No person, except those expressly exempted by law, shall drive or operate any motor vehicle or motorized bicycle upon any street or highway in this City unless such person has a valid driver's license.

. Any person operating a motor vehicle in the City shall be the holder of a driver's license that is classified for the operation of such motor vehicle and any person operating in this state a motorcycle that is registered in this state shall be the holder of a class M driver's license.

Provided, for purposes of this section, a "valid Kansas Driver's license" shall mean either:

1. A valid Kansas driver's license, when such person is required to have such license pursuant to Article 2 of Chapter 8, Kansas Statutes Annotated; or
2. When such person is not required to be licensed under the foregoing provision, a valid license issued by a jurisdiction other than the State of Kansas.
    A. Violation of this section is punishable by a fine of not more than $1,000.00 or by imprisonment for not more than six months or by both such fine and imprisonment.

(History: Ord. TC-1260,FFFF §62, 2022; Ord. TC-1260 §201, 84) (State Law: K.S.A. 8-235)

See: 12.04.002

12.04.191.1 Driver's License in Possession.

. Every licensee shall have such person's driver's license in such person's immediate possession at all times when operating a motor vehicle. However, no person charged with violating this subsection shall be convicted if such person produces in court a driver's license theretofore issued to such person and valid at the time of arrest.

. Every licensee operating a motor vehicle shall promptly deliver such person's driver's license upon demand of any officer of a court of competent jurisdiction, any peace officer or any examiner or office of the division of vehicles when the license is in such person's immediate possession at the time of the demand.

(History: Ord. TC-1260,FFFF §63, 2022; Ord. TC-1260, CCCC §6, 2019; Ord. TC-1260 §202, 84) (State Law: K.S.A. 8-244)

12.04.191.2 Driving in Violation of Restrictions

a. No person shall operate a motor vehicle in violation of the restrictions on any driver's license or permit imposed pursuant to any statute.

b. Except as provided in subsection (c):

1. Any person guilty of violating this Section, upon the first conviction, shall be fined not to exceed $250.00, and the court shall suspend such person's privilege to operate a motor vehicle for not less than 30 days and not more than two years.
2. Any person guilty of violating this Section, upon a second or subsequent conviction, shall be fined not to exceed $500.00; and the court shall suspend such person's privilege to operate a motor vehicle for not less than 90 days and not more than two years.

c. Any person guilty of violating this Section, for violating restrictions on a driver’s license or permit imposed pursuant to K.S.A. 8-237, 8-296, 8-2,100 or 8-2,101, and amendments thereto:

1. Upon first conviction, the court shall suspend such person’s privilege to operate a motor vehicle for 30 days;
2. Upon a second conviction, the court shall suspend such person’s privilege to operate a motor vehicle for 90 days; and
3. Upon a third or subsequent conviction, the court shall suspend such person’s privilege to operate a motor vehicle for one year.

d. Nothing in this Section shall limit a court in imposing penalties, conditions, or restrictions authorized by any other ordinance arising from the same occurrence in addition to penalties and suspensions imposed under this Section.

(History: Ord. TC-1260,FFFF §64, 2022; Ord. TC-1260,PPP §9, 2009; TC-1260 §203, 84) (State Law: K.S.A. 8-291)

12.04.191.3 Driver's License - Change of Name/Address.

It shall be unlawful for any person to fail to notify the division in writing within 10 days of any address or name change on such person's driver's license pursuant to K.S.A. 8-248.

(History: Ord. TC-1260,HHH §2, 2006; TC-1260 §204, 84)

12.04.192 Driving While License is Canceled, Suspended or Revoked; Penalty.

a. No person shall operate a motor vehicle on any public street or highway of this City at a time when such person's privilege to do so is canceled, suspended, or revoked or while said person's privilege to obtain a license to operate a motor vehicle is suspended or revoked.

b. Except under the circumstances set out in subsection (e), the following penalties shall apply to a person convicted of violating subsection (a):

1. Except as provided in subsection (e), upon a first conviction of a violation of this Section and the person's privilege to drive or privilege to obtain a driver's license was suspended or revoked for any reason other than a violation of K.S.A. 8-2110, and amendments thereto, or any ordinance of any city, resolution of any county or a law of another state that prohibits the acts prohibited by those statutes other than K.S.A. 8-2110, and amendments thereto a person shall be sentenced to not less than five days of confinement, nor more than six months of confinement and fined not less than $100.00 nor more than $1,000.00.

2. Except as provided in subsection (e), upon a second conviction of a violation of this Section, and the person's privilege to drive or privilege to obtain a driver's license was suspended or revoked for any reason other than a violation of K.S.A. 8-2110, and amendments thereto, or any ordinance of any city, resolution of any county or a law of another state that prohibits the acts prohibited by those statutes other than K.S.A. 8-2110, and amendments thereto, a person shall be sentenced to not less than five consecutive days of confinement nor more than one year of confinement and fined not less than $100.00 nor more than $2,500.00. In addition, upon a second conviction such person shall not be eligible for probation, suspension, reduction of sentence or parole until completion of at least five consecutive days of confinement.

3. Upon a third or subsequent conviction of a violation of this Section:

i. a person shall be sentenced to not less than 90 days of confinement and fined not less than $1,500.00 if such person’s privilege to drive a motor vehicle is canceled, suspended or revoked because such person: (i) refused to submit and complete any test of blood, breath or urine requested by law enforcement excluding the preliminary screening test as set forth in K.S.A. 8-1012, and amendments thereto; (ii) was convicted of violating the provisions of K.S.A. 40-3104, and amendments thereto, relating to motor vehicle liability insurance coverage; (iii) was convicted of vehicular homicide, K.S.A. 21-3405, prior to its repeal or K.S.A. 21-5406, and amendments thereto, involuntary manslaughter while driving under the influence of alcohol or drugs, K.S.A. 21-3442, prior to its repeal or involuntary manslaughter as defined in K.S.A. 21-5405(a)(3) and (a)(5), and amendments thereto, or any other murder or manslaughter crime resulting from the operation of the motor vehicle; or (iv) was convicted of being a habitual violator, K.S.A. 8-287, and amendments thereto; and

ii. a person convicted shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served at least 90 days of confinement. The 90 days of confinement mandated by this subsection may be served in a work release program only after such person has served 48 consecutive hours’ of confinement and only if such work release program requires such person to return to confinement at the end of each day in the work release program. The court may place the person convicted under a house arrest program to serve the remainder of the minimum sentence only after such person has served 48 consecutive hours’ of confinement.

4. For the purpose of determining whether a conviction is a first, second, third or subsequent conviction in sentencing under this Section, "conviction" shall include a conviction of a violation of this Section or a violation of a law of this state or of any state or of an ordinance of any municipality or of any resolution of any county which law or ordinance prohibits the acts that this Section prohibits or is in substantial compliance with this Section.

c. No person shall be convicted under this Section if such person was entitled at the time of arrest or service of a notice to appear under K.S.A. 8-257, and amendments thereto, to the return of such person's driver's license.

d. For the purposes of this Section, any person who operates a motor vehicle on any street or highway of this City at a time when such person's privilege to do so had been canceled, suspended or revoked and subsequently received from the Division or a judge of a court of competent jurisdiction a temporary license or privilege to operate a motor vehicle under certain specified conditions, and operates a motor vehicle in violation of or outside the scope of such conditions, shall be deemed to be operating a motor vehicle when his or her privilege to do so has been canceled, revoked, or suspended.

e. A person shall not be eligible for suspension of sentence, probation, reduction of sentence or parole until the person has served at least 90 days of confinement, and any fine imposed on such person shall be in addition to any such term of confinement, if such person:

1. Is convicted of a violation of this Section committed while the person's privilege to drive a vehicle or privilege to obtain a license to operate a vehicle was suspended or revoked for a violation of Section 12.04.030 or Section 12.04.030.05, or under any law of this state or of any state or of an ordinance of any municipality or of any resolution of any county which prohibits the acts prohibited by Section 12.04.030 or Section 12.04.030.05; and

2. Is or has been also convicted of a violation of Section 12.04.030 or Section 12.04.030.05, or of a law of this state or of any state or of an ordinance of any municipality which prohibits the acts prohibited by Section 12.04.030 or Section 12.04.030.05, committed while the person's privilege to drive or privilege to obtain a driver's license was so suspended or revoked.

(History: Ord. TC-1260,GGGG §1, 2023; Ord. TC-1260,FFFF §65, 2022; Ord. TC-1260, AAAA §7, 2018; TC-1260,TTT §5, 2012; TC-1260,RRR §16, 2011; TC-1260,JJJ §5, 2007; TC-1260,FFF §13, 2006; TC-1260,VV §2, 2001; TC-1260,SS §1, 99; TC-1260,DD §3, 92; TC-1260,A §3, 85; TC-1260 §205, 84) (State Law: K.S.A. 8-262)

See: 12.04.002

12.04.192.1 Operation of a Motor Vehicle When a Habitual Violator.

Except as allowed under K.S.A. 8-235, and amendments thereto, operation of a motor vehicle in this City when one's driving privileges are revoked pursuant to K.S.A. 8-286, and amendments thereto, is unlawful. A violation of this Section shall be punished by imprisonment for not more than one year or fined not to exceed $2,500.00, or both such fine and imprisonment. The person found guilty of a third or subsequent conviction of this Section shall be sentenced to not less than 90 days' imprisonment and fined not less than $1,500.00. The person convicted shall not be eligible for release on probation, suspension or reduction of sentence or parole until the person has served at least 90 days' imprisonment. The 90 days' imprisonment mandated by this subsection may be served in a work release program only after such person has served 48 consecutive hours' imprisonment, provided such work release program requires such person to return to confinement at the end of each day in the work release program. The court may place the person convicted under a house arrest program to serve the remainder of the minimum sentence only after such person has served 48 consecutive hours' imprisonment.

(History: Ord. TC-1260,FFFF §66, 2022; Ord. TC-1260,TTT §6, 2012; TC-1260,FFF §14, 2006) (State Law: K.S.A. 8-287)

12.04.192.2 Permitting Driving in Violation of K.S.A. 8-1014; Penalties.

a. It shall be unlawful for the owner of a motor vehicle to allow a person to drive such vehicle when such owner knows or reasonably should have known such person was driving in violation of K.S.A. 8-1014, and amendments thereto.

b. Persons violating this Section shall be punished by a fine of not less than $500.00 nor more than $1,000.00. In addition to the fine imposed upon a person convicted of a violation of this Section, the court may order that the convicted person's motor vehicle or vehicles be impounded or immobilized for a period not to exceed one year and that the convicted person pay all towing, impoundment and storage fees or other immobilization costs. Prior to ordering the impoundment or immobilization of any such motor vehicle, the court shall consider the factors established in Section 12.04.030(j), and amendments thereto. Any personal property in a vehicle impounded or immobilized pursuant to this Section may be retrieved prior to or during the period of such impoundment or immobilization.

(History: Ord. TC-1260,RRR §17, 2011) (State Law: K.S.A. 8-1022)

12.04.193 Unauthorized Operator.

No person shall authorize or knowingly permit a motor vehicle owned by such person or under such person's control to be driven upon any highway by any person who has no legal right to do so, or who does not have a valid driver's license.

(History: Ord. TC-1260,FFFF §67, 2022; Ord. TC-1260 §206, 84) (State Law: K.S.A. 8-264)

12.04.194 Unauthorized Minors.

No person shall cause or knowingly permit his child or ward under the age of 18 years to drive a motor vehicle upon any highway when such minor person is not authorized under the laws of Kansas to drive a vehicle.

(History: Ord. TC-1260 §207, 84) (State Law: K.S.A.8-263)

12.04.195 Vehicle License; Illegal Tag.

No person shall:

a. Park, leave unattended, operate or drive any motor vehicle upon a street or highway within this City which is not registered, or for which a certificate of title has not been issued or which does not have attached thereto and displayed thereon the license plate or plates assigned thereto by the division for the current registration year, including any registration decal required to be affixed to any such license plate pursuant to K.S.A. 8-134, and amendments thereto, subject to the exemptions allowed in K.S.A. 8-135 and 8-198, and amendments thereto. A violation of this subsection (a) by a person unlawfully claiming that a motor vehicle is exempt from registration as a self-propelled crane under K.S.A. 8-128(b) and amendments thereto, shall constitute a violation punishable by a fine of not less than $500.00. A person shall not be charged with a violation of this subsection for failing to display a registration decal on any vehicle except those included under K.S.A. 8-1,101 and K.S.A. 2016 8-143m and 8-1,152, and amendments thereto, up to and including the 10th day following the expiration of the registration if the person is able to produce a printed payment receipt or electronic payment receipt from an online electronic payment processing system for the current 12-month registration period. Any charge for failing to display a registration decal up to and including the 10th day following the expiration of the registration shall be dismissed if the person produces in court a registration receipt for the current 12-month registration period which was valid at the time of arrest.

b. Display or cause or permit to be displayed, or to have in possession, any registration receipt, certificate of title, registration license plate, registration decal, accessible parking placard or accessible parking identification card knowing the same to be fictitious or to have been canceled, revoked, suspended or altered. A violation of this subsection (b) shall constitute an ordinance violation punishable by a fine of not less than $100.00 and forfeiture of the item. A mandatory court appearance shall be required of any person violating this subsection (b). This subsection (b) shall not apply to the possession of:

   1. Model year license plates displayed on antique vehicles as allowed under K.S.A. 8-172, and amendments thereto; or
   2. Distinctive license plates allowed under K.S.A. 8-1,147, and amendments thereto.

c. Lend to or knowingly permit the use by one not entitled thereto any registration receipt, certificate of title, registration license plate or registration decal issued to the person so lending or permitting the use thereof.

d. Remove, conceal, alter, mark or deface the license number plate or plates or any other mark of identification upon any vehicle. License plates shall be kept clean and they shall be placed on all vehicles within the City as required by law so as to be plainly legible. It shall be unlawful for any person to attach and display on any vehicle a license plate which is covered, in whole or in part, with any clear or opaque material or any other plastic-like material that affects the plate's visibility or reflectivity.

e. Carry or display a registered number plate or plates or registration decal upon any vehicle not lawfully issued for such vehicle.

f. Any person violating subsections (a), (b) or (c) shall be punished by a fine not exceeding $2,500.00, or by imprisonment for not less than 30 days nor more than six months, or by both such fine and imprisonment. Any person violating subsections (d) or (e) shall be punished as provided in Section 12.04.197.

(History: Ord. TC-1260,FFFF §68, 2022; Ord. TC-1260, YYY §3, 2017; TC-1260, WWW §7, 2015; TC-1260, QQQ §6, 2010; TC-1260, LLL §1, 2007; TC-1260,X §1, 91; TC-1260 §208, 84) (State Law: K.S.A. 8-142)

12.04.195.1 Motor Vehicle Liability Insurance.

a. Every owner of a motor vehicle shall provide motor vehicle liability insurance coverage in accordance with the Kansas Automobile Injury Reparations Act, K.S.A. 40-3101 et seq., for every motor vehicle owned by such person, unless such motor vehicle is included under an approved self-insurance plan as provided in K.S.A. 40-3104(f) or is otherwise expressly exempted under the laws of this state.

b. An owner of an uninsured motor vehicle shall not permit the operation thereof upon a highway or upon property open to use by the public, unless such motor vehicle is expressly exempted from said requirements pursuant to the laws of this state.

c. No person shall knowingly drive an uninsured motor vehicle upon a highway or upon property open to use by the public, unless such motor vehicle is expressly exempted from said requirements pursuant to the laws of this state.

d. Any person operating a motor vehicle upon a highway or upon property open to use by the public shall display, upon demand, evidence of financial security to a law enforcement officer. Such evidence of financial security which meets the requirements of subsection (e) may be displayed on a cellular phone or any other type of portable electronic device. The law enforcement officer to whom such evidence of financial security is displayed shall view only such evidence of financial responsibility. Such law enforcement officer shall be prohibited from viewing any other content or information stored on such cellular phone or other type of portable electronic device. The law enforcement officer shall issue a citation to any person who fails to display evidence of financial security upon such demand. The law enforcement officer shall attach a copy of the insurance verification form prescribed by the Secretary of Revenue to the copy of the citation forwarded to the court.

   No citation shall be issued to any person for failure to provide proof of financial security when evidence of financial security meeting the standards of subsection (e) is displayed upon demand of a law enforcement officer. Whenever the authenticity of such evidence is questionable, the law enforcement officer may initiate the preparation of the insurance verification form prescribed by the Secretary of Revenue by recording information from the evidence of financial security displayed. The officer shall immediately forward the form to the Department of Revenue, and the Department shall proceed with verification in the manner prescribed in the following paragraph. Upon return of a form indicating that insurance was not in force on the date indicated on the form, the Department shall immediately forward a copy of the form to the law enforcement officer initiating preparation of the form.

e. Unless the insurance company subsequently submits an insurance verification form indicating that insurance was not in force, no person charged with violating subsections (b), (c) or (d) shall be convicted if such person produces in court, within 10 days of the date of arrest or of issuance of the citation, evidence of financial security for the motor vehicle operated, which was valid at the time of arrest or of issuance of the citation. For the purpose of this subsection evidence of financial security shall be provided by a policy of motor vehicle liability insurance, an identification card or certificate of insurance issued to the policyholder by the

insurer which provides the name of the insurer, the policy number, make and year of the vehicle and the effective and expiration dates of the policy, or a certificate of self-insurance signed by the commissioner of insurance. Such evidence of financial security also may be produced by displaying such information on a cellular phone or other type of portable electronic device. Any person to whom such evidence of financial security is displayed on a cellular phone or other type of portable electronic device shall be prohibited from viewing any other content or information stored on such cellular phone or other portable electronic device.

f. Any person violating any provision of this Section shall be guilty of a violation of this ordinance and subject to a fine of not less than $300.00 nor more than $1,000.00 or by imprisonment for a term of not more than six months, or both such fine and imprisonment, except that any person convicted of violating any provision of this Section within three years of any such prior conviction shall be guilty of a violation of this ordinance and subject to a fine of not less than $800.00 nor more than $2,500.00 or by imprisonment for a term not to exceed one year, or both such fine and imprisonment.

(History: Ord. TC-1260,FFFF §69, 2022; Ord. TC-1260,UUU §6, 2013; TC-1260,UU §6, 2000; TC-1260,NN §4, 97; TC-1260,U §1, 90; TC-1260, J §2, 88; TC-1260 §209, 84) (State Law: K.S.A. 8-3104)

12.04.195.2 Display of License Plate.

. The license plate assigned to the vehicle shall be attached to the rear of the vehicle and shall be displayed during the current registration year or years. Except as otherwise provided in subsection (b), a Kansas registered vehicle shall not have a license plate attached to the front of the vehicle.

. The following classes of vehicles shall attach a license plate in the location or locations specifically stated:

1. The license plate issued for a truck tractor shall be attached to the front of the truck tractor;
2. A model year license plate issued for an antique vehicle, in accordance with K.S.A. 8-172, and amendments thereto, may be attached to the front of the antique vehicle;
3. A personalized license plate issued for an antique vehicle, in accordance with K.S.A. 8-172, and amendments thereto, may be attached to the front of the passenger vehicle or truck;
4. The license plate issued for a motor vehicle used as a concrete mixer truck may be attached to either the front or rear of the vehicle;
5. The license plate issued for a motor vehicle used as a dump truck with a gross weight of 26,000 pounds or more shall be attached to the front of the vehicle. The provisions of this paragraph shall not apply to such vehicle if such vehicle is registered as a farm truck.

. Every license plate shall at all times be securely fastened to the vehicle to which it is assigned, to prevent the plate from swinging, and at a height not less than 12 inches from the ground, measuring from the bottom of such plate. The license plate shall be fastened in a place and position to be clearly visible, and shall be maintained free from foreign materials and in a condition to be clearly legible.

During any period in which the construction of license plates has been suspended pursuant to the provisions of K.S.A. 8-132, and amendments thereto, the plate, tag, token, marker or sign assigned to such vehicle shall be attached to and displayed on such vehicle in such place, position, manner and condition as shall be prescribed by the director of vehicles.

(History: Ord. TC-1260,FFFF §70, 2022) (State Law: K.S.A. 8-133)

12.04.196 Unlawful Use of License.

a. It shall be unlawful for any person, for any purpose to:

1. Display or cause or permit to be displayed or have in possession any fictitious or fraudulently altered driver's license.
2. Lend any driver's license to any other person or knowingly permit the use thereof by another.
3. Display or represent as the person's own, any driver's license not issued to the person.

4. Fail or refuse to surrender to any police officer upon lawful demand any driver's license which has been suspended, revoked or canceled.
5. Permit any unlawful use of driver's license issued to the person.
6. Photograph, photostat, duplicate or in any way reproduce any driver's license or facsimile thereof in such a manner that it could be mistaken for a valid driver's license or display or have in possession any such photograph, photostat, duplicate, reproduction or facsimile unless authorized by law.
7. Display or possess any photograph, photostat, duplicate or facsimile of a driver's license unless authorized by law.
8. Display or cause or permit to be displayed any canceled, revoked or suspended driver's license.

b. Violation of paragraph (1) and (8) of subsection (a) is punishable by a fine of not more than $1,000 or by imprisonment for not more than six months or by both such fine and imprisonment. Violation of paragraphs (2), (3), (4), (5), (6) or (7) of subsection (a) is punishable by a fine of not more than $2,500 or by imprisonment for not more than one year or by both such fine and imprisonment.

c. It shall be unlawful for any person to:

1. Lend any driver's license to or knowingly permit the use of any driver's license by a person under 21 years of age for use in the purchase of any alcoholic liquor.
2. Lend any driver's license to or knowingly permit the use of any driver's license by a person under the legal age for consumption of cereal malt beverage for use in the purchase of any cereal malt beverage.
3. Display or cause to be displayed or have in possession any fictitious or fraudulently altered driver's license by any person under 21 years of age for use in the purchase of any alcoholic liquor or cereal malt beverage.

d.
1. Upon the first conviction of a violation of any provision of subsection (c) a person shall be sentenced to not less than 100 hours of public service and fined not less than $200 nor more than $500.
2. On a second or subsequent conviction of a violation of any provision of subsection (c), a person shall be punished by a fine of not more than $2,500 or by imprisonment for not more than one year or by both such fine and imprisonment.

e. The provisions of this section shall apply to any driver's license, whether issued under the laws of this state or issued under the laws of another state or jurisdiction.

(History: Ord. TC-1260,NN §5, 97; TC-1260,MM §7, 96; TC-1260,B §3, 85; TC-1260 §210, 84) (State Law: K.S.A. Supp. 8-260)

See: 12.04.002

12.04.196.1 Vehicle Height, Weight, Length and Width.

a. No person, association, firm, partnership, or corporation shall operate a motor vehicle or combination of vehicles the height or length of which, including any load thereon, exceeds the limitations as to such prescribed by K.S.A. 8-1904 and any amendments thereto, which are incorporated by reference as if set out in full herein.

b. No person, association, firm, partnership, or corporation shall operate a motor vehicle or combination of vehicles the total outside width of which, or any load thereon, exceeds the limitations as to such prescribed by K.S.A. 8-1902 and amendments thereto, which are incorporated by reference as if set out in full herein.

c. No person, association, firm, partnership, or corporation shall operate a motor vehicle or combination of vehicles the gross weight of which, as to wheel and axle load, exceeds the limitations as to such prescribed by K.S.A. 8-1908 and amendments thereto, which are incorporated by reference as if set out in full herein.

d. No person, association, firm, partnership, or corporation shall operate a motor vehicle or combination of vehicles unless such motor vehicle is registered and licensed according to gross weight as prescribed in K.S.A.8-143 and amendments thereto, which are incorporated by reference as if set out in full herein.

e. No person, association, firm, partnership, or corporation shall operate a motor vehicle or combination of vehicles the gross weight of which exceeds the limitation as to such prescribed by K.S.A.8-1909 and amendments thereto, which are incorporated by reference as if set out in full herein.

f. It shall be unlawful to operate within this City a vehicle or combination of vehicles whose weight, with cargo, is in excess of the gross weight for which the vehicle, truck, or truck tractor propelling the same is licensed and registered except as provided by K.S.A.8-1911 and amendments thereto and K.S.A.8-143 and amendments thereto.

g. Whenever a police officer, upon weighing a vehicle or combination of vehicles, determines that the weight is unlawful, such officer may require the driver to stop the vehicle in a suitable place and remain standing until such portion of the load is removed as may be necessary to reduce the gross weight of such vehicle or combination of vehicles or remove or redistribute the gross weight on any axle or tandem axles to such limits as permitted in this Section. All material so unloaded shall be cared for by the owner, lessee, or operator of such vehicle at the risk of such owner, lessee or operator.

h. Every person who is convicted of a violation of this Section shall be fined according to the following schedule:

Weight --First 1000 lbs over limit - $50.00
--Per lb. over 1000 lbs. - $ .10
Height, Length, Width over limit:
$30.00 plus $1.00 per inch.

For a second violation of this Section within two years, such person shall, upon conviction, be fined 1 1/2 times the applicable amount based on the above fine schedule. For a third violation of this Section within two years, such person shall, upon conviction, be fined two times the applicable amount from the above fine schedule. For fourth and each succeeding violation of this subsection within two years, such person, upon conviction, shall be fined 2 1/2 times the applicable amount from the above fine schedule.

(History: Ord. TC-1260,TTT §7, 2012; TC-1260,C §1, 86; TC-1260 §211, 84) (State Law: K.S.A. 8-1901 through K.S.A. 8-1911)

12.04.196.1.7 Commercial Motor Vehicle Safety.

There is hereby incorporated by reference for the purpose of regulating commercial motor vehicle safety on the streets and highways of the City, Kansas Administrative Regulations 82-4-3, 82-4-3a, 82-4-3c, 82-4-3f, 82-4-3g, 82-4-3h, 82-4-3i, 82-4-3j, and 82-4-3k, as they may be amended, which adopt and amend certain safety regulations known as the *Federal Motor Carrier Safety Regulations*, 49 C.F.R. Parts 382, 390-393, and 395-397. One copy of said Kansas Administrative Regulations and said *Federal Motor Carrier Safety Regulations* shall be marked "Official Copy as required by Ordinance No. TC-1260,DDD" and filed with the City Clerk to be open to inspection and available to the public at all reasonable business hours. A copy of the ordinance codified herein shall be attached to the Regulations. The Municipal Court and all administrative departments of the City charged with the enforcement of the ordinance shall be supplied at the cost of the City such number of official copies of the Regulations as may be deemed expedient.

(History: Ord. TC-1260,FFFF §71, 2022; Ord. TC-1260,DDD §1, 2006)

12.04.196.1.8 Unlawful Acts by Interstate Motor Fuel Users; Penalties.

a. It shall be unlawful for any interstate motor fuel user, as defined by K.S.A. 79-34,108(c) and amendments thereto, to engage in operations within this City without having a valid license, motor fuel permit or temporary authorization issued by the director of taxation.

b. Violation of this ordinance is punishable as set forth in K.S.A. 8-2118, and amendments thereto.

(History: Ord. TC-1260,OOO §2, 2009) (State Law: K.S.A. 79-34,122)

12.04.196.2 Gross Weight Limits on Bridges.

a. The City Engineer may determine and declare upon the basis of an engineering investigation maximum gross weight limits for any roadway bridge within the City, and these limits shall be effective when posted upon appropriate signs adjacent to said bridges. No person, firm, association, partnership or corporation shall drive a vehicle in excess of the posted gross weight limits upon said bridges.

b. When the department of transportation shall determine upon the basis of an engineering investigation maximum gross weight limits on any bridge which is on a state highway connecting link, said maximum gross weight limits shall be effective at all times when appropriate signs giving notice thereof are erected adjacent to said bridges.

c. The maximum gross weight limit on any bridge not posted otherwise shall be the maximum gross weight limit as set forth in 12.04.196.1.

d. Any person, firm, association, partnership or corporation driving, operating or moving any vehicle, object, or contrivance upon the bridges in this City in violation of the weight restrictions as set forth herein shall be liable for all damages which said bridges or structures may sustain.

(History: Ord. TC-1260 §212, 84)

12.04.196.3 Unlawful Use of Identification Card.

. It shall be unlawful for any person, for any purpose, to:

1. Display, cause or permit to be displayed, or have in possession, any fictitious, fraudulently altered or fraudulently obtained identification card.
2. Lend any identification card to any other person or knowingly permit the use thereof by another.
3. Display or represent any identification card not issued to the person as being the person's card.
4. Permit any unlawful use of an identification card issued to the person.
5. Display or possess any photograph, photostat, duplicate, reproduction, or facsimile of an identification card unless authorized by law.
6. Photograph, photostat, duplicate or in any way reproduce any identification card or facsimile thereof in such a manner that it could be mistaken for a valid identification card or display or have in possession any such photograph, photostat, duplicate, reproduction or facsimile unless authorized by law.
7. Display or cause or permit to be displayed any canceled identification card.

. Violation of paragraphs (1) and (7) of subsection (a) is punishable by a fine of not more than $1,000.00 or by imprisonment for not more than six months or by both such fine and imprisonment. Violation of paragraphs (2), (3), (4), (5), or (6) or subsection (a) is punishable by a fine of not more than $2,500.00 or by imprisonment for not more than one year or by both such fine and imprisonment.

. It shall be unlawful for any person to:

1. Lend any identification card to or knowingly permit the use of any identification card by any person under 21 years old for use in the purchase of any alcoholic liquor.
2. Lend any identification card or knowingly permit the use of any identification card by any person under the legal age for consumption of cereal malt beverage for use in the purchase of cereal malt beverage.
3. Lend any identification card, driver's license, or other form of identification card to aid another person in obtaining an identification card or duplicate identification card.
4. Display or cause to be displayed or have in possession any fictitious or fraudulently altered identification card by any person under 21 years of age for use in the purchase of any alcoholic liquor or cereal malt beverage.

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1. Upon a first conviction of a violation of any provision of subsection (c) a person shall be sentenced to not less than 100 hours of public service and fined not less than $200.00 nor more than $500.00.
2. On a second or subsequent conviction of a violation of any provision of subsection (c), a person shall be punished by a fine of not more than $2,500.00 or by imprisonment for not more than one year or by both

such fine and imprisonment.

. The provisions of this section shall apply to any identification card, whether issued under the laws of this state or issued used under the laws of another state or jurisdiction.

(History: Ord. TC-1260,FFFF §72, 2022; Ord. TC-1260,B §4, 85) (State Law: K.S.A. 8-1327)

Article XX. Penalties Generally

12.04.197 Penalties.

a. It is unlawful for any person to violate any of the provisions of this chapter.

b. Every person convicted of a violation of any of the provisions of this chapter for which another penalty is not provided by this chapter or by the schedule of fines established by the municipal judge shall be punished for conviction thereof by a fine of not more than $500.00 or by imprisonment for not more than six months or by both such fine and imprisonment.

(History: Ord. TC-1260,FFFF §73, 2022; Ord. TC-1260 §213, 84) (State Law: K.S.A.8-2116; K.S.A. 12-4305; K.S.A. 21-6710)

12.04.198 Parties to a Violation.

Every person who commits, attempts to commit, conspires to commit, or aids or abets in the commission of, any act declared herein to be unlawful, whether individually or in connection with one or more other persons or as a principal, agent or accessory, shall be guilty of such offense, and every person who falsely, fraudulently, forcibly, or willfully induces, causes, coerces, requires, permits or directs another to violate any provision of this ordinance is likewise guilty of such offense.

(History: Ord. TC-1260 §214, 84) (State Law: K.S.A. 8-2101)

12.04.199 Offenses by Persons Owning or Controlling Vehicles.

It is unlawful for the owner, or any other person, employing or otherwise directing the driver of any vehicle, to require or knowingly to permit the operation of such vehicle upon a highway in any manner contrary to this ordinance.

(History: Ord. TC-1260 §215, 84) (State Law: KSA 8-2101)

12.04.199.1 Citation Deemed Lawful Complaint.

In the event the form of citation provided for in O.P.M.C. Sections 2.33.355 or 2.33.370 and any amendments thereto includes information required by law and is signed by the officer preparing the same, then such citation when filed with the court having jurisdiction, shall be deemed to be a lawful complaint for the purpose of prosecution under this ordinance.

(History: Ord. TC-1260,NNN §1, 2008; TC-1260 §216, 84)

Article XXI. Separability

12.04.200 Separability

If any part or parts of this ordinance shall be held to be invalid, such invalidity shall not affect the validity of the remaining parts of this ordinance. The Governing Body hereby declares that it would have passed the remaining parts of this ordinance if it had known that such part or parts thereof would be declared invalid.

(History: Ord. TC-1260 §217, 84)

12.04.200.1 Savings Clause

Neither the adoption of this ordinance nor the repeal or amendment of any ordinance or part or portion thereof shall in any manner affect the prosecution for violations of ordinances, which violations were committed prior to the effective date hereof, nor be construed as a waiver of any license, fee or penalty at said effective date due and unpaid under such ordinances, nor be construed as affecting any of the provisions of such ordinances relating to the collection of any such license, fee or penalty, or the penal provisions applicable to any violation thereof, nor to affect

the validity of any bond or cash deposit in lieu thereof required to be posted, filed or deposited pursuant to any ordinance, and all rights and obligations thereunder appertaining shall continue in full force and effect.
(History: Ord. TC-1260 §218, 84)

12.05 SPECIAL RULES RELATING TO MICROMOBILITY DEVICES, SHARED SMALL VEHICLES AND SHARED SMALL VEHICLE COMPANIES.

12.05.001 Definitions.

Digital Network shall mean any online enabled application, software, website or system offered or utilized by micromobility network company that enables the use or operation or micromobility devices.

Micromobility Device shall mean electric-assisted bicycles and electric-assisted scooters.

Shared Small Vehicle shall mean bicycle(s) and/or mobility devices which are part of a fleet of such bicycles and/or micromobility devices that use a digital network to connect such bicycle(s) and/or micromobility devices to riders and operators.

Shared Small Vehicle Company shall mean a corporation, partnership, sole proprietorship, person, or other entity operating in Kansas that uses a digital network to connect micromobility devices and/or bicycle riders or operators to micromobility devices and/or bicycles for transportation.

History: Ord. TC-3348, §4 2021.

12.05.002 Prohibited Parking of Shared Small Vehicles.

A. It is unlawful for any person to park or leave a shared small vehicle on public property where such shared small vehicle blocks pedestrian travel or presents a traffic hazard.

B. It is unlawful for any person to park or leave a shared small vehicle in the area adjacent to, within, or in any manner that obstructs the following areas:

   1. Loading zones;
   2. Disabled parking zones;
   3. Curb ramps;
   4. Driveways and driveway approaches;
   5. Motor vehicle driving lanes or bicycle lanes;
   6. Benches; and
   7. Entrances to private property or driveways.

C. It is unlawful for any person to park or leave a shared small vehicle in any manner which impedes or interferes with the access to or from any building.

History: Ord. TC-3348, §4 2021.

12.05.003 Operation of Shared Small Vehicle Company - Agreement Required.

A. It is unlawful for any shared small vehicle company, or person on behalf of the company, to deploy, maintain, or allow to be operated, any shared small vehicles owned or operated by the company, on any city streets, sidewalks, right-of-way or City property within the City of Overland Park without the valid written agreement approved by the City.

B. Violation of this Section shall be punished by a fine of not more than five hundred dollars for each offense, with each day the violation continues constituting a separate offense. In addition to any penalties associated with violating this chapter, the shared small vehicle company and/or any person violating this chapter, shall

be assessed the costs associated with removal of the company's shared small vehicles from City streets, sidewalks, rights-of-way and City property.

History: Ord. TC-3348, §4 2021.

12.08 VEHICLE OPERATOR'S LICENSE - MINORS

Contents:

12.08.010 Persons Under Seventeen not to Operate Motor Vehicle Without Restricted License - Necessity.
12.08.020 Intent of Chapter.

12.08.010 Persons Under Seventeen not to Operate Motor Vehicle Without Restricted License - Necessity.

In compliance with K.S.A. 8-237, it is unlawful for any person under the age of 17 years of age to operate a motor vehicle without a restricted license issued by the Motor Vehicle Department and only upon a showing of necessity.

(History: Ord. TC-1260,FFFF §74, 2022; Ord. RL-599 §1,70)

12.08.020 Intent of Chapter.

It is the intent of this chapter that the Motor Vehicle Department be requested not to issue an operator's license to any minor under the age of sixteen years residing in the City excepting upon the showing of necessity.

(History: Ord. RL-599 §2,70)

12.12 TRUCK ROUTES

Contents:

12.12.010 Use by Nonpassenger Vehicles Required.
12.12.020 Exceptions to §12.12.010.
12.12.030 Bridge and Culvert Load Limit Signs to Have Precedence.
12.12.040 Truck Routes Designated.
12.12.050 Posting of Signs.
12.12.060 Construction Areas Excepted.
12.12.070 Violation - Penalty.

12.12.010 Use by Nonpassenger Vehicles Required.

It is unlawful for any truck, as defined in Section 12.04.001, to enter upon or to be operated upon any street within the City except those streets designated as and identified as truck routes.

(History: Ord. TR-2858 §1, 2010; TR-1384 §1, 86; TR-939 §1, 77; TR-69A §1, 69)

12.12.020 Exceptions to §12.12.010.

The provisions of Section 12.12.010 shall not be applicable to those vehicles engaged in repairing or construction of streets under the authority of the City or vehicles making or returning from the delivery of services or goods to any residence or business within the City, provided the vehicle uses the most direct route A.) between the truck route designated in Section 12.12.040 and the location receiving the goods or services or B.) between locations receiving the goods or services if using a truck route between the locations is impractical.

(History: Ord. TR-3485 §1, TR-2858 §2, 2010; TR-939 §2, 77; TR-69A §2, 69)

12.12.030 Bridge and Culvert Load Limit Signs to Have Precedence.

On streets and thoroughfares designated as truck routes, bridge and culvert load limit signs and regulations shall be complied with and take precedence over truck route designations.

(History: Ord. TR-939 §_, 77; TR-69A §3, 69)

12.12.040 Truck Routes Designated.

The following streets are hereby designated as truck routes within the limits and jurisdiction of the City:

A. Merriam Drive - east-west through City

B. Johnson Drive - east-west through City

C. Shawnee Mission Parkway - east-west through City

D. 75th Street - east-west through City

E. 80th Street - from Santa Fe Drive to Metcalf Avenue

F. Santa Fe Drive - from 80th Street to 87th Street

G. 87th Street - from the west City limit to Santa Fe Drive

H. 95th Street – east-west through City

I. 103rd Street - from the east City limit to Quivira Road

J. College Boulevard - east-west through City

K. 119th Street - east-west through City

L. 127th Street - from Pflumm Road to Antioch Road and from Metcalf Avenue to Nall Avenue

M. 135th Street - east-west through City

N. 143rd Street – east-west through City

O. 151st Street – from the west City limit to Nall Avenue

P. 159th Street - from Pflumm Road to Mission Road

Q. 167th Street - Pflumm to Switzer

R. 175th Street – from Lackman Road to 179th Street

S. 179th Street – from 175th Street to Metcalf

T. Pflumm Road - from College Boulevard to 143rd Street

U. Quivira Road - from the north City limit to 143rd Street and from 151st Street to 179th Street

V. Switzer Road - from 119th Street to 167th Street

W. Antioch Road - from the north City limit to 167th Street

X. Blue Valley Parkway - from 119th Street to U.S. 69 Highway

Y. Metcalf Avenue - north-south through City

Z. Nall Avenue - from the north City limit to 159th Street

AA. Roe Avenue - from 103rd Street to Tomahawk Creek Bridge

(History: Ord. TR 3451 §1, 2024; Ord. TR-3354 §1, 2022; Ord. TR-3311 §1, 2021; Ord. TR-3264 §1, 2019; Ord. TR-3196 §1, 2018; Ord. TR-3068 §1, 2015; TR-3048 §1, 2014; TR-2985 §1, 2012; TR-2942 §1, 2011; TR-2904 §1, 2011; TR-2858 §3, 2010; TR-2648 §1, 2007; TR-2442 §1, 2003; TR-2107 §1, 98; TR-1996 §1, 96; TR-1978 §1, 96; TR-1864 §1, 94; TR-1732 §1, 92; TR-1595 §1, 89; TR1540 §1, 88; TR-1480 §1, 87; TR-1384 §2, 86; TR-1367 §1, 86; TR-1121 §1, 81;TR-939 §4, 77)

12.12.050 Posting of Signs.

The streets and thoroughfares set forth in Section 12.12.040 should be properly identified and posted as truck routes within the limits and jurisdiction of the City.

(History: Ord. TR-2858 §4, 2010; TR-1540 §2, 88; TR-1367 §2, 86; TR-939 §_, 77; TR-69A §4(A), 69)

12.12.060 Construction Areas Excepted.

All vehicles to which Section 12.12.040 is applicable shall be permitted to enter upon streets in areas under construction or where construction and building are taking place (other than those streets specifically set forth in

Section 12.12.040) for the purpose of delivering and receiving construction goods or materials, provided the vehicle takes the most direct route to and from the facilities as designated in Section 12.12.040 when entering or leaving the construction area or area where building is taking place.
(History: Ord. TR-2858 §5, 2010; TR-939 §6, 77; TR-69A)

12.12.070 Violation - Penalty.

Any person, firm or corporation who violated the provisions of this Chapter is guilty of a public offense and upon conviction thereof shall be fined not less than $50 nor more than $200 for each offense.
(History: Ord. TR-2858 §6, 2010; TR-939 §7, 77; amended at codification; TR-69A §5, 69)

12.16 PARADES

Contents:

12.16.010 Definitions.
12.16.020 Permit Required; Unlawful Acts; Exceptions.
12.16.030 Parade Permit Application Procedure.
12.16.035 Fees.
12.16.040 Standards for Permit Issuance.
12.16.060 Appeal Procedure.
12.16.080 Notice to City and Other Officials.
12.16.090 Contents of Permit.
12.16.100 Duties of Permittee.
12.16.110 Public Conduct during Parades.
12.16.120 Revocation of Permit.
12.16.130 Violation - Penalties.
12.16.140 Severability.

12.16.010 Definitions.

12.16.020 Permit Required; Unlawful Acts; Exceptions.

A. It shall be unlawful for any person to stage, present or conduct any parade without first having obtained a permit as herein provided.

B. It shall be unlawful for any person to participate in a parade for which the person knows a permit has not been granted.

C. It shall be unlawful for any person in charge of, or responsible for the conduct of, a parade to knowingly fail to comply with any condition of the permit.

D. This chapter shall not apply to:

1. Funeral processions,

2. A governmental agency acting within the scope of its functions.

(History: Ord. PAR-2077 §2, 97; PAR-408 §2, 66)

12.16.030 Parade Permit Application Procedure.

A person seeking issuance of a parade permit shall file an application with the City Clerk on forms provided by such officer.

A. **Application Filing Period**. An application for a parade permit shall be filed with the City Clerk not less than seven days before the date on which it is proposed to conduct the parade.

B. **Late Applications**. The Chief of Police shall consider applications that are received after the seven day filing period. The Chief of Police shall approve a late application if the Chief of Police finds that there is adequate time to review the application based on the nature or scope of the parade, there are City personnel and

equipment available to support the parade activity, and the standards for permit issuance set forth in Section 12.16.040 are met. The speech content of the parade shall not be a consideration in whether or not approval of a late application is granted.

C. **Approval/Disapproval of Application**. The Chief of Police shall be responsible for the processing and review of the application. The Chief of Police shall act upon the application for a parade permit within four business days after the filing thereof. The applicant will be notified by the City Clerk if the application has been approved or disapproved. If, due to the nature or scope of the parade, the application cannot be reviewed within four business days, the Chief of Police, shall notify the applicant within four business days after the filing of the application that additional time is required. The length of any additional time necessary to consider the application shall be no greater than is reasonably necessary, considering the nature and scope of the parade. However, in no event shall the Chief of Police approve or disapprove an application less than forty-eight hours prior to the parade. If the Chief of Police disapproves the application, the City Clerk shall mail to the applicant, within five business days after the date on which the application was filed, a written notice of disapproval, which shall set forth the reasons for disapproval of the permit and the applicant's right of appeal. The Chief of Police is empowered to consider alternative dates, times and locations presented by the applicant provided these alternatives meet the standards for issuance set forth in Section 12.16.040. No additional processing fee will be charged for consideration of alternative dates, times and locations, provided the alternatives are presented by the applicant contemporaneously with the notice of disapproval.

D. **Application Contents**. The application for a parade permit shall set forth the following information:

1. The name, address and telephone number of the person or entity seeking to conduct such parade;
2. If the parade is proposed to be conducted for, on behalf of, or by an organization, the name, address and telephone number of the headquarters of the organization, and of the authorized and responsible heads of such organization;
3. The name, address and telephone number of the person who will be responsible for the conduct of the parade;
4. The date when the parade is to be conducted;
5. The route to be traveled, the starting point and the termination point;
6. The approximate number of persons who, and animals and vehicles which, will constitute such parade; the type of animals, and description of the vehicles;
7. The time when such parade will start and terminate;
8. A statement as to whether the parade will occupy all or only a portion of the width of the streets proposed to be traversed;
9. The location by streets of any assembly areas for such parade;
10. The time at which units of the parade will begin to assemble at any such assembly area or areas;
11. The interval of space to be maintained between units of such parade;
12. If the parade is designed to be held by, and on behalf of or for, any person other than the applicant, the applicant for such permit shall file with the City Clerk a communication in writing from the person proposing to hold the parade, authorizing the applicant to apply for the permit on his or her behalf;
13. Any additional information which the Chief of Police shall find reasonably necessary under the standards for issuance as provided in Section 12.16.040; and
14. A description of any sound amplification equipment to be used in connection with the parade and how the equipment is intended to be utilized, to include amplification levels.

(History: Ord. TC-1260,FFFF §75, 2022; Ord. PAR-2302 §1, 2001; PAR-2128 §1, 98; PAR-2077 §3, 97; PAR-1160 §1, 82; PAR-1102 §1)

12.16.035 Fees.

A. **Processing Fee**. At the time of filing of an application for a parade permit, there shall be paid a processing fee of $50.00 for the administrative costs associated with processing the application.

B. **City Personnel and Equipment Fee**. Except for City Sponsored Parades, Government Sponsored Parades and Parades where the City Personnel and Equipment Fee is *de minimus*, on and after the effective date of this ordinance, in addition to the processing fee, applicants for permits for parades shall pay upon issuance of the permit a City Personnel and Equipment Fee. The City personnel and equipment costs subject to recovery shall be established by Governing Body resolution, and adjusted annually thereafter by the City Manager or his or her designee. The determination of the number of City personnel and type of equipment required will be determined by the City Manager, or his or her designee, and will be based solely upon the size, location, duration, time and date of the event, the number of streets and intersections blocked and the amount of traffic to be re-routed, as this information impacts normal traffic on the public streets. The speech content of the parade activity shall not be a consideration in determining the City Personnel Fees.

C. **Fee Reconsideration**. If any person or organization disagrees with the determination of the amount of the City Personnel and Equipment Fee, that person or organization may request reconsideration in accordance with the appeal procedures set forth in Section 12.16.060. This reconsideration procedure shall be exclusive means for fee reconsideration, and no elected or appointed official may otherwise waive or fail to assess processing fees and personnel and equipment fees.

D. **Fee Refunds**. If the permittee is unable to hold or conduct the approved parade due to inclement weather or some other cause not within the permittee's control, the permittee may submit a written request for the refund of City Personnel and Equipment Fees to the City Clerk within ten days after the date on which the parade was to be held. The City Clerk shall reduce the City Personnel and Equipment Fee to ensure that the permittee is charged only for the actual costs of City personnel and equipment provided in support of the parade activity. The City Clerk shall refund any excess City Personnel and Equipment Fees paid, except for the $50 processing fee.

(History: Ord. PAR-2842 §2, 2010; PAR-2302 §2, 2001; PAR-2077 §4, 97)

12.16.040 Standards for Permit Issuance.

The Chief of Police or his or her designee shall approve issuance of a permit as provided for under this chapter when, from a consideration of the application and from such other information as may otherwise be obtained, he or she finds that:

A. The conduct of the parade will not substantially interrupt the safe and orderly movement of other traffic contiguous to its route;

B. The conduct of the parade will not require the diversion of so great a number of police officers of the City to properly police the parade line of movement and the areas contiguous thereto as to prevent normal police protection to the City.

C. The conduct of such parade will not require the diversion of so great a number of ambulances as to prevent normal ambulance service to portions of the City other than that to be occupied by the proposed line of march and areas contiguous thereto;

D. The concentration of persons, animals and vehicles at assembly points of the parade will not interfere with adequate fire and police protection of, or ambulance service to, areas contiguous to such assembly areas;

E. The conduct of such parade will not interfere with the movement of firefighting equipment en route to a fire;

F. The conduct of the parade is not reasonably likely to cause injury to persons or property;

G. The parade is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays en route;

H. The parade is not to be held for the sole purpose of advertising any product, goods, or event, and is not designed to be held purely for private profit;

I. The course and/or time of the proposed parade does not interfere with the parade of any other person or organization who currently holds or has applied for a parade permit.

Provided the speech content of the parade shall not be a consideration in reviewing the standards for permit issuance.

(History: Ord. PAR-2077 §5, 97; PAR-408 §4, 66)

12.16.060 Appeal Procedure.

Any person aggrieved shall have the right to appeal the denial of a parade permit or the revocation of a parade permit by filing an immediate request for a hearing which shall be conducted by an Overland Park Municipal Court judge for purposes of this chapter. The hearing on appeal shall be scheduled and held by the municipal court no later than three business days after the notice of appeal is filed with the clerk of the court. The time of the hearing shall be set by the clerk of the municipal court. The sole issue for determination by the court shall be whether the decision of the Chief of Police, or his or her designee, was within the scope of his or her authority, supported by substantial evidence and not arbitrary and capricious. The Court shall make specific findings of fact and conclusions of law in each case. Pursuant to its role as administrative judge, the Court is empowered to hold hearings, subpoena witnesses, take the testimony of any person under oath and in connection therewith, to require the production of any evidence relating to any matter being heard. In the case of the refusal of any person to comply with any subpoena issued hereunder or to testify in any matter regarding which he or she may be lawfully questioned, the Court may order such person to comply with such subpoena and testify; and failure to obey the Court's order may be punished by the Court as contempt. The filing of a written appeal under this subsection shall not stay any fees assessed, denial of a parade permit or revocation of a parade permit by the Chief of Police or his or her designee.

(History: Ord. PAR-2302 §3, 2001; PAR-2077 §7, 97; PAR-408 §6, 66)

12.16.080 Notice to City and Other Officials.

Immediately upon the issuance of a parade permit, the City Clerk shall send a copy thereof to the following:

A. The Chief of Police

B. The Mayor

C. The City Manager

D. The City Attorney

E. The Director of Public Works

F. The Fire Chief

(History: Ord. PAR-2077 §9, 97; PAR-408 §8, 66)

12.16.090 Contents of Permit.

Each parade permit shall state the following information:

A. Starting and approximate ending time;

B. Date and location;

C. Minimum speed;

D. Maximum speed;

E. Maximum interval of space to be maintained between the units of the parade;

F. The portions of the streets to be traversed that may be occupied by the parade;

G. The maximum length of the parade in miles or fractions thereof;

H. Such other information as the Chief of Police, or his or her designee, shall find necessary to the enforcement of this chapter.

(History: Ord. PAR-2077 §10, 97; PAR-408 §9, 66)

12.16.100 Duties of Permittee.

A permittee under this chapter shall comply with all permit directions and conditions and with all applicable laws and ordinances.

Possession of Permit. The parade chairman or other person heading or leading such activity shall carry the parade permit upon his person during the conduct of the parade.

(History: Ord. PAR-408 §10, 66)

12.16.110 Public Conduct during Parades.

A. **Interference**. No person shall unreasonably hamper, obstruct or impede, or interfere with any parade or parade assembly or with any person, vehicle or animal participating or used in a parade.

B. **Driving Through Parades**. No driver of a vehicle, street car or trackless trolley shall drive between the vehicles or persons comprising a parade when such vehicles or persons are in motion and are conspicuously designated as a parade.

C. **Parking on Parade Route.** The Chief of Police shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a highway or part thereof constituting a part of the route of a parade. The Chief of Police shall post signs to such effect, and it is unlawful for any person to park or leave unattended any vehicle in violation thereof. No person shall be liable for parking on a street unposted in violation of this chapter.

(History: Ord. PAR-408 §11, 66)

12.16.120 Revocation of Permit.

If, after issuance of the parade permit and before the date of the parade, there is a violation of any term, condition, restriction or limitation of such permit, the Chief of Police, or his or her designee, shall conduct a review or investigation to determine whether the violation can be remedied prior to the date of the parade. If the violation can be remedied, the parade will proceed as set forth in the permit. If the violation cannot be remedied prior to the date of the parade, the parade permit will be revoked. If the violation occurs during the conduct of the parade, the Chief of Police, or his or her designee, may revoke the permit and immediately terminate all parade activity if he or she determines that the public safety is jeopardized by the violation of parade permit standards. The Chief of Police, or his or her designee, also has the authority to revoke the parade permit and terminate the parade activity when a public emergency arises where police resources required for that emergency are so great that deployment of police services for the parade would have an immediate and adverse effect upon the welfare and safety of persons or property. Appeal of the permit revocation may be taken in accordance with the appeal procedures set forth in Section 12.16.060.

(History: Ord. PAR-2077 §11, 97; PAR-408 §12, 66)

12.16.130 Violation - Penalties.

Any person violating any of the provisions of this chapter is guilty of a public offense and upon conviction thereof shall be punished as provided in 1.12.010.

(History: Amended during codification in accordance with K.S.A.12-3015; Ord. PAR-408 §13, 66)

12.16.140 Severability.

If any section, subsection, sentence, clause or phrase of this Ordinance is for any reason held invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance.

(History: Ord. POC-2077 §12, 97)

12.20 TOWING REGULATIONS

Contents:

12.20.001 Authority to Tow or Impound.
12.20.001.5 Notice to Owner of Vehicle to be Towed or Impounded in Non-emergency Situation.

12.20.002 Notice to Owner of Towed and Impounded Vehicle.
12.20.003 Recovery Procedures.
12.20.004 Hearing Procedure.
12.20.005 Sale of Impounded Vehicles by City.
12.20.006 Wrecker or Tow Service Foreclosure of Lien.
12.20.010 Tow Service Police Rotation.
12.20.020 Requirements for Approval.
12.20.025 Rotation Tow List.
12.20.030 Fees and Charges.
12.20.040 Medicine or Medical Supplies in Towed Vehicle.
12.20.050 Enforcement Authority.
12.20.060 Suspension or Revocation of Approval and Authorization; Grounds.
12.20.070 Appeal of Suspension or Revocation.

12.20.001 Authority to Tow or Impound.

The police department, and all members thereof, are authorized to remove or tow away, or have removed and towed away by a commercial towing service to an impound lot or other safe place designated by the City, all motor vehicles found under the hereinafter enumerated circumstances:

A. When any motor vehicle upon a street is so disabled as to constitute an obstruction to traffic and the person or persons in charge of the vehicle cannot safely operate the motor vehicle or are unable to provide for its custody or removal to a lawfully secure location; or

B. When any motor vehicle is parked illegally in such a manner as to constitute a hazard or obstruction to the safe movement of traffic; or

C. When the operator of any motor vehicle is arrested and taken into custody by the police department and such vehicle would thereby be left unattended and create a hazard or obstruction to the safe movement of traffic; or

D. When any motor vehicle is abandoned or left unattended on a highway, public road or City-owned property for a period of time in excess of 48 consecutive hours; or

E. When any vehicle is found being driven on the streets and is not in proper or safe condition to be driven and cannot be removed safely to a lawfully secured location by the owner or operator; or

F. When any motor vehicle determined to be stolen or taken without the consent of its owner is found upon the public street; or

G. When any motor vehicle is subject to seizure as evidence in a criminal prosecution; or

H. When any motor vehicle is subject to seizure or forfeiture under the laws of this state or federal law; or

I. When any motor vehicle is parked in violation of notice indicating that the area used as the Farmer's Market is unavailable for parking during the hours posted and vehicles parked in that area during posted hours will be towed at the owner or operator's expense. The notice must be posted at the two main points of entry to the Farmer's Market and must meet the following additional requirements:

1. The notice must clearly indicate, in not less than two inch high, light reflective letters on a contrasting background, that vehicles will be towed at the owner's expense.
2. The words "tow away zone" must be included on the sign in not less than four inch high letters.
3. The notice must contain the following language:
"If you believe your vehicle may have been towed from this property, please contact the Overland Park Police Department."
4. The sign must be permanently installed, with the bottom of the sign not less than seven feet above ground level and must be continuously maintained on the property for not less than 24 hours prior to the towing or removal of vehicles.

(History: Ord. TC-1260,FFFF §76, 2022; Ord. TS-2457 §1, 2004; TS-1981 §1, 96; TS-1674 §1, 91; TS-1433 §1, 87)
(State Law: K.S.A. 8-1102)

12.20.001.5 Notice to Owner of Vehicle to be Towed or Impounded in Non-emergency Situation.

Vehicles which are subject to being towed and impounded under conditions that do not constitute an immediate obstruction to the normal and safe movement of traffic and are determined to be abandoned shall not be towed or impounded until the motor vehicle has placed on its windshield or in another prominent location a sticker or placard indicating the vehicle is in violation of O.P.M.C. 12.04.093.1 and shall be removed by the Overland Park Police Department after 48 hours from the time the sticker or placard was attached to the vehicle. The sticker or placard shall include such other information as the Chief of Police determines is necessary.

Subsequent to the towing of an abandoned vehicle the police department shall comply with the notice requirements of O.P.M.C. 12.20.002.

(History: Ord. TS-1674 §2,91)

12.20.002 Notice to Owner of Towed and Impounded Vehicle.

Whenever any motor vehicle is towed and impounded pursuant to the provision of 12.20.001 or 12.20.001.5, notice, if possible, shall be given to the owner or person entitled to custody thereof that such vehicle has been towed and impounded, the reasons for the tow, how the vehicle may be recovered to include the right of hearing set out in 12.20.004, and that unless the owner takes action within 30 days from the date of receipt of the notice, proceedings may be instituted to sell the motor vehicle at auction to cover any costs accrued as a result of the towing and impounding. Said notice shall be by written notice provided to the owner or person entitled to custody of the motor vehicle at the time the motor vehicle is towed, provided the officer providing such notice has obtained written acknowledgment of receipt of the notice. In addition, said notice may be made by certified mail with return receipt requested. Notice by certified mail shall be mailed to the owner of vehicles displaying Kansas registration plates no later than close of business of the fourth business day after the towing. The notice shall be mailed to the owner of vehicles not displaying Kansas registration plates no later than close of business of the fourth business day after ownership is determined. The police department shall use reasonable diligence in determining the title or registered owner of the vehicle.

(History: Ord. TS-1981 §2, 96; TS-1674 §3, 91; TS-1493 §1, 88; TS-1433 §2, 87)

12.20.003 Recovery Procedures.

A. All motor vehicles towed and impounded pursuant to the provisions of this chapter shall be surrendered to the owner or person entitled to custody of the vehicle subject to the provisions of subparagraph b herein, upon presentation of the following to the commercial tow service where the vehicle is impounded:
    1. Proof of ownership of the vehicle by lawful title or other proof of lawful entitlement to the vehicle;
    2. Proof of liability insurance on the vehicle as required by the laws of the state of Kansas;
    3. Proof of current registration of the vehicle as required by the laws of the state of Kansas; and
B. Payment of all storage charges and towing fees incurred in the towing and impounding of the vehicle must be made prior to release of the vehicle unless otherwise relieved of that requirement by application of the hearing provisions set forth in O.P.M.C. 12.20.004.

Should a person seeking release of a motor vehicle impounded under the provisions of this chapter not present proof of current registration and proof of insurance, the vehicle will not be released to be driven away from the impound lot, but the vehicle may be released to be towed from the tow lot if proof of ownership is shown and all storage and towing charges are paid.

(History: Ord. TS-1851 §1, 94; TS-1804 §1, 93; TS-1674 §4, 91; TS-1433 §3, 87)

12.20.004 Hearing Procedure.

A. Owners or persons entitled to the lawful custody of impounded motor vehicles who wish to contest the validity of the motor vehicle tow may request a hearing for such purpose by notifying the Overland Park police department of the request in writing.

B. A hearing for the purpose of determining the validity of the tow shall be held by the Municipal Court within three working days after such hearing is requested. The time of the hearing shall be set by the Clerk of the Municipal Court.

C. Pending such hearing, the owner or person lawfully entitled to custody of any impounded vehicle may retrieve the impounded vehicle upon posting bond with the Clerk of the Court or the police department in the amount of the towing charge and storage fees. Upon showing to the commercial tow service proof of the posting of the bond, the motor vehicle shall be released immediately. If a bond is not posted, the vehicle shall remain in storage until the requested hearing is held.

D. If the Municipal Court Judge determines the vehicle was lawfully towed pursuant to the provisions of 12.20.001 herein, then all charges shall be paid by the owner or person lawfully entitled to custody of the vehicle. Such charges may be paid for partly or in whole by the bond, if posted, and any surplus bond money shall be returned.

E. If the Municipal Court Judge determines the vehicle was not towed pursuant to the provisions of 12.20.001 herein, the Court shall order the immediate release of the vehicle to its lawful owner without costs, and any bond posted shall be returned.

F. Should any owner or person lawfully entitled to custody of an impounded vehicle post bond but fail to appear after being notified of the time for the hearing, such bond shall be forfeited.

(History: Ord. TS-1433 §4, 87)

12.20.005 Sale of Impounded Vehicles by City.

Any motor vehicle towed and impounded by the City pursuant to the provisions of this chapter for a period of 30 days or more may be disposed of by the City by sale at public auction in the following manner:

1. If such motor vehicle has displayed thereon a registration plate issued by the state of Kansas and has been registered with the state of Kansas, the City shall request verification from the division of vehicles of the last registered owner and lienholders, if any. Such verification request shall be submitted to the division of vehicles not more than 30 days after the City took possession of the vehicle. The City shall mail a notice by certified mail, return receipt requested, to the registered owner thereof, addressed to the address as shown on the certificate of registration, and to the lienholder of record, if any, in the county in which the title shows the owner resides, if registered in this state. The notice shall state that if the owner or lienholder does not claim such motor vehicle and pay the removal and storage costs incurred by the City on it within 15 days from the date of the mailing of the notice, that it will be sold at public auction to the highest bidder for cash. The notice shall be mailed within 10 days after receipt of verification of the last owner and lienholders, if any, as provided in this subsection. The notice shall also include the right of hearing set forth in 12.20.004.
2. After 15 days from the date of mailing notice, the City shall publish a notice once a week for two consecutive weeks in a newspaper of general circulation in Johnson County, Kansas, which notice shall describe the motor vehicle by name of maker, model, serial number, and owner, if known, and stating that it has been impounded by the City of Overland Park and that it will be sold at public auction to the highest bidder for cash if the owner thereof does not claim it within 10 days of the date of the second publication of the notice and pay the removal and storage charges, and publication costs incurred by the City. The notice shall also include the right of hearing set forth in 12.20.004.
3. If the vehicle, when towed, did not display a registration plate issued by the state of Kansas and is not registered with the state of Kansas and the owner remains unknown after diligent efforts have been made by the commercial tow service to determine ownership, the City after 30 days from the date of impoundment shall request verification from the division of vehicles of the last registered owner and lienholders, if any. Such verification request shall be submitted to the division of vehicles no more than 30 days after the City took possession of the vehicle. The City shall mail a notice by certified mail to the registered owner thereof, addressed to the address as shown on the certificate of registration, and to the lienholder, if any, of record in the county in which the title shows the owner resides, if registered in this state. The notice shall state that if the owner or lienholder does not claim such motor vehicle and pay the removal and storage charges incurred by City on it within 15 days from the date of mailing of the notice, it will be sold at public auction to the

highest bidder for cash. The notice shall be mailed within 10 days after receipt of verification of the last owner and lienholders, if any, as provided in this subsection. After 15 days from the date of mailing notice, the City shall publish a notice in a newspaper of general circulation in Johnson County, Kansas, which notice shall describe the motor vehicle by name of maker, model, color and serial number and shall state that it has been impounded by the City and will be sold at public auction to the highest bidder for cash, if the owner thereof does not claim it within 10 days of the second publication of the notice and pay the removal and storage charges incurred by the City. The notice shall also include the right of hearing set forth in 12.20.004.

4. When the City has complied with this section and the owner thereof does not claim it within the time stated in the notice and pay the removal and storage charges and publication costs incurred by the City on such motor vehicle, the City may sell the motor vehicle at public auction to the highest bidder for cash. All monies derived from the sale of motor vehicles pursuant to this section, after payment of the expenses of the impoundment and sale, shall be paid into the fund of the City which is used by it for the construction and maintenance of highways.
5. After any sale pursuant to this section, the purchaser may file proof thereof with the division of vehicles, and the division shall issue a certificate of title to the purchaser of the motor vehicle.

(History: Ord. TC-1260,FFFF §77, 2022; Ord. TC-1260,BBB §7, 2004; TS-1804 §2, 93; TS-1674 §5, 91; TS-1433 §5, 87) (State Law: K.S.A. 8-1102 and K.S.A. 8-1104)

12.20.006 Wrecker or Tow Service Foreclosure of Lien.

A. Any person or commercial towing service that tows and impounds a motor vehicle pursuant to this Chapter, 12.21 or any other legal request for towing and impounding by a law enforcement officer of the City shall have a possessory lien as provided for in K.S.A. 8-1103 et seq., and amendments thereto. Wrecker or tow service operators shall comply with the notice and disposition procedures for foreclosure of the lien as set forth in K.S.A. 8-1103 through 8-1108, and amendments thereto.

B. Prior to any sale by a person or commercial tow service of a vehicle towed or impounded at the request of the Overland Park Police Department, the person or tow service must notify the Overland Park Police Department in writing that they intend to foreclose a lien they have perfected on said vehicle and they intend to sell the vehicle at public auction pursuant to the provisions of K.S.A. 8-1103 through K.S.A. 8-1108, and amendments thereto. No person will sell such vehicle until they have complied with all notices required by law.

C. After any sale foreclosing a lien created by K.S.A. 8-1103 et seq., and amendments thereto, the person or tow service conducting the sale shall deliver a copy of the bill of sale, signed by the purchaser, indicating the date of the sale, vehicle description and vehicle identification number and amount the vehicle was purchased for and an itemized list of tow and storage charges accrued for the vehicle. This information must be submitted to the Overland Park Police Department within seven days of the date of the sale. All monies derived from the sale of motor vehicles pursuant to this paragraph, which were towed and impounded at the request of the Overland Park Police Department, less any amount of the lien for towing and storage and expenses of sale and shall be paid to the lienholder of record on the vehicle and if there is no lienholder of record, shall be paid to the owner of record. If no lienholder or owner can be identified, the person or tow service shall pay the funds to the City Clerk within 10 days, and such funds will be equitably divided among the companies on the rotation tow list at the end of each calendar year. Persons or tow services shall proportionately share in such proceeds based on how many months out of the year they were listed on the rotation tow list.

(History: Ord. TS-2819 §1, 2009; TS-1804 §3, 93; TS-1794 §1, 94; TS-1674 §6, 91; TS-1452 §1, 87; TS-1433 §6, 87)

12.20.010 Tow Service Police Rotation.

Any person, firm, partnership or corporation desiring to perform wrecker or towing service for the Overland Park Police Department shall make written application to the Chief of Police providing proof that the applicant meets the requirements of O.P.M.C. 12.20.020. Any such wrecker or towing service which meets the requirements of 12.20.020 and all other provisions of this chapter and applicable towing resolutions shall be eligible to be placed on such list and be called on such rotation basis.

(History: Ord. TS-1981 §3, 96; TS-1433 §7, 87; TS- 980 §1, 78)

12.20.020 Requirements for Approval.

The following requirements and criteria shall be met by any wrecker or towing service seeking approval to be authorized and listed as eligible to respond to requests for towing service by the Overland Park Police Department.

A. Exclusive of legal holidays, each wrecker or towing service shall be open and have a representative actually on the premises of the location or area where towed vehicles are stored or kept 9½ hours per day, from 8 a.m. to 5:30 p.m. Monday through Friday. In addition thereto, each wrecker or towing service shall conspicuously post a sign at the front of their business stating the business name and a telephone number where information can be obtained about any vehicle towed or stored by the business. Payment must be accepted on site in Overland Park and rates shall be posted. Credit Card, debit card, and cash must be accepted.

B. Towing and wrecker services and drivers must be available on a 24-hour, seven-days-a-week basis.

C. Each towing and wrecker service must have properly zoned adequate storage facilities within the City of Overland Park. Excluding heavy tows, all automobiles towed pursuant to this chapter shall be stored within the City. Heavy tows must be stored within Johnson County, Kansas. The outside storage areas shall be fenced, with at least six foot high chain link fence.

D. Each towing and wrecker service must have available a storage area which is totally enclosed within a building for the protection and security of the towed vehicle and the contents thereof to be processed and valuable property left in vehicles.

E. Each wrecker or towing service must have available, at least one 16-ton capacity wrecker (a Holmes 600 or its equivalent) or wrecker vehicle with greater capacity.

F. Each towing and wrecker service must handle and tow abandoned vehicles in proportion to the number of tow requests received from said police department for damaged or disabled vehicles.

G. Each towing and wrecker service must provide the City with proof of the following insurance protection:

1. **GARAGE LIABILITY**
   Protection limits of at least $500,000 Combined Single Limits, bodily injury and property damage. Policy must include the following:
   Premises & Operations Liability
   Products & Completed Operations
   All Owned, Hired and Non-Owned Autos
   Garage keeper's Legal Liability including:
   a. Comprehensive
   b. Collision
   c. Towing
   d. $75,000 Limit, per garage location

   OR

2. **COMMERCIAL GENERAL LIABILITY**
   Protection limits of at least $500,000 Combined Single Limits, bodily injury and property damage. Policy must include the following:
   Premises & Operations Liability

   Products & Completed Operations

   AND

3. **BUSINESS AUTOMOBILE LIABILITY**
   Protection limits of at least $500,000 Combined Single Limits, bodily injury and property damage. Policy must include the following:

All Owned, Hired and Non-Owned Autos

Garage keeper's Legal Liability including:

a. Comprehensive

b. Collision

c. Towing

d. $75,000 Limit, per garage location

Proof of insurance must be furnished on a certificate of insurance that is acceptable to the City.

4. **WORKERS' COMPENSATION**

Protection against all claims under applicable state worker's compensation laws. Each towing or wrecker service shall also be protected against claims for injury, disease or death of employees for which, for any reason, may not fall within the provisions of workers' compensation law. The policy limits shall not be less than the following:

Workers' Compensation	*Statutory*
Employers Liability-	
Bodily Injury by Accident:	$100,000 Each Accident
Bodily Injury by Disease:	$500,000 Policy Limit
Bodily Injury by Disease:	$100,000 Each Employee

Proof of insurance must be furnished on a certificate of insurance that is acceptable to the City. The City is to be named as an additional insured on all required insuring agreements with the exception of Workers' Compensation.

5. The City will only accept coverage from an insurance carrier who offers proof that it:

1. Is licensed to do business in the State of Kansas;
2. Carries a Best's policy holder rating of "A-" or better; and
3. Carries at least a Class VII financial rating.
   OR
   Is a company approved by the City.

H. Each towing and wrecker service must be certified and designated as an agent and authorized representative for the City of Overland Park for the purposes of towing, removing, storing and selling of abandoned motor vehicles. In addition thereto, each towing and wrecker service must enter into and sign a hold harmless agreement with the City.

I. The criteria and requirements set forth in paragraphs A through H shall not apply when the person whose vehicle is to be towed shall indicate a preference as to which towing and wrecker service is to be utilized or when the person whose vehicle is to be towed shall request a specific towing or wrecker service.

J. Each towing and wrecker service shall make available for annual inspection, all vehicles, records, storage facilities, and equipment used in Overland Park for wrecker and towing purposes.

(History: Ord. TC-3427 §2, 2023; Ord. TS-2593 §1, 2006; TS-1981 §4, 96; TS-1674 §7, 91; TS-1433 §8, 87; TS-1171 §1, 72; TS-1052 §1, 79)

12.20.025 Rotation Tow List.

The Chief of Police shall provide to the police communications division a list of eligible and qualified tow companies to be used in providing tow services for the City. The Chief of Police will ensure the police communications division implements a rotational procedure that fairly utilizes the services of the qualified tow services on the police rotation tow list. In addition, the Chief of Police will request the City Auditor conduct an audit of the rotation procedure at least once each calendar year to ensure the proper and fair application of the rotation procedure.

(History: Ord. TS-1981 §5, 96)

12.20.030 Fees and Charges.

All wrecker or towing services shall charge for towing services and storage fees such fees and charges as are adopted by the governing body of said City by resolution. The City shall not be responsible for unpaid towing charges except as provided by Resolution of the governing body or agreed to in writing by the Chief of Police.
(History: Ord. TS-1981 §6, 96; TS-1674 §8, 91; TS-980 §3, 78)

12.20.040 Medicine or Medical Supplies in Towed Vehicle.

No wrecker or towing service, or owner, employee or agent thereof, shall prohibit or refuse to allow the owner, operator, person in charge or possession of the towed and stored vehicle, who has proof of title or registration, to retrieve any medicine or medical supplies from such towed and stored vehicle.

No wrecker or towing service shall require the payment of any fees or charges before permitting access to a person retrieving medicine or medical supplies permitted to be retrieved under this section.
(History: Ord. TS-1794 §2, 94; TS-980 §4, 78)

12.20.050 Enforcement Authority.

The Chief of Police shall establish, distribute and cause the enforcement of reasonable rules and regulations for wrecker or towing services, subject to the provisions of this chapter, as from time to time he deems appropriate for the safety, well-being and protection of citizens and their property within the City of Overland Park, Kansas.
(History: Ord. TS-980 §5,78)

12.20.060 Suspension or Revocation of Approval and Authorization; Grounds.

The Chief of Police may order that the approval and authority of a wrecker or towing service to respond to requests of said police department be suspended or revoked and order such wrecker or tow service be struck from the rotational call list. Any such suspension shall be effective until the deficiency is corrected or for a maximum of 60 days, said period to be determined by the Chief of Police. If such approval and authority is revoked, such wrecker or towing service shall not be eligible for reinstatement for at least one year from the date of revocation.

Such suspension or revocation shall be by written notice to the wrecker or towing service advising such service of its failure to comply with any of the requirements of this chapter or of the violation by such wrecker or towing service of the following provisions upon which a suspension or revocation may be based:

A. Obtaining the approval and authority by fraudulent conduct or false statements;

B. The wrecker or towing service violated the fee and charge schedule by overcharge;

C. Such wrecker or towing service consistently refuses to respond to requests for such service by said police department or consistently fails to answer telephone calls from said police department at the telephone number supplied by the business for towing services; and

D. The wrecker or towing service responds to the scene of an accident, emergency, or impoundment situation, when not specifically called to do so, and solicits wrecker or towing business.

E. Failure to comply with any rules or regulations governing towing services established by the Chief of Police.

F. The City of Overland Park is not satisfied with the general services of the owner and/or employees or with the cooperation it has received from such wrecker or towing service or other justifiable cause.

(History: Ord. TS-1493 §2, 88; TS-1090 §1, 80; TS-980 §6, 78)

12.20.070 Appeal of Suspension or Revocation.

Any wrecker or towing service's approval and authority to respond to police requests which are suspended or revoked by the Chief of Police may appeal such suspension or revocation to the Public Safety Committee of said city by filing a written notice of appeal with the Chief of Police within five days of receipt of the notice of suspension or revocation. The filing of such notice of appeal shall stay the effect of such suspension or revocation until a hearing is held before said committee at its next regular meeting; provided, however, that if the committee renders a decision upholding the suspension or revocation, the wrecker or towing service may appeal such decision to the entire governing body of said city at its next regular meeting.

The Public Safety Committee shall have the power to reverse, alter, modify, uphold or increase any suspension or revocation ordered by the Chief of Police. The Governing Body shall have the power to reverse, alter, modify, uphold, or increase any suspension or revocation ordered by the Chief of Police or said committee.
(History: Ord. TS-980 §7, 78)

12.21 PRIVATE TOWING REGULATIONS

Contents:

12.21.010 Purpose and Intent.
12.21.020 Definitions.
12.21.030 Unlawful Acts.
12.21.040 Maximum Tow and Storage Fees.
12.21.050 Nonapplicability to Governmental Vehicles and Tows.
12.21.060 Penalty.

12.21.010 Purpose and Intent.

It is hereby declared that the purpose and intent of this chapter is to protect the public and the rights of persons whose motor vehicles may be towed and stored by private towing services at the request of third parties.
(History: PTR-1658 §1, 91)

12.21.020 Definitions.

As used in this chapter, the words and phrases defined in this section shall have the following meanings, unless the context otherwise requires:

12.21.030 Unlawful Acts.

It shall be unlawful and a violation of this chapter for any person to fail to comply with the following regulations when involved in the towing or request of towing of motor vehicles from private property; provided that the provisions of this chapter are not applicable when the private motor vehicle has been left upon the private owner's premises for more than 24 hours:

A. **Notification**. The property owner or person requesting the towing of or the removal of a vehicle from private or public property shall, within one hour of completion of such towing or removal, notify the Overland Park, Kansas, Police Department of the following information concerning the tow or removal:

1. Vehicle make;
2. Vehicle model;
3. Vehicle year;
4. Vehicle VIN;
5. License plate number;
6. Ultimate destination where the vehicle is towed to and stored; and
7. Person ordering the tow.

B. **Notice and Sign Requirements**. Except for property appurtenant to and obviously a part of a single-family residence, and except for instances when notice is personally given to the owner or other legally authorized person in control of the vehicle that the area in which that vehicle is parked is reserved or otherwise unavailable for unauthorized vehicles and thus are subject to being removed at the owner's or operator's expense, any property owner or person in legal possession of the property, prior to towing or removing any vehicle from private or public property without the consent of the owner or other legally authorized person in control of that vehicle, must post a notice meeting the following requirements:

1. The notice must be prominently placed at each driveway access or curb cut allowing vehicular access to the property, within five feet from the public right-of-way line. If there are no curbs or access barriers, the signs must be posted not less than one sign for each 25 feet of lot frontage.

2. The notice must clearly indicate, in not less than two inch high, light reflective letters on a contrasting background, that unauthorized vehicles will be towed away at the owner's expense. The words "tow away zone" must be included on the sign in not less than four inch high letters.
3. The notice must also contain the following language:
"If you believe your vehicle may have been towed from this property, please contact the Overland Park Police Department."
4. The sign structure containing the required notices must be permanently installed, with the bottom of the sign not less than four feet above ground level and must be continuously maintained on the property for not less than 24 hours prior to the towing or removal of vehicles.
5. A business with 20 or fewer parking spaces satisfies the notice requirements of this section by prominently displaying a sign stating "Reserved parking for customers only. Unauthorized vehicles will be towed away at the owner's expense." in light reflective letters on a contrasting background. In addition, the sign must include the information required in subparagraph (3) herein.

C. **Owner Access.** Any owner of a vehicle towed pursuant to this chapter shall have access to personal property in such vehicle for up to 48 hours after such vehicle has been towed, and such personal property shall be released to said owner unless it is being held or seized as evidence.

(History: Ord. TC-1260,FFFF §78, 2022; Ord. PTR-2222 §1, 2000; PTR-1908 §1, 94; PTR-1658,A §1, 91; PTR-1658 §1, 91) (State Law: K.S.A. 8-1103)

12.21.040 Maximum Tow and Storage Fees.

All wrecker or towing services shall charge for towing and storage services such fees and charges as are adopted by the City by resolution. The City shall not be responsible for unpaid towing and storage fees and charges except as provided by resolution of the City or as agreed to in writing by the Chief of Police.

(History: Ord. TC-1260,FFFF §79, 2022; Ord. PTR-1908 §3, 94; PTR-1658 §1, 91) (State Law: K.S.A. 8-1103)

12.21.050 Nonapplicability to Governmental Vehicles and Tows.

The provisions of this chapter shall not apply to law enforcement, firefighting, rescue squad, ambulance or other emergency vehicles, not to include tow trucks, which are marked as such or to property owned by any governmental entity or to any vehicle towed pursuant to Section 12.20.001 et seq.

(History: Ord. PTR-1658 §1, 91)

12.21.060 Penalty.

Any person that violates the provisions of this chapter shall be fined not less than $500 nor more than $1,000. In addition to such fine the Court may sentence any person convicted hereunder to no more than 30 days in jail.

(History: Ord. PTR-1908 §2, 94; PTR-1658 §1, 91)

REPEALED SECTIONS OF TITLE 12 TRAFFIC

Repealed Sections of 12.04 Overland Park Traffic Ordinance

12.04.024 Accident Involving Damage to Vehicle or Other Property. (Repealed)

Repealed.

(History: Ord. TC-1260,RRR §18, 2011; TC-1260,PPP §2, 2009; TC-1260 §23, 84) (State Law: K.S.A. 8-1603)

12.04.027 Duty to Report Accidents. (Repealed)

Repealed.

(History: Ord. TC-1260,RRR §18, 2011; TC-1260,OOO §1, 2009; TC-1260,FFF §3, 2006; TC-1260,BBB §3, 2004; TC-1260,JJ §3, 94; Ord. TC-1260,A §1, 85; TC-1260 §26, 84) (State Law: K.S.A. 8-1606)

12.04.030.2 Refusing to Submit to an Alcohol or Drug Test. (Repealed)

Repealed.
(History: Ord. TC-1260,ZZZ §3, 2017; TC-1260,UUU §3, 2013; TC-1260,TTT §1, 2012)

12.04.176.2 Television Receivers. (Repealed.)

Repealed.
(History: Ord. TC-1260,FFFF §80, 2022; Ord. TC-1260JJ §8, 94; TC-1260 §181, 84) (State Law: K.S.A. 8-1748)

12.04.196.1.5 Exception for Rubber Tired Earth Scrapers. (Repealed.)

Repealed.
(History: Ord. TC-1260,FFFF §70, 2022; Ord. TC-1260,II §1, 93; TC-1260,L §1, 89)

Repealed Sections of 12.16 Parades

12.16.050 Notice of Rejection. (Repealed)

Repealed.
(History: Ord. PAR-2077 §6, 97; PAR-408 §5, 66)

12.16.070 Alternative Permit. (Repealed)

Repealed.
(History: Ord. PAR-2077 §8, 97; PAR-408 §7, 66)